🐤AYAM Consti and Admin Law🐤

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1 Constitutionalism

History of Constitutionalism traced by **Patterson** "*The Evolution of Constitutionalism*", which places the doctrine of checks and balances squarely with the Ancient Greeks. Perhaps the most well-known example of a written Constitution stems from the US Constitution, the doctrine of limited government, the idea that a higher law controls governmental action. Most constitutional republics tends to derive its ultimate political mandate from the polity – the electorate. The will of the people is the source of authority and the basis of legitimate government (**Henkin**, "*A New Birth of Constitutionalism*"). In it, he sets out the principal characteristics of constitutionalism, amongst them: supreme law, separation of powers and checks and balances, and preservation and protection of individual rights.

1.1.1 Liberal vs non-liberal constitutionalism

- **Walker**, "*The Idea of Nonliberal Constitutionalism*": term "constitutionalism" has become synonymous with the rights-oriented model of liberal constitutionalism which prioritises individual autonomy and a "neutral" state. But author suggests that it is possible to conceptualise a constitutionalism not defined by liberal values while retaining the appealing qualities of constitutionalist government
    - Non-liberal values are typically more local than universalistic in character, except insofar as they are rooted in religions with universal pretensions, and views the individual not as the source of value but as a participant in a given system of meaning to which allegiance is naturally owed

1.1.2 Singapore styled constitutionalism?

- **Beer**, "*Constitutionalism in Asia*": All Asian legal systems are of relatively recent origin, given the legal impact of the Western world on Asia. But Western idealism like freedom of expression, property rights, separation of religion and state are less attractive to the Asian states
- **Ginsburg**, "*Confucian Constitutionalism*": views power as indivisible, as the Emperor possesses the mandate of heaven, and no human force can check his power
    - Limits to Emperor's power is found in the concept of *li*
    - Law is not a device to constrain the government but primarily an instrument of state power
- Deference to the State in the idea of "leadership by gentlemen" (**Shared Values White Paper (Cmd 1 of 1991)**) – notes also 5 values that forms the basis of developing shared values
    - Nation before community and society before self
    - Family as the basic unity of society
    - Regard and community support for the individual
    - Consensus instead of contention
    - Racial and religious harmony
- **Lee Hsien Loong**, *Speech at 6th Asian-European Editors' Forum* (6 Oct 2006)
    - Good governance is an essential prerequisite for Asia's economic success, as the government must have legitimacy, enjoy the people's trust, and engage the energies and talents of the people to build the nation
    - Western model cannot be simply transplanted into Asian states as challenges faced by each nation is dynamic, and may not match its national ethos

- **Silverstein**, "*Singapore: A Model, but of what sort*?": suggests that Singapore's model might be exceptional, a *sui generis* model. Singapore is not simply an authoritarian state
- **Kevin Tan**, "*Is Singapore an Authoritarian Constitutional Regime*?": criticises Professor Tushnet's typology of constitutionalism that juxtaposes two criteria – varying degrees of "liberal freedoms" and "levels of force and fraud in elections"
    - Criticises Tushnet's idea that liberal-democratic constitutions sit atop the normative constitutional order
    - Argues that merely calling Singapore an authoritarian constitutionalist state is just a label, a way to say it is not a liberal democracy. It does not help to explain Singapore's practices

Classic definition of constitutionalism found in **Montesquieu**, *The Spirit of the Laws*

- Power separated in any government, so that one man need not be afraid of another
    - If legislative and executive powers are united in the same person, or same body, there can be no liberty because of apprehension of tyranny
- A similar idea can be found in **Madison**, *The Federalist No 51*
    - Government departments should have as little dependence as possible
    - Every act of a delegated authority, contrary to the tenor of the commission under which it is exercised, is void. No legislative act therefore contrary to the constitution can be valid. To deny this would be to affirm that the deputy is greater than his principal; that the servant is above his master; that the representatives of the people are superior to the people themselves; that men acting by virtue of powers may do only what their powers do not authorise, but what they forbid
- In ***Vellama***, the court affirmed the principle of separation of powers, and that it was a basic proposition of the rule of law that all discretionary power is subject to legal limits; yet court cautioned that judicial intervention in such fact-sensitive discretion was warranted only in exceptional cases

1.2 Constitutional Supremacy

Supremacy of Constitution

4. This Constitution is the supreme law of the Republic of Singapore and any law enacted by the Legislature after the commencement of this Constitution which is inconsistent with this Constitution shall, to the extent of the inconsistency, be void.

The Rule of Law as explored by **Dicey**, *An Introduction to the Study of the Law of the Constitution* gives 3 meanings to the rule of law

- Absolute supremacy or predominance of regular law as opposed to influence of arbitrary power
- Equality before the law ensures all persons are subject to the law
- The Constitution is the result of the ordinary law of the land

In **Thio**, *Lex Rex or Rex Lex*, the author explored two conceptions of Rule of Law:

- Rule of Law as extending beyond the judicial process towards ensuring all branches act under the law

- Rule of Law as the supremacy of law as opposed to the arbitrary exercise of power, and everyone is equal before the law

In *The Rule of Law in Singapore* by **K Shanmugam**:
- Ultimate aim for Singapore is a legal system that is uncorrupt, where the law is above everyone no matter the seniority of office
- Specifically addressing criticisms of infringements to due process, Shanmugam notes that it is clearly an exception to due process with potential risk of abuse – thus for art 149 legislation, the government has been careful to build in safeguards in the ISA
- Difference in approach depends on what society wishes to tolerate – in Singapore, there is a necessity for the statute, but a recognition that risks of abuse must also be minimised
    - If there are exceptions to the Rule of Law, they must be closely scrutinised and strictly justified

In ***Tan Seet Eng***, the court cited Lord Diplock "*Judicial Control of Government*" and emphasised that the judiciary's responsibility is to declare and refuse to give legal effect to any executive or administrative act that fails to observe or applies the law *ie* is *ultra vires*. The court also noted that for issues of national security, the courts have traditionally accorded defence to Executive's determination, thus courts undertake a less intense standard of review.
- Importantly, courts are careful not to read unenumerated rights into the Constitution as it would entail judges sitting as a super-legislature and enacting their personal views of what is just and desirable into law, which is not only undemocratic but antithetical to the rule of law (***Yong Vui Kong*** [2015] (Caning))

Limbach, "*The Concept of the Supremacy of the Constitution*"
- Parliament can do injustice, which led to fundamental rethinking of problem of the limits to State power – Constitution is used to ensure that unconstitutional acts can be conceivable (that Parliament could be checked)

Articles 4 and 5 of the Constitution guarantees and secures the prevalence of a person's fundamental liberties over legislative and executive action which contravenes those rights (***Taw Cheng Kong*** (HC)). It is the duty of the court to uphold and preserve those rights, and to impugn any Act of Parliament or any course of executive action which injures, detracts from or infringes those rights

To argue that Singapore has de facto Parliamentary supremacy, can start from *Lo Pui Sang*, where Choo J said: "in accordance with law" must mean law passed by Parliament – deference to Parliament. But perhaps, recent jurisprudence reflects a changing paradigm, for example in context of article 12 (equal protection), the CA in *Lim Meng Suang* adopted a limited "illegitimacy" in impugning statutes by Parliament, which may reflect that not every law passed by Parliament is constitutional

1.2.1 Basic Features Doctrine

- Doctrine was first established in ***Kesavananda***
- In ***Mohammad Faizal***, the court held that all constitutions based on the Westminster model incorporated the principle of separation of powers as part of their constitutional structure in order to diffuse state power among different organs of state

  - In Singapore, the Constitution is supreme and this allows courts in SG to declare an Act of the Singapore Parliament invalid for inconsistency with Constitution
  - Use of "basic structure" – semantics or invoking the BFD?
- In *Yong Vui Kong* (2015) (Caning), BFD was considered, Court in *dicta* noted that for a feature to be considered as part of the basic structure, it must be something fundamental and essential to the political system that is established there under
  - No conclusion as to whether the doctrine is accepted in Singapore
- In ***Wong Souk Yee***, the court once again in *dicta* considered that even if the doctrine applies in Singapore, it was unclear what rights or concepts will be "fundamental and essential" to the Westminster model of government such that it cannot be departed from

2 Constitutional Interpretation

Which body of government has and should have the primary role to protect fundamental liberties in Singapore?

- In ***Rajeevan***, the court considered that a judge's duty is to adjudicate and interpret the laws passed with the aim of ensuring justice is upheld, and has no authority to expand the scope of or imply into the Constitution and other legislation his own interpretation of the provisions which is clearly contrary to Parliament's intention
  - Thus, the sensitive issues surrounding the scope of fundamental liberties should be raised through representatives in Parliament who are chosen by the people to address these concerns
  - Strict textualist approach toward fundamental liberties
- As noted in **Tan & Thio 4** at 11.090-94:
  - Constitution has empowered the judiciary to decide any disputes and give effective remedies in cases of infringements of fundamental liberties lest the protection of rights becomes illusory
  - Rights under Westminster Constitutions cannot be exhaustive, the drafting process must have left much to necessary implication

2.1 How should the Constitution be interpreted?

- In ***Colin Chan v PP***, the HC considered the *sui generis* approach to constitutional interpretation as laid down in ***Taw Cheng Kong*** (HC). The HC affirmed that in determining whether or not the scope of the constitutional provision is exceeded, the court is not limited by the normal rules and maxims applied to the interpretation of ordinary legislation
  - A constitutional instrument … calls for principles of interpretation of its own, suitable to its character as already described, without necessary acceptance of all the presumptions that are relevant to legislation of private law
- In ***Ong Ah Chuan***, in the context of Part IV of the Constitution, the PC recommended giving this a generous interpretation to avoid the "austerity of tabulated legalism", suitable to give to individuals the full measure of the fundamental liberties referred to
- **TT4** at 10.042: VK Rajah in "Interpreting the Constitution", as SG Constitution shares many basic ideals with other written Constitutions, helpful to consider how foreign courts interpret their constitutions. Though, the "four walls" approach considers that the Constitution must primarily be interpreted within its own four walls

- In ***Chee Siok Chin***, the HC did not accept the developments in UK where the doctrine of proportionality had been accepted into the jurisprudence by reason of the ECHR. Such a doctrine had never been part of the common law in relation to judicial review of the exercise of a legislative and / or an administrative power or discretion, nor part of Singapore law
- Similarly, in ***Lim Meng Suang***, the CA held that foreign cases had no persuasive weight in constitutional interpretations given that Singapore's context must be considered for interpreting of what is suitable for Singapore
- As for extrajudicial material, the court in ***BOM v BOK*** held that such pronouncements are obviously not binding on the courts – personal opinions even of a Supreme Court judge are only one element in a complex process of decision-making, and not necessarily the most important one
    - Thus, in the context of constitutional interpretation, the logical extrapolation must be that such material is not binding on the courts
- As for extralegal considerations, the court in *Lim Meng Suang* emphasises that these are uniquely within the purview of the Legislature, and the court cannot and must not attempt to operate as a 'mini-legislature', lest the vital role of the court as an independent and neutral institution deciding objectively be reduced to naught
    - Similarly, social attitudes are questions with answers best addressed by Parliament (*Yong Vui Kong* [2010] (MDP))
- See also *Yong Vui Kong* [2015] for principles of constitutional interpretation of article 9 – that natural justice is not about residual substantive content of constitutional rights, but rather was the reasoning that implied the necessity of sacrificing natural liberty to government in a written constitution
- The CA in ***Tan Cheng Bock*** affirmed that it is common ground that the Constitution should be interpreted purposively, which follows from the fact that Art 2(9) of the Constitution provides that the Interpretation Act applies in the Interpretation of the Constitution, which mandates the purposive approach
    - In the context of interpretation, the distinction between the specific purpose of a provision and the general purpose is significant. How should the relevant purposes be discerned?
    - Can consider the text of the relevant legislative provision itself and its statutory context, and extraneous material
    - To interpret a provision of the Constitution, the court must start by ascertaining the possible interpretations of said provisions, having regard not just to its texts but also to its context within the Constitution as a whole. Then, the court must ascertain the legislative purpose or object of the specific provision and the part of the Constitution in which the provision is situated
- In **Thio** (2009) 12 SAcLJ 326, the author discusses the "responsibilities discourse", the idea is that there are different types of responsibilities – either owed to or by the state, or responsibilities owed to another human being
    - Duties owed to the state are limits upon rights, as these rights entail responsibilities – in the context of *Chee Siok Chin*, the court held that free speech is neither impaired nor impeded by ruling out threatening, abusive and insulting speech
    - Duties owed to other people include the duty not to impinge on the rights of others
- What about constitutional or societal values? See the **Shared Values White Paper 1991**. In ***Vellama***, the idea that our Constitution was a Westminster one was considered, regarding the timing of calling a by-election

- But where amendments have occurred, especially regarding GRCs, these factor into the nature of calling by-elections

2.2 What about international law customs?

- In ***Chan Kin Foo v City Development***, the applicant invoked the UDHR to argue that the LTSA violated international law
  - Court held that our Constitution does not protect a right to property, and thus the applicant had to point to some reason why Art 17 UDHR (which guarantees rights to property) should form part of local law
  - Court observed that UDHR is not binding; for it to have legal effect in Singapore, it must form part of customary international law. Given that the widespread state practice is to allow collective sales, asserting that Art 17 of UDHR is CIL is wholly untenable and cannot support a valid cause of action
  - Additionally, even if right to property were CIL, it would not be self-executing, and must be incorporated into Singapore law. Per *Yong Vui Kong* (2010), a right that has been explicitly rejected by Parliament cannot now be part of the Constitution without explicit legislation to the effect
- See also *Nguyen Tuong Van*, where court considered that the MDP was not contrary to the prohibition in CIL against cruel and inhuman treatment or punishment

2.3 What are rights?

- **Thio**, "*Two Conception of Rights*" in *A Treatise on Singapore Constitutional Law* (Academy Publishing, 2012) at pp 604-608
  - Rights as trumps – they are political trumps that protects against a collective goal, to prevent the collective desire to deny them or justify imposing some loss or injury
    - Such a conception can be viewed as antisocial and tends to produce self-centred individuals blind to civic duties
  - Rights as restraints – a judicial tool to maintain "appropriate structural relationships of authority", and help determine the boundaries of what constitute legitimate reasons for constraining state action
    - This is in lieu of the approach that seeks to balance the strength of individual rights against the strength of collective interests. Rights are not viewed as imposing on the state a general duty not to interfere with individual rights, but 'a duty not to interfere for certain reasons'
    - Rights aren't simply just to protect interests of individual-holders, but also secure the interests of others, particularly through the construction of a political culture of a certain character
- **Thio**, "*Written Representation to the Select Committee on Deliberate Online Falsehoods*" Parliament of Singapore (27 February 2018) at para 7.1
  - false to characterise the balancing process as always involving an individual's right to free speech against a state-defined and defended public interest. Process could be far more complex
- types of constitutional rights identified by the CA in ***Review Publishing***:
  - in the context of freedom of speech vs protection of reputation, there are two main approaches:

        - "preferential right" approach, under which preference is given to freedom of speech over protection of reputation (if reasonable) under *Reynolds*
        - "fundamental right" approach, under which freedom of speech is given fundamental protection that trumps protection of reputation (except where malice is proved) under *NYT*
    - A third "co-equal" approach appears to exist where freedom of speech may be preferred, neither taking precedence over the other. One may trump the other in a particular case if such an outcome is justified under the "ultimate balancing test"
- Common law vs constitutional rights (*Yong Vui Kong* (2015) (Caning))
    - In the context of use of common law prohibition of torture, it was only recognised to be prohibited in the context of torturing suspects to extract evidence and confessions, and did not cover the treatment of criminals after they were found guilty of their crimes
    - Constitutional rights are found in the Constitution, and where there have been proposed provisions that were explicitly rejected, they cannot thereafter become part of the Constitution without explicit amendment
        - Where a right cannot be found (whether expressly or by necessary implication), the courts do not have the power to create such a right … reading unenumerated rights would entail judges sitting as a super-legislature and enacting their personal views of what is just and desirable into law
        - Perhaps, implication by necessity is about ensuring that certain functions can be carried out, without which is simply impossible or irrational
- Can rights be implied into the constitution?
    - In ***Hinds v The Queen***, Lord Diplock suggested that drafting process left much to necessary implication
    - In Singapore, even though there is no express declaration of the right to vote, Parliament has recognised that the right to vote is implied within the structure of the Constitution, fundamental to a representative democracy and Acts must give effect to this right (Wong Kan Seng, "*Is Voting a Privilege or a Right*" *Singapore Parliamentary Debates*, *Official Report* (16 May 2001), vol 73
    - See *Yong Vui Kong* directly above; see also *Rajeevan*

Does the approach in religion cases give effect to the *Ong Ah Chuan* recommendation that Part IV fundamental rights be given a more generous interpretation?

- The HC in ***Napalli*** suggested that in the context of the interest of the State in the education system and religious beliefs of the plaintiff, there had to be a careful balance
- Similarly in ***Colin Chan***, the court held that the right of freedom of religion must be reconciled with the right of the state to employ the sovereign power to ensure peace, security and orderly living
    - Court also held that sovereignty, integrity and unity of Singapore are undoubtedly the paramount mandate of the Constitution and anything, including religious beliefs and practices, which tend to run counter to these objectives must be restrained

2.4 Proportionality Argument by Marcus Teo

In **Marcus Teo** "*A Case for Proportionality Review in Singaporean Constitutional Adjudication*" [2021] SJLS 174, the author argues that proportionality can be accepted into Singapore jurisprudence, on 3 arguments — (1) First, as a matter of precedent, proportionality's four enquiries are already latent in Singapore's constitutional jurisprudence. (2) Second, as a matter of principle, Singapore's courts have the constitutional authority to adopt proportionality as a ground of constitutional review and are not institutionally incompetent to answer its enquiries. (3) Third, on grounds of policy, proportionality is desirable because it helps ensure the cogency and rationality of legislative or executive acts within Singapore's burgeoning political culture of justification

2.4.1 Precedent

- Rejecting proportionality appears to be instinctual, but it is clearly an unsatisfactory position. Proportionality review is a method of reasoning which courts can use to enforce constitutional rights, as it aligns with existing questions that are being asked
    - (1) whether the impugned legislative or executive act purports to further a proper purpose, one which the Constitution itself recognises as legitimate
    - (2) whether the impugned legislative or executive act is rationally related to, or suitable to achieve, its stated purpose, *ie* would the means chosen go some way to achieving that purpose?
    - (3) whether the legislative or executive act is necessary, in the sense of it being the least restrictive means, to achieve the stated purpose *ie* whether there is an alternative means the government can use to achieve the same purpose which would be equally effective while infringing the claimed right less
    - (4) if all three questions are answered with 'yes', then courts will carry out "balancing" in the strict sense, between the marginal addition of the act and the realisation of the stated purpose against the marginal injury incurred by infringement of the right – a normative and empirical sub-enquiry
- Proportionality review, in contrast with the categorical approach based on *GCHQ* grounds, involves fact-specific teleological reasoning: it views constitutional rights and countervailing purposes as constitutional principles, which courts must balance on the particular facts of a case while keeping in mind the consequences that might eventuate
- One precedent-based argument in favour of proportionality is the idea that proportionality does not belong to the common law
    - But commentators like Paul Craig have disagreed with such claims as ahistorical in the context of UK, as early as the 16th century. The point is that proportionality review is not alien to English law
    - In Singapore, Jack Lee has argued that case law on fundamental rights in Singapore employs certain concepts and reasoning structures that are analogous to proportionality's four enquiries per above
    - After drawing the mirror, the author argues that all four of proportionality's enquiries already exist in Singapore's constitutional jurisprudence, and is not some completely alien concept to Singapore law

2.4.2 Principle

- Would proportionality contravene the separation of powers? Author argues that it is justifiable to use proportionality review in constitutional adjudication — 2 levels based on 2 understandings of the separation of powers:

  - Separation of powers in a categorical sense where Singapore's court are derived of constitutional authority to develop an intrusive test for the enforcement of constitutional rights, and so courts cannot use proportionality review
  - Separation of powers in a functional sense where courts can develop tests as needed but should be cognisant of limited institutional competence, which discourages them from using proportionality
- As for constitutional authority, author submits that categorizing the powers into the three branches do not reveal that the constitutional authority to develop and adopt proportionality review is barred
  - As noted by Jaclyn Neo in (2018) 5 J Intl & Compartive L 461, there are areas of overlap that can be said to fall within the functions of different branches of government
    - When the courts assert that proportionality comes close to exercises of legislative or executive power, such as in ***Colin Chan v MITA***, the court rejected proportionality's use in an Art 15 challenge because it would involve a usurpation of power and responsibility that rightly belongs to the Minister
    - But as Neo notes, the test can easily fall into more than one constitutional competence
  - The only way to operationalise categorical understanding is to sidestep the impossible task of untangling overlapping competences by simply defining the scope of the "judicial power" as whatever the provisions of Part IV of the Constitution, properly interpreted, allow the judiciary to do
    - As noted in *Taw Cheng Kong* (HC), it is not within the scope of the powers of the legislative / executive branches to act in a manner prohibited by fundamental rights provisions
    - Per *Tan Seet Eng*, because the Constitution gives the judiciary the exclusive power to interpret and apply law and because the Constitution is itself law, only the judiciary can interpret and apply the provisions of the Constitution
    - Together, these 2 propositions state that the Constitution expressly limits the constitutional authority of the legislative and executive branches in accordance with the fundamental rights provisions in Part IV and vests the judiciary with the constitutional authority to interpret and apply those provisions
  - Thus, the only question at this point is really whether a proper interpretation of the provisions in Part IV of the Constitution would allow the adoption of a test like proportionality
    - As the text in most of these fundamental rights provisions do not preclude the adoption of proportionality review, the formulation of the appropriate test is left entirely to the courts
- As for institutional competence, there are 4 arguments and 4 answers:
  - Democratic credentials: Thus, when courts address proportionality's normative enquiries through constitutional interpretation according to the text and legislative intent behind constitutional provisions (when provisions have clear text or legislative intent) or through use of value-judgments (when provisions contain broadly-worded value-laden terms), courts act within their competence despite their lack of democratic credentials, just as they would when engaging in ordinary statutory interpretation

- Subject-matter expertise: important to differentiate legislation and regulations on one hand, and isolated administrative decisions on the other, as they raise different quantities of empirical uncertainty
    - Court's lack of subject-matter expertise in matters of socio-economic policy would appear more objectionable when they apply proportionality empirical enquiries to legislation or executive regulations, as law has immediate macro effect on socio-economic policy
    - But when it comes to complex ordinary litigation, courts are not confined only to relying on their own subject-matter expertise – no reason why courts cannot make up for their lack of subject-matter expertise as they do in ordinary non-constitutional litigation
- Fact-finding capabilities: courts in common law jurisdiction always lack fact-finding capabilities across ordinary non-constitutional adjudication, but nevertheless consider themselves competent to be triers of fact
    - In this regard, a distinction must be drawn between the court's fact-finding capabilities and its competence as a trier of fact. To say that courts lack the latter competence simply because they lack the former capabilities is plainly ridiculous: if that were so, the police force, the organisation equipped with fact-finding capabilities for criminal investigations, should also discharge the role of trier of fact in criminal trials instead of the court
    - As to whether the evidence necessary to satisfy proportionality's empirical enquiries can be retrieved, accessed or admitted, the ordinary rules of evidence and civil procedure can deal with this
- Policy-reforming capabilities: accepting that constitutional review amounts to policy reform requires a certain value-judgment about the role of the Constitution in Singapore's political system — this implies that the Government rather than the Constitution should set the policy agenda, such that enforcing the Constitution against that policy agenda is seen as an attempt to "reform" it rather than merely keep it on track.
    - Author in turn notes that proportionality review operates very fact-specifically, it will generally generate narrowly tailored constitutional rules and rarely generate broad constitutional rules. Proportionality only generates broad constitutional rules when a legislative or executive act is declared unconstitutional at the proper purposes or rational relation stages, but empirical evidence from comparative constitutional studies has shown that such findings of unconstitutionality are uncommon

- One argument that is raised is that courts, if getting cases 'wrong', will render negative effects more irreversible than with ordinary litigation — untrue in Singapore's case, political argument that PAP can simply overturn judicial decisions relating to Constitution should they wish
    - This is relating to Singapore's context only, however

2.4.3 Policy

- SG culture emphasises trust in the government, prioritising the separation of powers-based paradigm of constitutional theory and therefore hostile to intrusive grounds of constitutional review like proportionality review

    - But author suggests the exact opposite: modern political culture of justification, where legitimacy of legislative or executive act is assessed according to the cogency and rationality of reasons given for them, justifies proportionality
- Two accounts of political culture
    - Political legitimacy in terms of authority, which assumes the existence of distinct institutions for distinct spheres of public life, each best equipped to act in its sphere, and accountable for its actions within that sphere
        - This provides normative support for a theory of constitutionalism and judicial review based on the separation of powers as defined by principles of constitutional authority and institutional competence, but provides little support for a theory of constitutionalism and judicial review that accommodates proportionality review
    - Political legitimacy in terms of justifications, where a legislative or executive's act's political legitimacy depends on the cogency and rationality of the reasons given for it
        - This does not require legislative or executive acts to be justified in line with any particular substantive political theory in the abstract, but rather reasons that adhere to a given political community's localised notions of rationality and reasonableness
        - This culture will prioritise proportionality review
- Question is which account is more accurate to Singapore today?
    - Author obviously argues that the shift to culture of justification is evident in both governmental and judicial discourse
        - Modern PAP leaders have increasingly been justification-based, not simply acting as "austere technocrats" – no longer leading from the front but being more consultative and inclusive
        - This shift means that leaders will depend significantly on justification-based notions of political legitimacy
    - Shift in judicial can be seen from Chan (2010) "*From Angst to Empathy*", where he set out a broad vision of constitutionalism and judicial review involving justification-based notions of good governance in which proportionality review was welcome in appropriate circumstances
        - Doctrine was also considered in *SGB Starkstrom*, where court in *obiter* suggested that the doctrine could be defensible if, instead of ordering the Government to give effect to substantive legitimate expectations, courts merely required the Government to "give reasons for its assessment" that the public interest outweighed the expectation in the circumstances.
        - In *UKM v AG*, the HC (with Menon CJ as part of 3-person coram) felt compelled to develop a novel conception of the judiciary's proper role and function" within Singapore's constitutional order. In a subsequent extra-judicial speech "*Taming the Unruly Horse: the Treatment of Public Policy Arguments in the Courts*" (19 February 2019), Menon CJ emphasised a vision of "good governance" which required courts to further a "constitutional dialogue" that helps uphold rational and cogent decision-making in situations involving clashes between rights and public policies-in short, a culture of justification in constitutionalism-and opined that this could be achieved through an "analytical framework" which was, essentially, proportionality review

- Author is also of the view that *Jolovan Wham* introduced proportionality review under article 14, if at all, only for executive rather than legislative acts
    - Author is not convinced that the court did actually employ proportionality review to assess the constitutionality of the legislation under Article 14, rather than a standard resembling that in *Wednesbury*, which also requires the weighing and balancing of competing values and interests
    - Difference between proportionality and *Wednesbury*, then, lies in the identity of the balancer: "[w]hereas under [proportionality] it is for the court to determine objectively, for itself, whether a rights-interference is justifiable... courts do not have such a role under *Wednesbury*, where they are exercising a supervisory jurisdiction
    - But the court in *dicta* noted that the Commissioner could exercise his discretion, granting a permit with certain conditions attached – suggests a resemblance to proportionality's necessity and strict balancing enquiries

3 Art 14 – Freedom of Speech

Freedom of speech, assembly and association

14.—(1) Subject to clauses (2) and (3) —

(*a*) every citizen of Singapore has the right to freedom of speech and expression;

(*b*) all citizens of Singapore have the right to assemble peaceably and without arms; and

(*c*) all citizens of Singapore have the right to form associations.

(2) Parliament may by law impose —

(*a*) on the rights conferred by clause (1)(*a*), such restrictions as it considers **necessary or expedient** in the interest of the security of Singapore or any part thereof, friendly relations with other countries, public order or morality and restrictions designed to protect the privileges of Parliament or to provide against contempt of court, defamation or incitement to any offence;

(*b*) on the right conferred by clause (1)(*b*), such restrictions as it considers necessary or expedient in the interest of the security of Singapore or any part thereof or public order; and

(*c*) on the right conferred by clause (1)(*c*), such restrictions as it considers necessary or expedient in the interest of the security of Singapore or any part thereof, public order or morality.

(3) Restrictions on the right to form associations conferred by clause (1)(*c*) may also be imposed by any law relating to labour or education.

In Singapore, the right to free speech is **not an absolute right** – is it qualified by broader societal goals enunciated in Art 14(2)(a). This is especially so in the context of Singapore's subscription to communitarian constitutionalism, where there is an emphasis on community good over individual rights, and society above self (*Shared Values White Paper*). As such, from time to time, for the common welfare and good, individual interests have to be **subordinated to wider community's interests** (*Chee Siok Chin*).

- The balance Singapore has opted for a **regulated model of free speech**, balancing democratic values with societal order. Laws like the POFMA (*Protection from Online Falsehoods and Manipulation Act*) and the *Sedition Act* are often cited as constraints—but from the government's perspective, they're necessary buffers against harm.
- **History**: Ethnic and religious sensitivities in Singapore makes unregulated speech potentially explosive. The risk of social fragmentation is not theoretical – SG' history (e.g. 1964 race riots) underscores the stakes. Falsehoods and hate speech, if unchecked, erodes trust, polarize communities, and can undermine public institutions. The amplification effect of social media makes disinformation faster and harder to correct than ever before. The assumption that truth will "naturally prevail" is increasingly questionable in today's algorithm-driven echo chambers.

3.1 Why is freedom of speech important?

- **Lee Hsien Loong**, "*Building a Civic Society*" (6 January 2004)
    - SG values diversity, people debate issues with reason, passion and conviction, and not be passive bystanders in their own fate
    - Civic participation by way of debates, focused on issues based on facts and logic, and criticism is good to improve ideas

3.1.1 Philosophical justifications (*LHL v Roy Ngerng*)

- Defendant argued that being made to pay a large sum of damages for defamatory speech made would have a detrimental effect to free speech in Singapore
- Philosophical justifications for the right of free speech: Truth and Democracy; Self-Fulfillment and Distrust in the Government.
    - **Truth**: Speech, both true and false, should be protected on the premise that the absolute truth will eventually emerge. This follows academic Mill's 1859 paper against depriving society of the "opportunity of exchanging error for truth.
        - ***However***, the merits of this rationale, the "competition of the market", was discussed by CA in *Review Publishing v LHL* where the point was made that no benefit is derived where false statements of fact are freely disseminated, especially if only relying on the competition of the market to expose them.
        - Furthermore, in ***Ting Choon Ming*** *and* ***TOC v AG***, the SGCA held, in considering how the swift spreads in falsehoods "in an unregulated internet sphere", that the preservation of public order can be threatened, even undermining the trust in the Government.
        - **Connectivity Fuels Disinformation**: algorithms and search engines often create "echo chambers" and "filter bubbles" which entrench people ideological silos (Tan, Teng "Fake News, Free Speech and Finding Constitutional Congruence" (2017)).
    - **Democracy**: the process of democracy requires the unfettered exchange of ideas between individuals, an exchange that would be constrained where these views and opinions are given under the threat of sanction. Essentially, this moulds public opinion, which in turn fuels representative government and acts as a form of check-and-balance on the government.
        - Argument epitomised by Australian case of *Lange v Australian Broadcasting Corporation* is that political speech is of a protected category
        - Similar pronouncements from England indicate the similar premise that the argument from democracy justifies freedom of expression in *Reynolds*
        - ***However***, in Singapore, per *Review Publishing*, Lange and Reynolds were not considered insofar as to elevate freedom of speech as a fundamental right unless it can be shown evidentially that Singapore's "political, social and cultural" value" warrants such a shift to enshrine it in Art 14. Too uncertain.

    - **Ext Factor 1: Self-fulfillment**: the right to free expression forms an intrinsic part of the "human spirit" towards their individual personality (*Tan, Whither the Autochthonous Narrative of Freedom of Speech?"*). *Barendt in "Freedom of Speech" (1985)* expresses it, people "will not be able to develop intellectually and spiritually unless they are free to formulate their beliefs and political attitudes through public discussion."

- ***However***, this perspective promotes of a strong or radical individualism engendering the "**corrupting asymmetry of rights without civic duties**" (*Weiler in "Individual and Rights" (2010)*).
- Following Singapore's subscription to communitarian constitutionalism, where an emphasis is founded on society above self, little weight should be given little weight.

▪ **Ext Factor 2: Distrust of Government**: Arises from an "appreciation of the fallibility of political leaders" and a "distrust of the ability of the government to make determinations of truth and falsity" (*Barendt, Freedom of Speech*). This theory, as pronounced by *Fredrick Schauer*, is negative insofar as it highlights the evil of regulations rather than the good of free speech.

- ***However***, this theory relies on the bare suspicion that the government will act in bad faith**.**
- Furthermore, Singapore's heavy **emphasis of honesty and integrity in public discourse** would not warrant any form of distrust per SGCA's finding in *Review Publishing*.

3.1.2 Should *Reynolds* apply? SGCA in *Review Publishing* suggested can be given effect

If the *Reynolds* rationale were to be applied in Singapore in the context of publication of matters of "public interest", such that a new balance has to be struck between constitutional free speech and protection of reputation, the defendant will not necessarily be excused or immunised from liability.

- The *Reynolds* rationale can equally be given effect by holding the defendant liable for defamation but adjusting the quantum of damages payable, with the exact amount to be paid in each case being calibrated by the court in proportion to the degree of care which the defendant has taken (or failed to take) to ensuring that what he publishes is 'accurate and fit for publication' (per lord Bingham in *Jameel* at [32]). Such an approach has the merit of deterring irresponsible journalism. There is no reason why a defendant who has published a defamatory statement should be allowed to get off scot-free for injuring the plaintiff's reputation simply because he has satisfied the 'responsible journalism' test.

Thus, in this case as the defendant acted out of malice, even if *Reynolds* were applied in the manner as elucidated above, it could not serve as a defence to the defendant's actions.

However, it is submitted that the adoption of *Reynolds* Privilege would be **incompatible with Singapore's** emphasis on honesty and public discourse. Through Singapore's communitarian ideology or neo-Confucian ethos in community's interest in social cohesion and stability (*Thio, "An I for an I"*), an extensive free speech privilege would deter honourable men, junzi, from seeking public positions of trust and responsibility (*SGCA JBJ*). *That said*, it is my opinion that the application of Reynolds reflect a preventive approach to deter these honourable men from adopting immoral or corrupt practices. Furthermore, there is an argument in ensuring parliamentary democracy. As academic *David Tan* argues, where the Government accepts the obligation to be accountable to the electorate through regular elections, this accountability necessarily presupposes that citizens are able to freely communicate and exchange views on matters relating to good governance. Such communication must occur both horizontally among members of the electorate and vertically between citizens and their political representatives. In this way, freedom of speech

facilitates informed electoral choice and meaningful political participation, which are essential to the proper functioning of a parliamentary democracy. Thus, Reynolds should be adopted in SGCA's position in *Review Publishing*.

3.2 No difference in "Speech" and "Expression" in Art 14

In ***Tan Seng Kee v AG***, the Court of Appeal applied a purposive approach to determine that "speech" and "expression" in Article 14(1)(a) are indistinct. The ordinary meaning of

- "**speech**" is any form of communication expressed in the form of words, whether spoken or written.
- "**expression**" which can encompass any means of conveying meaning, opinions, beliefs or ideas, whether with or without the use of language.

The court noted that a literal reading of "expression" could encompass any act conveying meaning (including sexual intimacy, necrophilia, or bestiality), leading to a "**plainly absurd result**". By applying the noscitur a sociis principle (derived from context) and reviewing marginal notes from the WCJ Consti Commission Report, the court concluded that "expression" serves merely an ancillary function to qualify and describe the fundamental right of "speech" (words, spoken or written, that convey meaning). As such, expression was not mentioned as a free-standing right and was thus not meant to expand the scope of Art 14(1)(a).

- ***However***, this renders the term "expression" **obsolete**, as "speech" is clearly a form of expression. While the SGCA applied the principle of noscitur a sociis, the SGCA in *Tan Cheng Bock* also held that Parliament "shuns tautology and does not legislate in vain". Furthermore, marginal notes only serve to provide a "brief indication of the content" of the relevant provisions (*Bennion on Stat Interp 7th ed*). It is not meant to provide the comprehensive summary of the provision it covers. Additionally, limiting what might count as speech or expression **removes the crux of Art 14 in addressing consequences** of such rights from an *a priori* (earlier) position.

3.3 Legal test for the constitutionality of the limitations in Art 14(2)

Threshold Test

The Court of Appeal in ***Wham Kwok Han Jolovan v PP*** [2021] 1 SLR 476 set out a three-step framework for determining **whether a legislation impermissibly derogates** from Article 14:

i. Whether legislation derogates from or restricts any of the rights conferred by Art 14;
ii. If yes, the court should determine whether Parliament considered the derogation or restriction to be "**necessary or expedient**" in the interests of one or more of the enumerated purposes set out in Article 14(2);
iii. Whether there is an **objective nexus between the purpose** of the legislation and one or more of the permitted grounds for derogation or restriction under Article 14(2).

Note (*Chee Siok Chin*):

- "**necessary or expedient**" confers on Parliament an extremely wide discretionary power and remit that permits a multifarious and multifaceted approach towards achieving any of the purposes specified in Art 14(2) of the Constitution
- The expression "**public order**" is synonymous with public peace, safety, and tranquility. Depends in each case on the degree of disturbance that may be caused to the life of the community.

3.3.1 Standard for determining whether the restrictions are "necessary or expedient"

The phrase "necessary or expedient" under Article 14(2) confers upon Parliament an **extremely wide** discretionary power and a broad legislative remit.

Despite the presence of the supremacy clause in Art 4, in a consistent line of cases, the SGCA has interpreted Art 14 with **deference** to the "government's assessment of the needs of public order without requiring that the restrictions be informed by substantive standards of reasonableness, proportionality or necessity within a democratic society (*Thio "Singapore : Regulating Political Speech*). That essentially leaves Parliament with a carte Blache to dictate the boundaries of free speech (*Tan Eng Seng*).

- Albeit the 2021 SGCA *Jolovan Wham* clarified the test not wholly subjective, as that would render the constitutional right "purely symbolic and without any real force", a strict **proportionality test was rejected** (which inquire whether the restriction is the least restrictive means of achieving its objective). Instead, it is generally sufficient that the restriction is rationally connected to a broadly framed legislative purpose, which may be inferred from materials such as *Hansard, long title and legislative purpose*, to enact pre-emptive restrictions on speech, even in the absence of imminent harm. While I agree on the government's lens in using such materials, there needs to be a form of constrain to balance the wide discretion on Parliament without the court acting like mini-legislature.

3.3.2 Case Examples

- In ***Chee Soon Juan***, the HC emphasised that freedom of speech is not an absolute right, and broader societal concerns such as public peace and order had to be engaged in a balancing exercise with the enjoyment of this personal liberty.
  - In this case, given the place being Istana grounds on Labour Day, it was a highly visible event with strong public participation (close to 5,300 people in the grounds on the day). Court held that it did not take a great stretch of imagination to conclude that a political rally on the grounds that day could have resulted in a threat to public order and safety.
  - Without evidence, Chee could not support his contention that provisions of PEMA were applied in a discriminatory fashion. He also did not apply to the Minister to require reasons for the refusal of the grant of a licence under the Act
  - As to whether the sentence was manifestly excessive, because he was a habitual offender and treated the legal system without regard, and had the sheer arrogance to purport to speak on behalf of the people of Singapore … remarkable impertinence, considering that he was not a member of Parliament, and clearly had no mandate to speak on behalf of the people of Singapore.

- In ***Chee Siok Chin***, the CPF protestors unlawful assembly case, the HC had to deal with the issue of whether the Act could restrict or curtail Art 14 rights as declared in the Constitution
    - As to the tension between freedom and competing interests of the state, there is a delicate balancing exercise that involves several imponderables and factors. Consideration of such public policy is exceedingly complex and multifaceted as individual rights do not exist in a vacuum. Court is wary to permit unfettered individual rights in a value-neutral process, as it would be against the rule of law
    - Thus, the right of assembly cannot be absolute and may be subordinated to public convenience and good order for the protection and the general welfare whenever it is 'necessary and expedient'
        - The framework of the Constitution deems it crucial and necessary to authorise the imposition of restrictions in the wider and larger interests of the community and country.
    - Court also held that from time to time, for the common welfare and good, individual interests have to subordinated to the wider community's interests. There is also nothing inherently wrong or unreasonable in requiring permission from the relevant authorities to be sought prior to the holding of a public meeting or assembly

- In ***Jolovan Wham***, applicant was charged under s 16(1)(a) of Public Order Act for organising and holding a public assembly without obtaining the permit for it that POA required.
    - Issue: Is s16(1)(a) of POA a constitutionally valid derogation from Art 14(1)?
    - **s 16(1)(a) POA** (legis): prohibits the holding of a public assembly in certain circumstances where no permit has been obtained or is in force. Subjects the exercise of this right to **criminal prosecution and punishment.**
    - Objective framework used: Use of subjective approach would render the right under Article 14 illusory as the constitutional right would be purely symbolic and without any real force or effect.
    - Court reiterated *Tan Seet Eng* (which endorsed *Chng Suan Tze*'s objective approach in the context of CLTPA) that Minister's exercise of discretion should be done on an **objective basis** (*ie* whether the applicant's detention / not approving the licence to speak was necessary on the basis that he was a threat to public peace, safety and good order)
        - Sources: Court may have regard to the relevant legislation, parliamentary material and contemporary speeches as well as documents to determine whether Parliament had considered it "necessary and expedient" to restrict the constitutional right in question … court may infer from the general purposes for which Parliament passed the relevant legislation that it had considered it "necessary and expedient" to restrict the constitutional right in question.
        - Purpose of the POA from **long title** and **Hansard** evinces that the bill was to maintain public order and would be the interest of society for Parliament to operate a permit scheme.
        - In considering the nexus between the legislation and Art 14(2) grounds, the Commissioner had reasonable grounds for apprehending to prevent undesirable results from occurring, which pertains to public order and achieves a careful balance in allowing a right and imposing restrictions upon it.

- On the **administrative law** point, a speaking permit may be sought under the Act, which the Commissioner has discretion to grant. The Commissioner may refuse to grant the permit where he apprehends on reasonable grounds that one of the listed circumstances may occur
    - The converse may too happen. Thus, in the context of this case, a foreigner was seeking a permit to speak at a public assembly, under which he has no guaranteed constitutional rights. In fact, the Commissioner may, if he believes that there is a risk to public order, still allow the public assembly to carry on but with certain conditions attached
    - There are also prescribed guidelines for the discretion in the Public Order Act, which the Commissioner must exercise in accordance.
        - Minister must similarly consider the merits of any appeal in accordance with the guidelines established by the POA and may, if the facts and circumstances warrant, either (a) reject the appeal and confirm the Commissioner's decision; (b) allow the appeal in whole or in part and vary the Commissioner's decision; (c) set aside the Commissioner's decision and make a decision in substitution of it; or (d) direct the Commissioner to reconsider his decision (s 11(3) of the POA)
    - In fact, the applicant did not even apply for the permit, and thus cannot now argue that the permit.

- In ***Tan Seng Kee***, the CA addressed a different question – whether s 377A violates art 14's protections on freedom of expression and free speech
    - the term "expression" in art 14(1)(a) protects the right to freedom of speech – that conveys meaning, opinions, beliefs, or ideas. Since acts of sexual intimacy are not "speech" to begin with, Art 14 constitutional challenge to s 377A is without merit
        - extremely difficult to delimit the acts that are constitutionally protected under art 14(1)(a) if "expression" is read expansively, thus decided that the term should be interpreted as a qualifier of the right to freedom of speech, *ie* words, whether spoken or written, that conveys meaning, opinions, beliefs or ideas
    - gross indecency =/= expression

3.4 Compelled Speech

In ***TOC 2021 SGCA***, on POFMA CDs, TOC argued that a necessary corollary of the right to free speech is the negative right to not be required to speak, relying on jurisprudence of the US in *Becerra*. Otherwise, compelled speech can distort influence on the marketplace of ideas by diluting the persuasiveness of speakers coming from the compelled speaker's "forced utterance of the diametrically opposed position" (*Redish, 2019*). **Held**: POFMA CD does not prevent the recipients from displaying their disagreements with the CDs, and hence it was not capable of being unconstitutionally compelled speech.

3.5 Traditional and online media, and false speech

3.5.1 How should free speech laws apply in media?

- Guiding words on role of media (***Lee Hsien Loong*** "Role of Media" Speech (6 October 2006))
    - Good government and responsible journalism both ultimately exist for the people they serve. Media occupies a position of power and responsibility. As with the political system, each country will have to evolve its own model of the media that works for it.
    - With the advent of the internet, the free flow of information on the internet is universally a good thing, though not an unmitigated boon. The internet short circuits and undercuts the model of media which is filtered, processed and verified
    - There is a role for serious journalism because people will still seek out information sources that are reliable, verified and insightful. Singapore need anchor points that reflect our values, our vulnerabilities and our ambitions. <u>The media in Singapore must adapt to these changes, do their best to stay relevant</u>, and continue to contribute constructively to nation building

- **Shanmugam**, "*A Free Press for a Global Society*" (4 November 2010)
    - Modern media reality is about "impact reporting" to maximise readership rather than accurate reporting
        - Thus, confusion of news and commentary, especially in US
        - But the assumption is the "marketplace of ideas", that society is strong enough to withstand the possible harmful consequences arising from such an approach
    - In Singapore, the calculus is different, as the role that the media plays in US for example is too disruptive
        - Media here is not a political actor, nor is it partisan
        - Even though press freedoms appears bad, it doesn't reflect that Singaporeans mostly trust their media which cannot be said for the US
    - we stick to our own model because it works
    - it also cannot play politics as it involves accountability and responsibility to the people. our political context **militates against** applying *Reynolds*

3.5.2 What impact does the Internet have on free speech?

Online speech arguably requires more regulation and less protection when it involves falsehoods, given its amplified capacity to threaten public order. Because the largely unregulated internet sphere allows falsehoods to spread swiftly, these platforms portend abuse that can quickly undermine trust in key public institutions.

- **Thio** [2008] SJLS 25 at 53-56
    - Internet has a dark side, exacerbating the simply social fact of the tendency of individuals and confirmation bias, and may lead them to adopt more extreme views of original views, and heightens social fragmentation by insulating them from competing views

  - Public debate is undermined by irrational speech
  - To promote democratic debate, citizens must agree to disagree on morally contentious questions in deference to ideological diversity, and to use democratic channels to influence public opinion, through deliberation rather than hate-mongering and harassment

- In ***LHL v Roy Ngerng***, the SGHC held that it was trite law the wider the extent of publication, the greater the award of damages for defamation
  - The court looked at number of factors to determine the extent and outreach of readership, and how the post was written and structured to assess its impact
  - Additionally, the higher end of spectrum for damages is awarded in defamation because of the high standing that political leaders have in society

3.5.3 Media outlets as defendants

Are they treated differently?

- No, media defendants are not granted special privileges in Singapore. In *Review Publishing*, the court explicitly rejected the notion that the media serves as an activist "watchdog" that investigates every matter and sets its own political agenda. Citing government officials, the court maintained that the media's role is strictly limited to traditional activities of reporting the news factually and objectively. Therefore, the media is subject to the same strict defamation laws as any private individual.

Should they be treated differently?

- There is a strong argument that they should be afforded protections like the *Reynolds* privilege (responsible journalism). The media plays an essential role in disseminating information on matters of public interest. Denying them a qualified privilege defense—even when they take reasonable steps to verify information—forces the media into extreme self-censorship, depriving the electorate of information crucial to holding leaders accountable.

3.6 False Speech

TLDR: In ***TOC v AG 2021***, the SGCA held that a statement that has been identified by the Minister as a false statement of fact under ***Part 3 of POFMA*** still enjoys protection under Art 14(1)(a) of the Constitution until it is judicially determined to indeed be a false statement of fact.

The 2017 SGCA in ***Ting Choon Meng*** dealt with this issue:

s 15 POHA does not contemplate a take-down or any other remedy beyond the following:

(a) a **finding of falsehood** by the court on a balance of probabilities; and

(b) contingent on such finding, the **right** to have such notification as deemed necessary to **draw attention** to the falsehood and the true facts.

- s 15 POHA does not inhibit or prevent free speech at all or even materially limit it…. A speaker may continue to publish that falsehood even if a **court of law** has found it to be false. What s 15 contemplates is that in that event, the court may require him to draw attention to the falsehood if the court is of the view that it is just and equitable to do so. s 15

thus does not restrict, but merely constrains the publication of speech that has been proven to be false without a notification that is has been so proven and / or without a direction to where the truth may be found.

- A wholly unrestricted right to free speech **does not extend** to a wholly unrestricted right to deceive or maintain a deception by not drawing attention to the falsehood
    - The underlying rationale for free speech in Singapore is the collective search for truth, falsehoods have zero constitutional value. They do not contribute to the marketplace of ideas; rather, they are "destructive of the democratic society" by eroding trust in public institutions.
- *Even if* the court was to hold false speech as protected, it would likely be restricted when it is necessary or expedient, in the interest of public order.

3.7 Political defamation (against free speech)

3.7.1 Lack of Public Figure Doctrine

The rationale is that a politician must be more tolerant of criticism because in choosing this career, he knowing lays himself open to scrutiny which **entails assuming the risks** of "occasional falsity that comes with vigorous discussions of issues" (Frederick Schauer, Free Speech, a Philosophical Enquiry). This doctrine was also respected in *Lingens v Austria* in pursuant to the concept of democratic societies.

- ***However***, the SGCA in JBJ rejects this holding that public figures should be entitled to protect their reputation too. It is hence submitted that the balance struck by the defamation laws in Singapore lies closer to the protection of reputation rather than the protection of free speech.
- **State v Private individual asymmetry**: Strangely, the Courts do not acknowledge the disparity in standing and access to resources between public officials (who have the backing of state machinery to clear their reputations) and critics who are often private individuals lacking the same access.
- Indeed, in *Peter Lim* it was expressly stated that the court will take as a "dominant consideration" the "position and standing of the plaintiff in society" in calculating damages for defamation, where the court acknowledges that public leaders are generally "entitled to higher damages" as damage to their reputation would not only damage them personally but also have ripple effects on the "reputation of Singapore. In the recent TOC case of Terry Xu, the defamation suit resulted in an exceedingly high $420k in damages.
- With such an unduly high protection for public officials in defamation suits, a real risk of **oppressively "chilling" speech** can arise and may be used as a tool to silence critics, which could hinder public discourse (*JBJ Hansard 1998*). Thus, a recurrent criticism levied against Singapore is that its **government relies on "a 'compliant' judiciary to bankrupt opposition politicians"** through defamation suits (*Lingle, The Smoke Parts of Asia Obscures some Profound Concerns*).
- It doesn't help that then-Foreign Minister Yeo expounds on how the ordinary man must not presume to be able to address Singapore's political class as "equals", rejecting the idea of democratic equality in favour of an antiquated form of feudalism. While LHL leans the Government's in its pledge to seek voices and criticisms that reflect "sincere contributions to improve Government policies", it remains to be seen how a balance can be struck to promote free speech when reputational interests continue to prevail.

3.8 Justifications for POFMA being Constitutional

3.8.1 Falsehoods are **not** constitutionally protected speech.

As noted by ***Milo in "Defamation and Freedom of Speech" (2008)*** "history has taught us that falsehood frequently prevails over truth with 'deleterious societal consequences". In the modern context where digital speech is exercised, "falsehoods can be rapidly disseminated in an unregulated internet sphere" (***Ting Choon Meng SGCA 2017***), such that "it is entirely conceivable that their swift spread online could threaten the preservation of public order by (among other things) undermining trust in the Government and other key public institutions, even though disorder has yet to break out physically in a public space" (***TOC v AG SGCA 2021***). There is also "no benefit in permitting the free dissemination of false assertions of fact that destroy a person's reputation" (***Roy Ngerng***).

It is clear then that "free speech, or the liberty to communicate, relates to the communication of 'information not misinformation'". Therefore, "false speech which has been proven as a matter of fact to be false in a court of law, can contribute little to the marketplace of ideas or to advances in knowledge for the benefit of society as a whole.

3.8.2 Falsehoods can result in public order threats

One of the 8 grounds of derogation from free speech in Art 14(2)(a) is that of "public order" and this gives Parliament constitutional basis for legislation restricting the freedom of speech. [Public Order read broadly]. Though it might be argued that virtual falsehoods cause no actual public order disruptions (to "communal tranquillity" or the "even tempo of the life of the community") (***TOC v AG, SDP v AG***) this argument holds no weight. This is because the derogation clauses in Art 14 are **phrased in a more open textured manner** ("in the interest of", rather than "in the maintenance of"). "Interest" connotes that as long as there is a "nexus" (***Chee Siok Chin***) between the restriction and the public goal/outcome identified that the court will give effect to it, whereas "maintenance" entails something more than a nexus, a relationship that would ensure that the interest is actually upheld, and therefore may demand considerations of reasonableness or proportionality. In Chee Siok Chin the court noted that the wording "in the interest of … public order" should not be confined to "the maintenance of public order and therefore affords Parliament a "much wider legislative remit" to not only enact laws for the 'immediate or direct maintenance of public order" but also extends to laws that strike **pre-emptively** (***Tan, Teng "Fake news, Free Speech" (2020)***), allowing the government to take a **prophylactic approach in the maintenance of public order**. Ostensibly POFMA would fall under the Government's wide remit to legislate in the broad interests of safeguarding Singapore from falsehoods that "threaten the preservation of public order by (among other things) undermining trust in the Government and other key public institutions, even though disorder has yet to break out physically in a public space" (***TOC v AG and SDP v AG at [99]***). The low cost of the internet in facilitating political organisation and lobbying as well as the spread of information may allow small groups whether belonging to sensible or noxious groups to enjoy an asymmetrical amplification of their views by dint of volume not merit and result in public order concerns. Therefore POFMA's regulation of online falsehoods is entirely within the ambit of the derogations allowed in Art 14(2)(a) and falls within the category of a pre-emptive regulation against

actual physical disorder, preventing the escalation of online incitement to actual physical disorder in a public space.

3.8.3 Media Companies are not incentivised to engage in self-regulation

Unique to POFMA the Select Committee on Deliberate Online Falsehoods justified legal intervention on two grounds.

1. Indirect measures such as the raising of media literacy, promotion of quality journalism and implementing fact checking initiatives cannot overcome the cognitive biases of human psychology that makes us susceptible to fake news.
2. That technology companies **do not have the incentive** to take active steps against the promulgation of online falsehoods if such regulation is merely voluntary.
3. Media companies and technology companies not incentivised to take steps against the promulgation of online falsehoods if these regulations are merely opt-in, and companies are even less willing to disclose their proprietary algorithms and how they target individuals for better engagement, which if known could help states counter fake news (Jaipragas & Sim).
4. For example, Facebook has repeatedly voiced rejection against fact checking the content of its political advertisements. Its algorithms sort users by their political dispositions, and feeds them data (including falsehoods) that suit their inclinations so as to enhance traffic user volume (Richter, "The case for government regulators in fighting disinformation")

3.9 Justifications for POFMA being Unconstitutional

3.9.1 Loose Wording of Statute, hard to identify what constitutes a false statement = Chilling

[Short] It is submitted that the Minister is granted with **wide discretionary powers** under the vague wordings of POFMA, engendering a low threshold for the Minister to issue part 3 directions that leads to a **chilling effect** on the population -> undermines democracy.

- As a starting point, what amounts to a false statement of fact for the purposes of issuing Part 3 Directions or for the offence of communicating a false statement of fact in s 7 is an extremely low threshold. In s 2(2)(b), a statement is false if it is "false or misleading" whether "wholly or in part" and whether on its own or in the context in which it appears.
- This requires an **objective construction** of the subject material that "regardless of the subjective intention of the statement maker", there would be at least an "**appreciable segment**" (TOC SGCA 2021) of the population or a particular class of the "**potential**" readership or audience of the subject material and even though a subject material may include multiple interpretations, **as long as the subject statement is "one reasonable interpretation"**, and that interpretation is false, a Part 3 Direction may be issued.
- While it is unclear as to what amounts to an "appreciable segment" of the population, it appears that a **mere "likelihood"** of "part of the subject material" being taken out of context will suffice. Additionally, the fact that an "appreciable segment" of the population includes that of "**potential**" readership further lowers the threshold by allowing Part 3 Directions to be issued as a pre-emptive strike of sorts.

- The SGCA also clarified that the construction of the subject material is objective, such that "regardless of the subjective intention of the statement maker", as long as the subject statement is "one reasonable interpretation" and that interpretation is false, a Part 3 Direction may be issued.
- **Chilling Effect**: the prospect or potential of being on the receiving end of a CD could lead to a chilling effect. A CD notice could have the effect of impugning the credibility of the author and the concern is that it could lead to self-censorship that would make participants in online debates refrain from raising their opinions or otherwise making valid comments for fear of governmental sanction.
- Additionally, s 4 of POFMA defines "public interest" broadly and in a manner that practically and intentionally mirrors the derogations stipulated in Art 14(2) of the Constitution. This means that it is not only easy to find a false statement of fact, but also for the Minister to find that it is in the public interest to issue a Part 3 Direction, and once any false statement of fact is found, the derogation from free speech would be Constitutionally sanctioned. The ease with which Part 3 Directions can be ordered does exert a chilling effect on a civil society in Singapore.

3.9.2 Minister is granted **too much discretionary power** under the Vague wording of POFMA

Further, POFMA's vague formulations have provided Ministers with an expansive, perhaps almost absolute power of discretion. It is the Minister who decides to issue the correction direction. It is also the Minister who decides to approve a request challenging the correction direction at first instance (s 19). Reality suggests that the chances of ministers overturning their own decisions unilaterally is low or virtually zero. While an appeal can be made to the Courts, very few participants, citizens, news sites will have the resources or the appetite for litigation in the Courts.

"Public interest" is too wide: POFMA is phrased broadly such that the Minister may issue a correction if it is "in the public interest" to do so. This includes cases of influencing the outcome of an election, and diminution of public confidence in key public institutions (s 4(f) POFMA). Such areas are not expressly provided for in the Constitution under Art 14(2). The SGCA held that this was constitutional insofar as there was a **nexus with "public order"** (which was broadly defined). Parliament is therefore afforded "a much wider legislative remit that allows Parliament to take a prophylactic approach in the maintenance of public order. This necessarily will include laws that are not purely designed or crafted with immediately or direct maintenance of public order" (TOC)

Whilst there is an appeal process for statement makers, and the ultimate remit lies with the Courts the court can only hear the appeal under ***s 17 POFMA*** after the statement maker has first applied to the Minister in ***s 19 POFMA*** to vary or cancel the Part 3 direction and the Minister has refused the application whether in whole or in part (***s 17(2) POFMA***). Even when the case goes before the court the court can only examine 3 limited grounds of appeal (1) whether the person communicated the subject statement in Singapore (2) whether the subject statement is not a statement of fact or is true, or (3) whether it is technically possible to comply with the Direction (17(5) POFMA).

This means that Ministers can technically act against falsehoods where there is a strong argument that the statement does not actually undermine public interest. This raises the fear that political office holders will use POFMA to **quash political dissent** where a falsehood is perpetuated not to

undermine faith in government institutions (although this may be a corollary) but rather to disagree with government policies. A potential area for reform is to accord judicial oversight over whether there are bona fide public interest grounds that warrant action against the falsehood in order to better secure political legitimacy.

- **Counter: Although cannot assess if in public interest this is due to separation of powers**

However a counterpoint would be that it is simply not within the institutional competence of the courts to pronounce on what the "public interest" is as such questions are beyond the remit of the courts, who "however eminent in the law, are not the ultimate repositories of human wisdom in answering the kinds of social, economic and political questions with which parliament and administrators have to deal" (***Tan Seet Eng***).

Aside from institutional competence issues there is also the matter of democratic legitimacy, and the courts are clear that they are in no place to sit as a "super-legislature" (***Yong Vui Kong***), issuing elite judicial diktats whilst being unaccountable to the wider public and so it is not for them to pronounce on what the public interest in. It is therefore submitted that the current balance in terms of allowing appeals on the falsity of the statement and not on whether it is actually in the public interest to curb it **strikes a balance** that reflects fidelity to the separation of powers, especially since the courts must "exercise restraint and take cognisance" of the fact that it exists as part of three "co-equal branches" (***Review Publishing***) and cannot overstep its own boundaries as much as it serves to ensure that other branches do not act ultra vires.

3.9.3 Burden of proof to set aside Part 3 direction is **on Statement Maker**– Effect of Chilling

Information Asymmetry: The burden of proof lies on the **recipient** of the Part 3 Direction to prove one or more grounds listed in s 17(5) upon which the Direction may be set aside ***TOC v AG 2021 SGCA [at 183]*** .It is difficult for "the applicant seeking to appeal the Minister's decision to prove that the impugned statement is true if it relates to governmental matters, because of "information asymmetry between the Government and individuals" (*Sylvia Lim, POFM Bill Parliamentary Debates)*. Unlike the Minister who is able to rely on the machinery of state to procure the relevant evidence of falsity, the maker of the statement has to contend with far more limited resources (***Ang Cheng Hock J in SDP v AG***). Such a situation raises the question of whether Parliament intended to place such an onerous burden on the statement maker. If that was parliament's intention, it should have been expressed clearly. The fact that it was not expressed clearly further buttresses the argument that the burden should fall on the Government.

Chilling Effect: the prospect or potential of being on the receiving end of a CD could lead to a chilling effect. A CD notice could have the effect of impugning the credibility of the author and the concern is that it could lead to self-censorship that would be participants in online debates refrain from raising their opinions or otherwise making valid comments for fear of governmental sanction. Indeed the same logic appears to have been accepted albeit in the context of political leaders where in *Jeyaretnam* it was articulated that if political leaders and their reputations were not strongly protected this may deter "sensitive and honourable men from seeking public positions" if "so wide an extension of the privilege" of free speech were accorded in cases of public officials, leaving them "open to others who have no respect for their reputation" (Jeyaretnam affirming Gatley on Libel and Slander). Likewise if free speech is not robustly protected, and the burden of proof lies on the

statement-maker to challenge a Part 3 Direction, this may deter would be critics from speaking out in the first place. Hence the Art 14 argument in SDP should be followed.

3.9.4 Efficacy of Part 3 Directions

However, there are questions as to the efficacy of a Part 3 Corrective Direction in particular, if a large segment of the population has already been affected by the falsehood. This is because a Part 3 Correction Direction only requires the one person who communicated the subject statement, to communicate a statement that the subject statement is false. As mentioned, "falsehoods can be rapidly disseminated in an unregulated internet sphere" (Ting Choon Meng SGCA 2017) and given how much of the internet is unregulated, information and falsehoods can be disseminated at an exhilarating rate. As such, by the time the maker of the subject statement makes the corrective statement, most or at least an "appreciable segment" of the public would have been affected by the falsehood. For example, a fake social media post of a man looking like PM Lawrence Wong smoking in public may have been forwarded or reposted many times on social media platforms. Such posts may subsequently be edited with deepfake technology for the man to look even more like Lawrence Wong himself. Despite the corrective direction being issued, netizens may not read the new statement by the subject statement maker in correcting his statement. In this sense, although a corrective direction is preventive in nature and that it does exert a chilling effect, the efficacy of the corrective direction itself does repair the damage done to society such as the loss of trust in public institutions

3.10 POFMA: Constitutional Application

Hansard: Shanmugam, *Second Reading of POFMA bill*: important to preserve trust in public institutions, and to prevent erosion of trust in the state / government institutions of the day.

Long title (Purpose of Act, *s 5 of POFMA*): prevent the communication of false statements; safeguard against information manipulation, and enable to enhance transparency of online political advertisements and for related matters.

Communication of false statements in SG, s 7(1) of POFMA: speaker in communicating **must not** have known or have reason to believe the false statement of fact, and the communication of that statement is **likely** to, inter alia, prejudice national security, public health, public safety, or public tranquillity, or incite **feelings of enmity, hatred, or ill-will between different groups of persons**. individuals who contravene s 7(1) may receive a fine not exceeding $50,000 or an imprisonment not exceeding 5 years or both (s 7(2)(a)).

- As will be seen, the latter half of this provision (especially the part on incitement of feelings) essentially refers to the consequence of **hate speech**, while the former half refers to the **act that causes it** (a false statement of fact) (***Chen Siyuan "Regulating Online Hate Speech" 2023)***

- ***Part 3 Directions***: Any minister may instruct the Competent Authority to issue a Part 3 Direction (s 10(1))
- ***Public Interest*, s 4**: "necessary and expedient"…

- ***Correction Direction*, s 11(1)**: requiring the person who communicated the subject statement to (a) put up a statement explaining how the subject statement is false or contains a false statement of fact; and (b) include a specific statement of fact.

In ***TOC v AG***, the court dealt with the issue, holding that the applicable framework was *Jolovan Wham*, but before applying the framework the court must first consider the question whether statements are false statements of fact for the purposes of Part 3 POFMA

- The court held that the question with POFMA orders is whether speech that is considered by the Minister to constitute a false statement of fact, but that has yet to be proven to be so in a court of law, is **nonetheless protected** from restriction by Art 14(1)(a) of the Constitution
    - under a POFMA order, the communicator of the subject statement is not required to modify the content of the communicated material; nor is it prevented from modifying, if it so wishes, the content of that material… the communicator .. remains free to speak in respect of the communicated material, save that it must also put up the specified correction notice in respect of that material
- under a POFMA challenge, the applicant may argue that the subject statement is true, per s 17(5)(b) Act:
    - In that case, if the court finds the subject statement to indeed be a true statement of fact, the correction order may be set aside pursuant to s 17(4) read with s 17(5)(b) POFMA
    - If the court finds the statement to be false, then the issuance of the CD would **not** have violated the right to freedom of speech of the communicator of the subject statement, given the view we have expressed on occasion that, arguably, this constitutional right might not apply to speech that has been judicially determined to be false
    - The applicant is the effective plaintiff because the Minister has already justified his decision in a sense via the corrective direction as justification for the order being given – so long as the applicant can show a *prima facie* case of reasonable suspicion, the evidential burden will then shift to the Minister to show that none of the grounds under s 17(5)(a) and/or s 17(5)(b) that are relied upon by the recipient of the Part 3 Direction are made out … SOP is balance of probabilities

3.10.1 The applicable framework to **determine falsity** in speech

- Determine the Minister's intended meaning in respect of the subject statement identified in Part 3 Direction
- Determine whether the subject material in fact makes or contains the subject statement (or statements) identified by the Minister in the Part 3 Direction
    - Interpret subject material objectively in its proper context, and as a matter of impression rather than of fine-grained or unduly technical analysis
    - Asking whether, on that approach to the subject material, there would be at least an appreciable segment or a particular class of the potential readership or audience of the subject material in Singapore who would construe it as making or containing the subject statement, or regard the subject statement as a reasonable interpretation of the subject material

        - While considering the subject material as a whole, the court should be alive to the likelihood that the particular part of the subject material that is said to be or to give rise to the subject statement may be taken out of context
    - Determine whether the identified subject statement is a "statement of fact" by an objective approach
    - Consider whether the identified subject statement "has been or is being communicated in Singapore", in the sense that it has been or is being published on or through the internet, and has been or is being accessed by at least one end-user in Singapore
- Once determined to be false, the *Jolovan Wham* framework applies to determine whether necessary or expedient to impose the restriction, and whether there is a nexus between purpose of the legislation containing the restriction and one or more of the Art 14(2) grounds
- Court held that it was entirely conceivable that words spread online could threaten the preservation of public order by undermining trust in the Govt and other key public institutions

3.10.2 Setting Aside CD

Upon receipt of a Part 3 Direction, the communicator of the subject statement may **apply to the Minister** under *s 19(2) of the POFMA* to **vary or cancel** the Direction. If the Minister declines to vary or cancel the Direction, whether in whole or in part, the communicator of the subject statement may **apply to the High Court** under ***s 17*** of the POFMA to set aside the Direction.

- Placing BoP on Minister from the outset opens the way for abuse

3 Grounds to Set Aside:
s 17(5) POFMA: The High Court may only set aside a Part 3 Direction on any of the following grounds on an appeal:
(a) the person did not communicate in Singapore the subject statement;
(b) the subject statement is not a statement of fact, or is a true statement of fact;
(c) it is not technically possible to comply with the Direction.

3.10.3 Hate Speech (covered by POFMA)? – No.

Interestingly, ever since POFMA was passed into law, it has yet to be deployed in regulating online hate speech. As of June 2022, it was invoked 38 times since it came into force in 2019, with most instances targeting the correction of COVID-19 Misinformation (POFMA Office 2022). As for online hate speech, they have been punished under the Penal Code instead. For example, s 298 punishes any persons who utters words with the deliberate intent to wound the racial feelings of any person. While POFMA mainly targets the communication of false statements of fact, the latter half of s 7(1) and especially on the part on "incitement of feelings of enmity, hatred, or ill-will between different groups of persons" targets the consequence of hate speech, while the former half refers to the acts that causes it (***Chen Siyuan "Regulating Online Hate Speech" 2023***).

4 Art 15 – Freedom of Religion

Freedom of religion

15.—(1) Every person has the right to profess and practise his religion and to propagate it.

(2) No person shall be compelled to pay any tax the proceeds of which are specially allocated in whole or in part for the purposes of a religion other than his own.

(3) Every religious group has the right —

(*a*) to manage its own religious affairs;

(*b*) to establish and maintain institutions for religious or charitable purposes; and

(*c*) to acquire and own property and hold and administer it in accordance with law.

(4) This Article does not authorise any act **contrary to** any general law relating to public order, public health or morality

Religious Group Rights

Art 16(2) every religious group has the right to establish and maintain institutions for the education of children and provide therein instruction in its own religion, and there shall be no discrimination on the ground only of religion in any law relating to such institutions or in the administration of any such law.

Art 16(3) no person shall be required to receive instruction in or to take part in any ceremony or act of worship of a religion other than his own

Minorities and special position of Malays

Art 152(1) It shall be the responsibility of the Government constantly to care for the interests of the racial and religious minorities in Singapore.

Art 152(2) The Government shall exercise its functions in such manner as to recognise the special position of the Malays, who are the indigenous people of Singapore, and accordingly it shall be the responsibility of the Government to protect, safeguard, support, foster and promote their political, educational, religious, economic, social and cultural interests and the Malay language.

Muslim Religion

Art 153 The Legislature shall by law make provision for regulating Muslim religious affairs and for constituting a Council to advise the President in matters relating to the Muslim religion.

4.1 Scope of Art 15

- Dealing with "right to profess", the court in ***Ong Kian Cheong*** dealt with the right in the context of Christians who distributed the Chick Publications tracts, and intentionally targeted Muslim people and sent the tracts to them
  - Court recognised that evangelism is a paramount Christian duty, but case law recognised that this right cannot be unfettered right

  - Distributing tracts with callous, denigratory, offensive and insensitive statements on religion with aspersions to race do have a tendency to cause social unrest thereby jeopardising racial and religious harmony
  - In this case, the Christian accused persons distributed the tracts intentionally, reflecting their intolerance, insensitivity and ignorance of delicate issues concerning race and religion
- But, why permit it if it creates problems?
  - **Thio** (2011) *Fides et Libertas*: The Journal of the International Liberty Association 127: as people, we are all proselytisers, seeking to convince our hearers to our side
  - **Fink**, *Critics of Conversion* (22 September 2003): asking people not to evangelise is to tell them to forsake their religion, which is impossible for the faithful
    - Supports evangelism as not about imposing worldviews on others, but convenience others of their truth
    - Argues that without evangelism, communities would remain isolated and separated, thus a sectarian balkanisation of sorts
    - Criticises those who seek to prevent evangelisation to be motivated by their own intention / agendas on their own
    - As to the argument that religion causes conflict, there are myriad of other reasons that justified atrocities
    - Extreme measures are the catalyst for more violence

4.2 How does our Constitution and Constitutionalism blend with religious freedom?

The Singapore model of religion-state relations has been described by the SGCA to be one of **"accommodative secularism"** (*Nappalli*) or **'quasi-secular'** (*Thio, Control, co-optation and cooperation*). This means that Singapore's brand of constitutional secularism is not anti-theistic, but framed along agnostic or benevolent lines, where the state does not favour or disfavour religions, nor favour irreligion over religion. Singapore's brand of secularism does not connote **state hostility** towards religion, but rather a **respectful attitude** towards religion (*MRHA White Paper, para 5; Thio, Religion in Public Sphere*).

[Quasi-Secular]
Thio argues that the Singapore polity may be better understood as being a quasi-secular state instead. This is because of the constitutional obligation under Art 152(1) of the government having to '*constantly care for the interests of the racial and religious minorities in Singapore*'. Furthermore, in recognizing the '*special position of the Malays*' as the 'indigenous people of Singapore', the government is obliged under Art 152(2) to promote and foster their political, educational, religious, economic, social and cultural interests and the Malay language (*Thio, "Control, Co-optation and Cooperation (2006)*).

[Theocratic elements]
In **Thio**, *Treatise* at pp 48-50, Thio considers if there are **theocratic elements** in Singapore's practice of secular democracy
- Such elements include religious institutions, religious law being the or a basis for state law, or religious affiliation being a basis for membership

- Additionally, in **Thio** (2006) 33 Hastings Constitutional Law Quarterly 197, Thio suggests that SG model is not fully secular
    - Art 152 requires the government **constantly to care for the interests of the racial and religious minorities in Singapore**, with 152(2) obliging the government to foster (specially) the Malay language
    - Art 153 also mandates legislature to make laws to regulate Muslim religious affairs and constitute MUIS to advise in relation to Muslim religion. AMLA also establishes Sharia courts with its own jurisdiction and whose decisions are generally free from judicial review
    - In a way, Muslims are given privileged treatment through government sponsored policies.
- **Examples**: Muslim marriages are <u>not subject to the Women's Charter</u> and <u>polygamous marriages are allowed</u>.

4.3 Racial and Religious Harmony

4.3.1 What is it and how do we promote / preserve it?

- K Shanmugam, "Staying United against the Terrorism Threat (Motion)", *Singapore Parliamentary Debates, Official Report* (3 October 2017) vol 113
    - Religious teachings must be aligned with national values, and if engage in discrimination it will not be acceptable
    - It is important for religions to coexist harmoniously, tied to the value of religious harmony
    - SG's approach is to build an identity that can accommodate diversity and celebrate different racial and religious identities, while creating a broad common space that all can share as Singaporeans and build sense of solidarity as one nation
- K Shanmugam, speech at International Conference on the Role of NGOs in Promoting Culture of Peace (13 October 2017)
    - To SG, religion is inextricable part of culture but not essential. State has active role to play in maintaining religious harmony and freedom
    - **Racial and religious harmony is a necessary** condition for flourishing, given our history and proclivities / sensitivities to racial and religious tensions. It is a potential faultline that can threaten public order. As such, the call for harmony is about peaceful coexistence, and to prevent divisive speech that, at worst, denigrates those of other beliefs. It is this extremely cautious approach to divisive speech that leads to the MHA's role in, for example, banning foreign speakers who do not understand / treat seriously the values here
- With 2019 amendments to MRHA, the statute addresses new threats such as foreign influence over local religious organisations and enhance ministerial powers to deal with the impact of the Internet as a vehicle for religious disharmony
    - Government can now **issue restraining orders** to anyone who threatens religious harmony. Lastly, the Community Remedial Initiative introduced which is a new tool focused on restoration and rehabilitation
        - Restraining orders issued under ss 8 and 9 now take immediate effect when issued, rather than 14 day notice period, enabling Minister to act swiftly

- Minister can also require an offensive post be taken down, but must give a copy of the restraining order to the relevant religious leader or group who can still make representations to the Presidential Council for Religious Harmony (PCRH)

- ***However***, the problem of religious speech on the Internet is speech intended to cause indignation, a political tool (**Cherian George**)
  - Such speech, which he terms hate spin, is a performative act, righteous indignation that incites anger deliberately – thus, if the law is used against such speech, that is the intended outcome
  - This results in the law being a poor instrument to deal with the issue due to inherent asymmetry in the offence
  - Singapore's approach may appear to be working, as it results show a citizenry that has embraced and internalised the vision of a harmonious society. Thus, when the words that are inflammatory appear, there is an immediate response to censure / police the words, which ironically is the intended outcome
  - Author's view is more cynical: Conditioning the public to internalise a low threshold for insult and to reflexively reach for the law helps to perpetuate the sense of vulnerability, the distrust in social conciliation and the dependence on strong government that have served well as ideological supports for the PAP's brand of illiberal democracy

4.4 MRHA

4.4.1 What is MRHA?

While MRHA is a form of **hard law** in form, the MRHA also contains elements of soft law that is persuasive in its orientation. While religious harmony is used as a controlling legal principle to empower the government to issue pre-emptive restraining orders, in practice, no restraining order has been issued by the government. Hence, the MRHA is not strictly enforced and is preventive in nature.

Purpose: The original rationale of the MHRA was ostensibly to "prevent the mixing of religion and politics", and "to prevent religious leaders from using their offices as a platform for mounting political agitation and making inflammatory political speeches" (***TT4 at [18.106]***); it was pre-emptive in nature (*Goh Chok Tong, Parliamentary Debates 1990*). It was motivated by instances of aggressive proselytization that had made people from other religions uncomfortable and offended.

2019 Amendments: The 2019 amendments were motivated by the following changes: (1) **rising religiosity**; (2) **increasing violence** from conflicts fuelled by religious hate speech; (3) **Internet/social media**; and (4) **foreign interference**. These created the risk of religion being exploited by bad actors and being used to mobilise hatred and violence, destroying social cohesion.

4.4.2 Good and Bad of MRHA

GOOD: MRHA Calibrated approach, sensitive to Offender's Position.

- The MRHA in its amended form provides for a more nuanced restriction to religious liberties sensitive to the status and platform that the offender has. For example, *s 17F MRHA* makes a distinction between religious leaders and religious followers who incite hatred or ill-will against another religious group.
    - For **religious leaders** the threshold for an offence appears to be **lower** in that one must (1) knowingly incite hatred (2) the subject of that leader's speech is distinguished by religion and (3) the leader must have knowledge that feelings of hatred or ill will are likely to arise (s 17F(2)(a)-(c)).
    - However, if one is **not a religious leader**, an additional fourth element that the feelings of "hatred, ill-will or hostility … of the target group" must "threaten the public peace or public order in Singapore or any part of Singapore" (s 17F(3)(d)) must be fulfilled.

BAD: Subjective Standard of Feelings ➔ Hate Spin + Speaker is hostage to victim's tolerance levels

- As a starting point, it is an offence for a person to engage in conduct that incites "**feelings**" of hatred, ill-will and hostility (*s 17F(1)(a)*). Additionally, a Minister may issue a restraining order against any religious leader or person who committed or is **likely** to commit an act that causes "feelings" of hatred, ill-will or hostility between religious groups (s 8(1)).
- It is submitted that a **subjective standard for "feelings"** would (1) hold the speaker **hostage** to potential irrational sensitivities of segments of society as different persons have varying levels of tolerance, acceptance and sensitivities towards religious speech. (2)
- It is also submitted that a subjective standard potentially engenders "**hate spin**" (*Cherian George, "Hate Spin: The Manufacture of Religious Offence..."*) which refers to the deliberate use of outrage and offence to mobilize political support, by stirring up or pretending to be outraged by supposed insults to religion per se, which creates a chilling effect on public discourse on religious issues, which is undesirable in our democracy.

BAD: Lack of Proper Safeguards

- Notably, the Minister may issue a restraining order under *s 8(1)(a) of the MRHA* even if the Minister is merely satisfied that the person is only "likely to commit" an act that causes feelings of hatred, ill-will or hostility between different religious groups. Such an order is **not amenable to judicial review** per s 18 of the MRHA, thereby ousting the jurisdiction of the court to review such orders. While it may be argued that such issues pertaining to religious harmony should be non-justiciable as a "secular court deciding on religious disputes" would be "explosive" (John Chen, MRHA second reading 1990), the MRHA does not have adequate safeguards.

- The **only check on the restraining order is the president** (s 12 MRHA r/w Art 221) which states that every restraining order shall cease to have effect unless it is confirmed by the President within 30 days from the date the Presidential Council for Religious Harmony's recommendations are received by the President. The President is expected to act in his discretion if the advice of the Cabinet is contrary to the Council's recommendation. However, if the Cabinet and Council are in agreement, the President does not provide an independent safeguard. This places much weight on the independence of the PCRH.

- **Defence for PCRH**: As Council members are majority representatives of the major religions in Singapore, and distinguished themselves in public service or community relations in Singapore, academic ***Thio*** believes this reflects the cooperative model envisioned in MRHA whitepaper – symbolises the trust in the maturity of the religious leaders and consequently, participation from the bottom of the system. It has the potential of being a tension diffusion mechanism.

GOOD: MRHA actually conciliatory in practice

- However despite the lack of safeguards and also a possibly low threshold to make out offences post-amendments, the restraining orders under the **MRHA have never been used since 1990** and thus it could be argued that the wide discretion and powers to use these restraining orders is **more symbolic**, and should be seen as bolstering existing legal safeguards through the courts and other legislation like the Sedition Act , the Undesirable Publications Act etc and rather heightening the "signalling effect of the MRHA in response to the increased weaponization of religion" (Shanmugam "Second Reading MRHA").

4.4.3 Should the MRHA be subject to judicial review?

Ouster clause (s 18 MRHA) currently insulates restraining orders from court challenge. Two competing positions in 2019 parliamentary debates:

- **FOR** judicial review (*Murali Pillai*): JR focuses on process, not replacing political judgment. Minority interests are not adequately protected by electoral accountability alone. Procedural safeguards (e.g., in camera hearings) can address concern about public proceedings inflaming tensions. Constitutional supremacy under Art 4 requires judicial oversight where Art 15 rights are infringed.

- **AGAINST** judicial review (*Shanmugam*): Public trial processes can deepen fault lines and make offenders into 'martyrs.' Religious harmony questions are polycentric — legislators and the executive are better placed to judge. Existing non-judicial safeguards: Presidential Council of Religious Harmony (PCRH) can review restraining orders and make recommendations to uphold or cancel them.

The broader question is **what the approach toward religious issues** ought to be?

- **Thio** (2012) Oxford Journal of Law and Religion 1 at 14-15: SG has a phenomenon she ascribes as "relational constitutionalism", a form of constitutionalism where inter-religious disputes are reconciled. This method asks for non-legalistic methods, preferring soft, non-binding hortatory norms. It draws form the idea that when dealing with religious issues, we are dealing with Emotional and not Rational Men
- thus, if fear of the law cannot be the basis for religious harmony, the solution must be in these non-legalistic methods.
- As illustrated in **Thio**, "*Irreducible Plurality*, *Indivisible Unity*" (2019) German Law Journal 1007, the performative politics entails almost a ritual, where parties take centre stage and reconcile publicly, with the legal framework and government receding and only re-emerging

after the settlement, which sustains the perception that government is not acting in a heavy-handed interventionist manner, which can alienate faith communities
    - optics and the impression of religious harmony is crucial to restore harmonious equilibrium
    - process facilitates an environment where social trust and strong relational bonds can be cultivated through dialogue and diplomacy
- s 16H MRHA also promotes this idea of "rehabilitation", with the offender being given an option to enter community remedial and ideally correct their offending perspectives
    - communal vs individual aims?
    - Voluntary in that the offender can reject the offer to engage in CRI
    - How should the CRI be administered?

4.5 The role of judiciary in religious matters

4.5.1 What is religion?

It first entails – what is a religion? There is no constitutional or statutory definition of "religion".

- As identified in **Adler**, "*Religion*" (1992), one working definition of religion could be that:
    - To a man of faith, Religion is much more than the acceptance of a creed. It means acts of piety and worship, recourse to prayer, partaking of sacraments, observance of certain rituals, performance of sacrifices and purifications
    - To one who is not religious, religion is conceived as nothing more than a set of beliefs which men have adopted, restricted to merely one part of life.

- [**Expert opinion to ascertain Religion Practices**] In ***Vijaya Kumar***, the court had to determine what qualifies as a 'religious practice' – which would lead into the broader question of what a religion was given the prevalence of practices
    - In the case, a **Hindu expert was called** by the appellants, who testified to impugned practice. The court accepted his expert opinion, despite his unconventional expertise, as he was involved with it and could at least speak with a fair measure of authority on the subject matter.
    - Courts **should not adopt a legalistic approach** to who could be an expert in religious matters, and even if practices vary, unless they are completely not part of religious practices, they should be permitted.

- [**Nature of a Religious Right**] was raised in the case of ***Nappali v ITE***
    - "Religion" referred to Art 15 is not about a system of belief in one's own country but about a citizen's faith in a personal God that can sometimes be described as supernatural being.
    - Appellant was a JW, refused to take the pledge or sing National Anthem and thus dismissed by ITE. He sued for unfair dismissal, arguing that he had informed the ITE interview panel of his refusal to salute the flag etc and that their acceptance of this was part of the employment contract, which his dismissal breached. He further argued that ITE's policy requiring participation in the pledge and anthem ceremony was unconstitutional.

- Court held that religious rights are Constitutional, and may not be contracted out. That said, the issue was whether the acts in question had religious significance
- Court held that taking pledge and nation building acts were secular, since they were prescribed by Constitution which was secular
- Additionally, court said that religious belief in Singapore is a narrow definition, as having a broad view could lead to situations where one's religious symbols become offensive to another person
- Court at [28] expressly views JW as **not** a religious belief, albeit a strong **philosophical choice**
  - **My concern**: Rationale of "secular tone" and philosophical choice is unpersuasive. The fact that the flag is not inherently a religious symbol, or that the anthem is not a "prayer hymn" (as distinguished in Donald), does not preclude such practices from engaging religious conscience. For some believers, acts of pledging allegiance or expressing reverence toward state symbols may conflict with core doctrinal commitments—such as the prohibition against worshipping false kings or sovereigns.
  - Thus, reiterating the concern: the court did not deal with what a religion is or what weight to give a person's belief, rather simply prejudging the issue
- Importantly, the court held that as the Constitution is a secular document, and guarantees religious freedom, it cannot simultaneously be a violation of religious rights

- In contrast, in the Philippines case of ***Ebralinag***, similar case where JW students were expelled for refusing to salute the flat etc which were mandated by the Act
  - There, the SC held that religious freedom is a fundamental right in the Constitution, which consists two aspects**: freedom to believe and freedom to act on one's belief**. The first is absolute so long as the belief is confined within the realm of thought, while second is subject to regulation where the belief is translated into external acts that affect the public welfare
    - The court was **more sympathetic to the applicants**, arguing that when general laws conflict with scruples of conscience, exemptions ought to be granted unless some 'compelling state interests' intervenes
    - By requiring the petitioners to participate in the flag ceremony, the State has declared *ex cathedra* that they are not violating the Bible by saluting the flag. This is an unwarranted intrusion into religious beliefs, which tell them the opposite. The State has no competence in helping or telling them how to interpret or derive meaning from their religious beliefs
  - This adoption of a **subjective method**, giving primacy to beliefs of applicants, is more lenient on what a religion is

- [**Proportionality Approach** cf. categorical in *Colin Chan/Nappali*] In ***Vijaya Kumar***, perhaps a new balance was struck by the HC

- While police showed legitimate public order concerns, the appellants argued that the extent to which the police order restricted their religious freedom had to be assessed. The court appeared to engage in a evaluation of the substantive content of the order, evoking a proportionality-based balancing exercise
- In this regard, a **stronger measure of what a religious belief was afforded**, and the extent to which the freedom was curtailed was also considered
- This jurisprudential development would give in theory greater primacy to religious protection – even if the act fell within the 3 categories, and would automatically be subject to limits per *Nappalli* or *Colin Chan* (1994) and (1995), the HC in *Vijaya Kumar* has heralded the possibility to considering the extent of blanket ban vs targeted restriction and still afford the right to be exercised, curtailed but not completely curbed

4.5.2 Propagation may lead to Civil Strife; Must be controlled.

Refers to the freedom to **spread religious knowledge** which is in effect "**religious free speech**" (*Treatise*) that benefits the individual seeker and serves the missionary mandate integral to many religions. The objective of religious propagation is to **persuade voluntary changes to religious belief**; thus propagation is closely tied to conversion and the right to profess a faith, which includes the right to change faiths voluntarily.

Religious propagation **may upset religious sensitivities or disrupt religious communities** and involve "a clash between rights" (Lerner, Religion, *Secular Beliefs and Human Rights*).

- In ***Ong Kian Cheong***, a Christian couple was charged with sedition for sending tracts which were intended to convert Muslims that they had identified through names on residential directories to Christians, but consisted of material that **denigrated Islam as a false religion** which upset various Muslim recipients. The case was treated **primarily under the Art 14 free speech** guarantee even though it implicated ***Art 15(1)*** specifically the right to propagate one's religion.
  - In 2009 *PM Lee Hsien Loong* highlighted *Ong Kian Cheong* during his 2009 National Day Rally speech as an "**extreme**" instance of the negative effects of insensitive and aggressive proselytization which can upset religious sensitivities of various communities, possibly endangering social harmony. Such aggressive proselytization was characterised as situations where "you push your own religion on others and **cause nuisance and offence**".

4.5.3 "Public Order" too broad? ≠ National Security

As an evaluation, a particularly striking feature of Yong CJ's reasoning in ***Colin Chan*** is the apparent equation of "public order" with "national security," treating the phrases "threat to national security" and "contrary to public peace, welfare and good order" as interchangeable. With respect, this conflation is both **confused and likely erroneous**.

As articulated in ***Tan Boon Liat***, "public order" denotes the "tranquility and security which every person feels under the protection of the law, a breach of which is an invasion of the protection which

the protection of the law affords." This is qualitatively distinct from national security, which refers to graver threats of the kind that justify the exercise of special legislative powers, including anti-subversion legislation. Tellingly, the same language used in Colin Chan to characterise JW pacifism appears in the anti-subversion provisions of Article 149, which contemplates acts "prejudicial to the security of Singapore." It is, however, difficult to characterise a minority religious group's conscientious refusal to participate in national service as an existential threat of that magnitude.

The result is that "public order" in Colin Chan was conflated with national security and, in effect, judicially supersized to carry the same normative weight as national security considerations (*Treatise*). This conflation becomes even harder to sustain upon closer examination of the constitutional text: Article 149 does not include Article 15 within its list of liberties from which it may derogate with immunity. The equation in Colin Chan therefore lacks textual foundation and forecloses the kind of nuanced, proportionate balancing exercise that the protection of minority religious rights demands.

4.5.4 Whether a policy like NS is 'sacred' or 'secular'? **Old categorical approach.**

In ***Nappali***, the court merely declared that because the Constitution adopts accommodative secularism, and that policy like NS is by nature a secular and fundamental tenet and thus cannot bear religious significance to engage Art 15. **This approach, in my opinion, is flawed**. In holding a policy secular without engaging the claimant's Art 15 religious belief, Art 15(4) can render a key constitutional right meaningless or even reads unenumerated rights into our constitution.

- In Yong CJ's reasoning in ***Colin Chan***, it is concerning that he elevated of national service to a status superior to enumerated constitutional rights, by insisting that "anything which detracts from this should not and cannot be upheld". Fundamentally, this formulation sits uneasily with the SGCA's own warning in ***Yong Vui Kong*** against reading unenumerated rights into the Constitution for fear of the court acting as a "**super-legislature**." National service, however vital as a matter of policy, is a creature of statute subordinate to, not co-ordinate with, constitutional rights (*Thio, "The Secular Trumps the Sacred" (1995)*).
- Similarly in ***Nappalli*** the court appeared to try to balance the national unity and freedom of religion but ultimately ended up preferring one over the other, holding unequivocally that "the Ministry of education is entitled to take reasonable steps to ensure that future generations of Singaporeans understand the importance of preserving the sovereignty, integrity and unity of Singapore" despite *Ong Ah Chuan*'s articulation that the Constitution be **interpreted to give full effect to fundamental liberties**.

Instead, it is suggested that the courts should acknowledge the claimant's rights before balancing it with the derogation grounds within Art 15(4). As *Thio (1995)* observes, safety and security are not ends in themselves but are "facilitative of other ends like individual self-fulfilment and the ability to make choices in a stable framework," and the "beneficiary of fundamental liberties is the individual rather than the state." Essentially, this approach does not deviate in prior judgements, but it will enable the courts to engage with a more principled basis instead of merely denying a right prima facie.

4.5.5 Policy Cases involving Religion

- **E.g. Military Uniform**: In ***Pte Chai Tshun Chieh v Chief Military Prosecutor***, the refusal of the AP to put on military uniform, draw rifle and engage in military training constituted a wilful disobedience of a lawful order under s 17(1) of the Singapore Armed Forces Act. **Held** : JWs were "engaging in conduct which was **prejudicial to national security**".
    - Conscientious objection does not apply in Singapore and national service is a "secular issue" subject to government laws.

- **E.g. "Tudung Controversy"**: Education policy of SG government in public primary schools is that students should wear the same uniforms, as a reminder of "the **common ties** that bind us in a common destiny" (***Straits Times : Lim Chee Hwee "Uniform Reminds Students of Common Ties"***) for the purpose of promoting integration in a common space between different races and religions to promote a shared national identity. In Feb 2002, 4 primary schoolgirls were suspended for flouting common uniforms policy by wearing tudung or Muslim headscarf to school. It was argued by foreign human rights organisations like Karamah and local Muslim group Fateha that the policy violated religious freedom and practice.
    - In response, the Government argued that Sikhs can wear turbans "because of a colonial legacy that is one of the historical anomalies of a young nation", pointing out that Sikhs had to compromise as they cannot carry kirpans (daggers) which is part of their religious dress. The fear was that allowing religious dressing in public schools would be alienating, heighten differences and increase demands for special treatment such that schools would "become polarised along racial and religious lines" (***Goh Chok Tong "By Barring Religious Garb" New York Times***). While this issue was not litigated, it demonstrates from the Government perspective how "public order" construed broadly as entailing the protection of national integration policies, as defined by the Government, would be raised as a restraint on religious freedom.

4.6 Relational Constitutionalism Evaluation (Soft Law)

As an extension to the accommodative aspect of secularism that Singapore espouses, Singapore also adopts a model of **relational constitutionalism** in which rights are not oppositional to the common good. Conflicts are thereby resolved **dialogically with a view to reconciliation**. This is because a rigid insistence on rights may breed animosity and thwart the restoration of relationships between estranged community sectors (***Thio "Secularism With a Soul Model" 2012***). It is suggested that we align with how the aftermath of the ***Lighthouse Evangelism*** controversy was handled.

- In that case, a video placed on a Christian church website offended Buddhists and Taoists. Pastor received a warning from Internal Security Department. Notably, the matter was addressed not by prosecution before courts, but through public censure, eliciting a public apology to the relevant religious leaders.
    - Argue authenticity: There is still a risk that an offender is merely apologising and complying with terms merely to avoid prosecution (s 16H(6)) and is not doing so out of a genuine sense of remorse

However, not all cases should have such leniency. Perhaps, an intransigent insistence on rights should be applied in the most egregious of offences such as ***Benjamin Koh*** where 2 bloggers were prosecuted under ***s 4(2) of the Sedition Act*** for posting anti-Malay and anti-Muslim remarks as well as Amos Yee, where another blogger was prosecuted for burning the Quran.

Arguably, a relational approach is better at rebuilding social trust as it assumes that individuals are not atomistic in nature, but inherently inextricable from a web of social relations, directing attention not only to rights as important legal safeguards, but also as part of a scheme to "restore the constitutional commitment to racial and religious harmony" (***Thio 2012***).

5 Art 12 – Equality

Equal protection

12. — (1) All persons are equal before the law and entitled to the equal protection of the law.

(2) Except as expressly authorised by this Constitution, there shall be **no discrimination** against **citizens** of Singapore on the ground only of religion, race, descent or place of birth in any law or in the appointment to any office or employment under a public authority or in the administration of any law relating to the acquisition, holding or disposition of property or the establishing or carrying on of any trade, business, profession, vocation or employment.

(3) This Article **does not invalidate or prohibit** —

(*a*) any provision regulating personal law; or

(*b*) any provision or practice restricting office or employment connected with the affairs of any religion, or of an institution managed by a group professing any religion, to persons professing that religion.

5.1 What is the idea of "equality", and is it a good thing?

As a preliminary, in ***Lim Meng Suang*** [2015], the SGCA acknowledged that the very concept of equality is **'thorny'**, because it is desirable in theory, but **struggles with the factual reality** that inequality is an 'inevitable part of daily life'. It is therefore **unclear** how the law is to ensure a basic level of equality applying the principle of equality generally, and to determine which situations such a level of equality should be legally mandated in.

[View: Equality Not Relevant] ***Peter Westen***, "*The Empty Idea of Equality*" (1982) agues that equality is an empty, entirely formal concept with no substantive moral content of its own, that does not aid in analysis of legal problems. 3 main reasons:

- [**Relative**] Firstly, equality is about **relative deprivation**, in the sense that the deprivation of something is assessed in relation to something else. Hence, equity is comparative in nature and does not have any substance to itself. Hence to say that "two people are equal and entitled to be treated equally is to say that they both satisfy the criteria of a governing rule of treatment" but yet equality simpliciter says "nothing at all about the content or wisdom of the governing rule"
- [**Tautologous**] Secondly, equality is about treating alike things alike, but defining 'people who are alike' and **'like treatment'** necessarily requires a moral standard, as no two people are really alike. This also results in equality being entirely circular – people who are alike are people who should be treated alike. Without moral standards, 'equality remains meaningless'.
- [**Derivative**] Lastly, equality is **derivative of rights**. Equality analysis logically collapses into rights analysis (see *Carey v Brown*), hence any analysis of legal problems in terms of equality is redundant.

Possible Counters for Equality:

1. Ensures some **degree of consistency** in the concept of "like should be treated as like" and hence places the burden of proof on those wishing to depart from the rule.
2. By requiring the government to apply laws equally, we can **prevent the arbitrary exercise of discretion** which can render equality meaningless (SoP).
3. ***Even if*** equity has no clear substantive content, there is formal equality, which can be determined by the **reasonable classification test** (RCT) in the context of Singapore. RCT supplies the governing rule (intelligible differentia + rational relation) that gives equality its content. Albeit the **threshold is low** since no inquiry into substantive content.

5.2 What is the scope of article 12(1)? How courts interpreted the two clauses?

12.—(1) **All persons** are **equal before the law** and entitled to the **equal protection of the law**.

5.2.1 View 1: **No difference** per Lim Meng Suang

Notably, the SGCA in ***Lim Meng Suang*** held that the two limbs of Art 12(1) are no more than **declaratory statements of principles** that offer no specific legal criteria to guide the courts in assessing constitutional validity. Consequently, the SGCA held that any statute must nevertheless pass (threshold) the 'reasonable classification' test before it can be found consistent with Art 12. This effectively treats both limbs as a unified standard. Even in deference, the SGCA rejected the test of illegitimacy directed at the object of the impugned legislation, in that courts are separate from the legislature; and without mandate to amend laws, **courts cannot usurp legislative functions** or become a "mini-legislatures".

That said, a counterargument emerges from ***Tan Seng Kee***: determining the constitutionality of legislative and executive acts is clearly and exclusively within the judicial purview. Where legislation unduly encroaches upon constitutionally protected rights, courts, as **guardians of fundamental liberties**, should retain the power to scrutinise and strike down such legislation. This reflects a functionalist conception of the **separation of powers**, in which judicial review operates as a meaningful check on the other branches of government.

[**Extra**] Indeed, the court's proper function is confined to statutory interpretation and the development of common law and equitable principles. Permitting courts to strike down legislation on the basis of an illegitimate object would, absent clear legal standards, cross that boundary.

5.2.2 View 2: **Chan Sek Keong** → Limb 2 applies **if** Limb 1 applies.

Further critics on *Lim Meng Suang*'s holding on Art 12(1)'s RC test can be evaluated on **Chan Sek Keong**'s 2019 "*Roads Not Taken*" paper. Chan observes that the RCT was adopted by Singapore courts largely by following Malaysian precedent, which in turn adopted Indian decisions interpreting Art 14 of the Indian Constitution. Art 14 is, however, framed in negative terms, which is structurally different from Art 12(1) of the Singapore Constitution. This genealogy was adopted without adequate consideration of those structural differences.

On this basis, Chan argues that Art 12(1), though declaratory in form, **must be given effect as a substantive right** rather than an aspirational ideal. The RCT, he submits, was designed for the second limb's equal protection inquiry and is ill-suited to give full effect to the first limb's right to equality before the law. The absence of concrete legal principles in Art 12(1) does not render the right unenforceable however; rather, **it reflects a constitutional delegation to the courts** to formulate the applicable standards. This aligns with the functionalist conception of the separation of powers: it is the courts' duty to interpret the Constitution and develop legal principles that give meaningful content to constitutional rights, including as a safeguard against undue encroachment by the legislature and executive.

[**Extra**] Chan draws a structural distinction between the two limbs:

- The **first limb** confers a first-order constitutional right to equality before the law, enjoyed by all persons as against the state.
- The **second limb** confers a second-order entitlement to equal protection, which is **contingent on the existence of legislation that grants rights or imposes liabilities differentially**. The question it raises is whether the state is justified in enacting a law that treats people unequally, with reference to whether a legitimate state interest is advanced by that differentiation.

5.3 Article 12(1) Case Law History

- In ***Eng Foong Ho v AG*** [2009] 2 SLR(R) 542, the CA dealt with an alleged unconstitutional acquisition of land against a temple.
    - Argument was that the temple was not accorded equal treatment as other religious institutions located in the same proximity were not acquired by the authorities
    - As to the equality in result, the question is whether there is a **reasonable nexus between state action and the objective to be achieved by law**. Law is clearly set out in *Ong Ah Chuan*: equality before the law and equal protection of the law require that **like should be compared with like**… Art 12 prohibits laws which require that some individuals within a single class should be treated by way of punishment more harshly than others; it does not forbid discrimination in punitive treatment between one class of individuals and another class in relation to which there is some difference in the circumstances of the offence that has been committed
    - Court held no discrimination other than in the consequence, and no allegation of arbitrary action on the part of the Government. Acquisition was proceeded with in good faith with grounded rationale.
    - An executive act may be unconstitutional if it amounts to intentional and arbitrary discrimination

- [**Prosecutorial Discretion**] In ***Ramalingam Ravinthran***, applicant was charged with drug trafficking for full amount of weight of drugs (death penalty), while partner charged with lesser amount than found and thus no death penalty.
    - Question was whether the AG's prosecutorial discretion exercised in a manner that violated article 12?
    - Prosecutorial discretion permits the **Prosecution to take into account many factors** when bringing the charge, including available evidence, public interest considerations, personal circumstances of offender, offender's degree of capability

etc. there must be no bias on the Prosecution's part and irrelevant considerations not taken into account

- The court held that it was **on the applicant to prove** that the there was a breach on the prosecution's part in a *prima facie* abuse of prosecutorial discretion, only then must the Prosecution justify the breach or be held to have been in breach
- How does article 12 apply to penal legislation? it was concerned with equal punitive treatment for similar legal guilt. So, while the offenders of a class all fulfil the specified ingredients of the same criminal offence, **there may be substantial variations of moral blameworthiness among offenders**. Just because the legislation does not distinguish based on moral blameworthiness is not reason to render such legislation in breach of art 12(1).
  - In contrast, Prosecutorial discretion must consider not only legal guilt of offender and his moral blameworthiness, but also the gravity of harm caused to the public welfare, and a myriad of other factors such as sufficiency of evidence, cooperativeness of accused with authorities, whether willingness to testify against co-offenders, or even compassion
- That some differentiation has occurred in preferring charges does not necessarily mean that Prosecution has not given unbiased consideration to the offender or offenders in question, or that Prosecution has taken into account irrelevant considerations – *prima facie* Prosecution has carried out its functions properly.

- In ***Lim Meng Suang***, CA reiterated the test for determining the constitutionality of a statute under art 12 is the "reasonable classification" test. It is not engaged if the impugned statute is not discriminatory in the first place. Thus, the first (of a **three-stage inquiry**) stage of the test asks simply if the law is discriminatory. Strictly speaking, the reasonable classification test comprises only two closely related stages.
  - **Is the law discriminatory?** If it is, it will be good law if:
    - The classification is founded on an intelligible differentia which distinguishes persons that are grouped together from others left out of the group; and
    - The differentia has a rational relation to the object sought to be achieved by the law in question. The classification may be founded on different bases such as geographical, or according to objects or occupations and the like. What is necessary is a **nexus between the basis of classification and the object of the law** in question
  - The court also discussed the theoretical underpinnings of the test:
  - The "reasonable classification" test does not give effect to any normative or analytical impetus needed to address the question of a potential basic level of equality
    - The RC test provides a useful and important threshold, without which any attempt to determine if article 12 has been violated cannot occur. If a particular statute cannot even pass legal muster under the test, it means that the statute is so legally illogical and / or incoherent that it would be repugnant to any idea of legal equality to begin with
    - A rational relation means no need to be complete or perfect, but it does mean that the purpose and object of the statute must be **determined before** the rational relation must be demonstrated

        - Threshold nature of the test balances the need to accord as much legislative leeway as possible to the Legislature against the need to ensure that laws which are patently illogical and or incoherent do not pass legal muster. Test simultaneously **prevents courts from becoming "mini-legislatures"**
    - **Test is not purely procedural**, comprises substantive elements. Court does recognize that the RC test in itself does not really aid the court in ascertaining whether or not the concept of equality under Art 12(1) has been violated
    - **CA also rejected another potential test of illegitimacy** – certain types of law are not the primary remit of the judiciary (*ie* statute law), thus the courts must be circumspect. If courts have power to declare a statute unconstitutional because the object of that statute is illegitimate would precisely be to confer on the court a license **to usurp the legislative function** in the course of becoming a "mini-legislature"
        - To argue that the court has the duty to declare a statute unconstitutional if its object is illegitimate does not explain how the court can find the statute illegitimate to begin with – it would amount to receiving by judicial backdoor what they cannot obtain by legislative front door
        - However, if there are serious flaws with regard to intelligibility of the differentia embodied in a statute, or clear disconnect between that differentia and purpose and object of the statute, the court will hold that the statute does not pass legal muster under article 12(1) – a limited element of legitimacy is embodied in the RC test, but court reiterated that it is **not** an additional test
    - ***Wednesbury* standard of unreasonableness was also not endorsed** in the context of a challenge to the constitutionality of a statute
    - As to the two limbs of article 12 – equal before the law and equal protection of the law – the court viewed the entirety of 12(1) as declaratory and aspirational in nature, and thus both limbs are covered by the RC test
    - As for presumption of constitutionality, the presumption does not operate as strongly to pre-Independence laws as it would compared to those promulgated in the context of an elected legislature which would have fully considered all views before enacting the laws concerned.

- In ***Tan Seng Kee***, the CA made a number of determinations as well as the constitutionality of s 377A.
    - **Parliament's actions not presumptively constitutional**, and doctrine of separation of powers is premised on the notion that the 3 branches of government are co-equal – deference to other branches where constitutionality is being challenged will be contrary to the doctrine and portend the institutional irrelevance of the judiciary
    - In *obiter*, the constitutionality of s 377A was considered. Court considered there is no presumption that every differentiating measure enacted bears a rational relation to the object sought to be achieved; it would be relying on a presumption of constitutionality to meet an objection of unconstitutionality and essentially presume the very issue being challenged
    - The *Lim Meng Suang* approach has been in application ever since – the RC test. But **one version emerged in *Syed Suhail*, the difference in the two being**:

- Whether at the first limb of RC test, the court can consider the reasonableness of the differentia embodied in the statutory provision concerned
  - Under *Lim Meng Suang* at first limb, whether a differentia is "so unreasonable as to be illogical and/or incoherent" goes beyond whether that differentia is capable of being understood or apprehended by the intellect or understanding
  - Under ***Syed Suhail* in contrast**, the first limb of the "reasonable classification" test is never concerned with the reasonableness (or lack thereof) of the differentia in question, even in cases where the differentia is extremely unreasonable. Instead, the first limb of the "reasonable classification" test is only concerned with identifying the purported criterion for the differential treatment in question. It is only at the second limb of the test that the court considers "whether the differential treatment [is] reasonable"

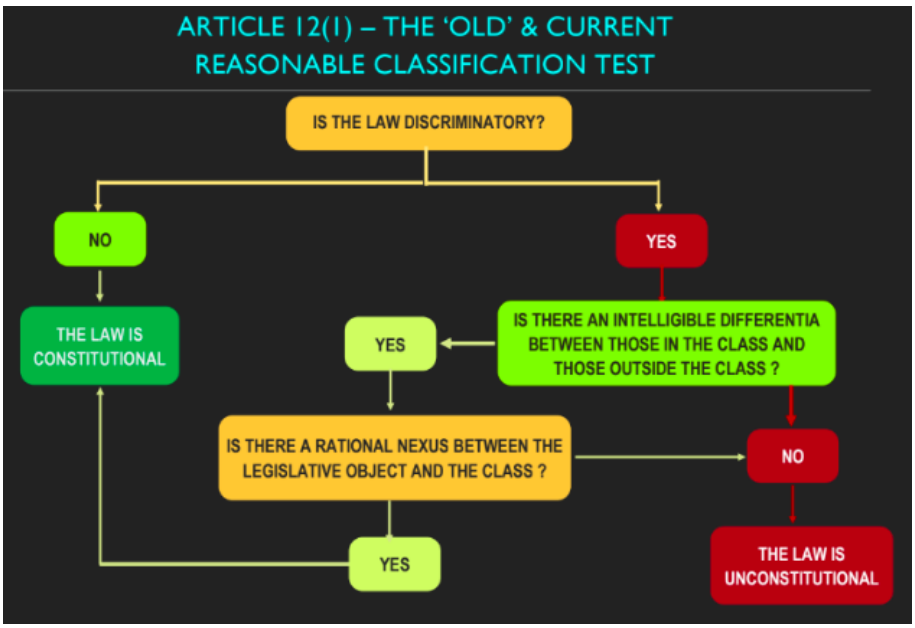
- Under RC test, **no need for perfect relation or complete coincidence** between differentia embodied in the legislative object of statutory provision. But *Syed Suhail* approach emphasises that while that relationship need not be perfect, it also must not be so tenuous as to be incapable of withstanding scrutiny
- **Court did not determine which test is preferable, however**

- In ***Syed Suhail v AG***, where death row inmate (applicant) sought leave on President's decision, acting on advice from Ministry of Home Affairs, to schedule his execution earlier than another inmate sentenced before him, alleging unconstitutional invoking Art 12(1) equality since they were "equally situated" (both on death row, both denied clemency on the same day).
  - Held: No arbitrary or irrational discrimination. The order of executions is not strictly determined by sentencing date. The State may consider multiple operational and legal factors, such as:
    - Status of appeals or pending proceedings
    - Clemency petitions
    - Logistical and administrative considerations

- In ***Xu Yuan Chen v AG***, where AG sought leave order for Terry Xu (TOC editor) for contempt of court in posting FB post alleging judicial misconduct – risk of undermining public confidence.
  - AG sought committal against Xu but not O'Connor (the author, resident overseas). Xu alleged breach of Art 12(1). Issue: **Were Xu and O'Connor "equally situated"?** Holding: SGCA dismissed appeal.
  - Applying two-step ***Syed Suhail*** test, court found Xu and O'Connor were NOT equally situated because: **(1) difficulty in investigation/prosecution/enforcement** against O'Connor (overseas, outside jurisdiction**); (2) degree of harm** (Xu's TOC had far greater reach and credibility). Only ONE material differentiating factor was needed to defeat the Art 12 claim.
  - Key principle: The "equally situated" requirement is a significant threshold. Courts are not quick to find persons equally situated where relevant contextual differences exist.

- In ***Saravanan Chandran v PP*** [2020], where the applicant who was slapped with dual trafficking charges of cannabis and cannabis mixture – disputing sentencing range since cannabis mixture else unequal treatment.
    - Held: No issue: Sentencing calibrated on gross weight of cannabis mixture was objectively an intelligible differentia. Purpose of MDA is to "*prevent and deter the distribution and consumption of illicit drugs*". As such, gross weight of the mixture is a **reliable independent indicia of the harm done** through the illicit import, export and trafficking, in terms of its gross weight it is still proportionate to the harm done to society. Prof Amirthalingam on risk of **diff % of mixture to harm rejected**.
    - Also, realistically, the cannabis mixture cannot distinguished and quantified.

5.4 Reasonable Classification Test: 2 Competing Approaches (Marcus Teo)



Given that the SGCA in Tan Seng Kee at [329] left it open as to which approach ought to be preferred, it is crucial that we determine how the approaches in RCT.

In **Marcus Teo** "*Refining Reasonable Classification*" [2023], the author sets out 3 aims: (1) courts must identify legislative purposes only from extrinsic materials when applying the test, to avoid circularity in its application; (2) when assessing the relation between differentiation and purpose, courts must require proof of the existence, and sometimes the sufficiency, of practical reasons that excuse imperfect differentiation and; (3) applicants should only bear the burden of showing that laws or decisions imperfectly differentiate, before the burden shifts to the Government to justify them. Importantly, author seeks to explain how the RCT should be structured to apply to both legislative and executive acts.

Author notes two approaches to the RCT, the version in *Taw Cheng Kong* and *Lim Meng Suang*, and the version in *Syed Suhail* and *Tan Seng Kee*. The two approaches differ on three issues: (i) how purposes should be identified at the **Purpose Identification Stage**; (ii) how the relationship between purpose and differentiation should be assessed at the **Relation Evaluation Stage**; and (iii) **where the burden of proof should lie:**

LMS:
(a) Requires the classification prescribed by the statute concerned to be founded on an **intelligible differentia**;
(b) Requires a **rational relation** between that differentia and the object sought to be achieved by the statute.

Syed:
(1) Court must assess applicant's submission on whether differently treated individuals were "**equally situated** such that any differential treatment required justification". Here, the **applicant bore the "evidential burden"** of proving equal situation and differential treatment.
(2) Court would consider whether the differential treatment was "**reasonable** in that it was based on **legitimate reasons**", like whether it had "a sufficient rational relation to the object for which the power was conferred" and was not based on "irrelevant considerations".

5.4.1 Limb 1: Purpose Identification stage (Differentia)

- **Under *LMS***: the validity of differentia may be called into question **in extreme cases** where the differentia is "so unreasonable as to be illogical and incoherent".
  - This requirement was "a **relatively low threshold** that ought to avoid any consideration of substantive moral, political and/or ethical issues because these issues are potentially controversial" (*Lim Meng Suang*).
  - ***Issue***: **Chan**, "*Equal Justice and the Prosecutorial Power*" (2022) differentia tells us nothing about the purpose or object of an Act since it engages a circular reasoning, rendering the RCT redundant. ***Tan Seng Kee*** also held that this goes beyond whether the differentia is capable of being understood.

- **Cf. *Syed***: the first limb (differentia) is never concerned with reasonableness of the differentia, even in cases where the differentia is extremely unreasonable.
  - Crucially, the courts are only concerned with **identifying the purported criterion** of the differential treatment in question. Essentially, restrictions exist on 'generality' of framing.
  - However, it is crucial for the RCT to sieve out laws where the objectives of the legislation are themselves discriminatory (**Kevin Tan**, *Constitutionalism in Asia 2014*). Arguably, this better ensures that a purposive approach is engaged through extrinsic materials (not from the text of the provision itself, to avoid circularity).
- **E.g.** Law banning all women from driving might fail first limb of Lim Meng Suang RCT as its differentia could be said to be patently illogical or incoherent that no reasonable person would contemplate it as being functional as an intelligible differentia, ***BUT*** pass muster under Syed's first limb, fails under Syed's second limb as the differentia bears no rational relation to any conceivable object of that law although.

5.4.2 Limb 2: Relation Evaluation stage (Rational Relation/Nexus)

Degree of "relationship" required between object and differentia.

- Under ***LMS***: Courts only require a **loose connection** between the challenged law and its purpose. Essentially, a perfect relation or complete incidence is not required (***LMS***). Per SGCA obiter of ***Tan Seng Kee***, Yong CJ reasoned that even if s 37(1) was "underinclusive" for excluding non-citizens, it "was not fatal" to the Section's constitutionality because it would still "*go some way in capturing the corrupt acts of citizens abroad*".

- **Cf.** ***Syed***: the relationship **must not be 'so tenuous as to be incapable of withstanding scrutiny**.' Essentially, Syed's approach seems more grounded in that when life and liberty are at stake, the courts would *search in its scrutiny* if the differentia treatment was "reasonable in that it was based on **legitimate reason**" in extrinsic materials. E.g. If s 377A's purpose was to disapprove homosexual conduct in general, it could fall afoul of the RCT for being under-inclusive and if the section was targeted specifically at male prostitution only, it might be over-inclusive and thus unconstitutional under Art 12. Against the ***LMS*** approach however, the loose connection in s377A's nexus would be framed generally to "safeguarding societal morality", retaining its constitutionality.

- ***In my opinion***, beyond engaging in the constitutional objectives of the section, this better accords with the functional conception of SoP, where the emphasis is on the constitutional duty of the judiciary as guardians of fundamental liberties, and as counter-majoritarian checks on other branches of government to ensure their compliance with the constitution and not unduly infringing on individual's rights.

However, **framing the object** of the section is a concern. If one were to articulate the legislative object of a statutory provision in whatever terms would support one's desired interpretation of the provision, then the RC test would be reduced to nothing more than an **exercise in legal formalism** (*Tan Seng Kee*).

- ***Thus***, compared to LMS's "mere threshold" test articulated, Syed's scrutiny approach is better in its sensitivity to each case's context and hence avoids the "austerity of tabulated legalism" per *Ong Ah Chuan*. It may also be important to **calibrate legislations on updated social attitude considerations** before adopting an originalist stance on a provision's construction (**Yap**, "*Back to 1938*").

5.4.3 **Issue**: Presumption of Constitutionality + Burden of Proof

- Under ***LMS***: There is a "strong presumption of constitutionality" such that the court will not find a statute or provision unconstitutional under Art 12(1) and can only be rebutted by "the person challenging the law" on material or factual evidence to show the legislation was enacted or operated arbitrarily (*Tan Seng Kee*). Arguably, this approach tips in the favour of the government and disadvantages the applicant's case in placing them with a high BoP (**Jack Lee**, "*Rethinking the Presumption of Constitutionality*"). Further, it doesn't help that Singapore doesn't have freedom of information statues (Cf. UK) such that the government does not need to adduce justifications for their actions (**Neo**, "*Separation of Power*") – which doesn't emit the legal limits of powers between the branches.
- In ***Syed***: presumption of constitutionality was watered down, becoming not a high legal standard but merely the legal burden of proof which can be said to be more pro-applicant. In the first limb, the applicant would have to satisfy the court in adducing materials beyond bare assertions, that there is ***a prima facie*** case of reasonable suspicion in favour of granting

remedies (***Xu Yuan Chen***). If this first limb is discharged, the burden will shift to the AG/Prosecution to justify the differential treatment by showing reasonable and legitimate reasons in bearing a sufficient relational relation to the object for which power was conferred (*Ramalingam*). Compared to *LMS*, Syed's approach would be a **more substantive inquiry** that promotes executive accountability, and gels with the idea that "all power has legal limits" (***Chng Suan Tze***).

5.5 Protection of minority interests

What is the best way to protect minority interests?

- The **Wee Commission Report 1966** published its recommendations on this issue:
  - In a democratic society, it is futile, impractical and dangerous for minorities to find security in so-called minority rights, as that simply means rights different from those or additional to those enjoyed by the majority
  - Apart from the futility of trying to secure for themselves minority rights, there is also the danger in minorities seeking to buy security in terms of minority rights and what are often termed "special rights" and preferential treatment for themselves. Because once you start defining "minority rights" as special rights or preferential treatment, then you are **breaching an essential principle of democracy**, which is the principle of equal rights
    - Greatest danger to the minority is their attempts to secure minority rights, because this will trigger a reactionary response by the majority to the same – leads to a higher likelihood of majority tyranny as a result
    - What the minority should strive for is to ensure always that no one citizen, regardless of his race or colour or creed, enjoys more rights than himself. If that kind of constitution can be drawn up, the minority is always safeguarded. The real safeguard is equality always and not special rights written into the constitution
  - In the 1967 *Singapore Parliamentary Debates* on the Report of the Constitutional Commission, S Rajaratnam reiterated the above point: the essence of the matter is that, as the Commission sees it, **in a democracy there can be no distinction between majority rights and minority rights**. Once you tackle this as a constitutional problem, there is no getting away from the fact that there cannot be majority and minority rights. There can only be equality of rights, the same rights for all

5.5.1 Group Representation Constituencies (GRCs) (Art 39A)

- **Constitutionality (obj.):** Per DPM Goh Chok Tong (1988 Hansard): To ensure multiracial Parliament; compel political parties to adopt non-communal approaches; guard against 'tyranny of the majority.'
- **Effectiveness**: The GRC scheme has ensured minority representation in every Parliament.
- **Issues**: ***However***, critics note: (a) makes elections more difficult for opposition parties; (b) may reduce authenticity of minority representation — minority candidates are 'carried' by anchor-person MPs; (c) increase in GRC size (up to 6 members) has amplified these concerns.

5.5.2 HDB Ethnic Integration Programme (EIP)

- EIP prevents ethnic enclaves from forming in HDB estates by setting racial quotas on flat ownership. This limits buying/selling of flats based on ethnic proportions.
- **Issue**: Should EIP prima facie be unconstitutional since it engages Art 12(2)'s prohibition on discrimination on grounds of race in the 'acquisition, holding or disposition of property.'
- **Arguments for constitutionality**:
  - ***Article 152(1)*** (*"constantly care for the interests of racial and religious minorities"*): An express constitutional mandate that allows (or requires) race-conscious policies in some context.
  - "*Except as **expressly authorised** by this Constitution*" qualifier in ***Art 12(2)*** — Art 152(1)'s mandate could be argued as constitutional authorization;
  - ***Art 12(1) RCT*** using Syed's approach:
    - Limb 1: Equal situation (all are public market participants), and Differential treatment (race-based quotas)
    - Limb 2: **But…** The objective of the EIP is to: **(1)** Prevent racial enclaves, and **(2)** Promote racial integration and social cohesion.
      - **And not arbitrary**: EIP applies SYMMETRICALLY — quotas apply to Chinese, Malay, and Indian/Other communities; no single group is systematically burdened.

5.5.3 Reserved Presidential Elections (Art 19B)

- In ***Ravi v AG*** (HC), the court dealt with the challenge that institutional safeguards against discrimination are in violation of article 12(1), namely the reserved election for the President
  - Article 19B of the Constitution seeks **to ensure multiracial representation** and therefore could not be said to be racially discriminatory. However it was argued in Ravi v AR that Art 19B's effectiveness was limited — the 2017 election was reserved for the Malay community and **Halimah Yacob ran uncontested**, **undermining democratic legitimacy**.
    - In any event, the Constitution was not race-neutral and the point had been specifically considered by the Presidential Council for Minority Rights ("PCMR"). In addition, Art 152 of the Constitution expressly enjoined the Government to care for the interests of racial and religious minorities
  - Held: Court agreed with PCMR; had scrutinised the "differentiating measure" in article 19B and deemed that it would not if enacted be a differentiating measure as defined under article 68 of the Constitution
    - As the reserved elections framework applied equally to the three racial communities, it was fatal to the plaintiff's case – same hiatus applies to all three racial communities **without exception**
  - PCMR also stated that the **purpose of reserved elections is also not discriminatory**. It is to ensure that the office of President will be representative of our multiracial society and to foster multiracialism
    - The reserved election is a long-stop measure that arises only after a 5-term hiatus, and is appropriately tailored to meet its purpose in a minimally intrusive way

6 Art 9 and 149 Liberty

To start, Art 9(1)'s simplicity conceals two distinct but related inquiries: first, the **scope inquiry** — how broadly do the terms "life," "personal liberty," and "law" extend; and second, the **validity inquiry** — whether the courts' chosen interpretive method is constitutionally sound. These inquiries are not separable in practice. The interpretive stance a court adopts on the meaning of "law" directly determines the effective width of the constitutional guarantee, and the reasoning deployed to justify that stance engages foundational constitutional concepts: separation of powers, the rule of law, and constitutional supremacy under Art 4.

Interpretation

2.—(1) In this Constitution, unless it is otherwise provided or the context otherwise requires —

"law" includes written law and any legislation of the United Kingdom or other enactment or instrument whatsoever which is in operation in Singapore and the common law in so far as it is in operation in Singapore and any custom or usage having the force of law in Singapore;

Liberty of the person

9.—(1) No person shall be deprived of his **life** or **personal liberty** **save in accordance with law.**

(2) Where a complaint is made to the General Division of the High Court or any Judge sitting in the General Division of the High Court that a person is being unlawfully detained, the General Division of the High Court shall inquire into the complaint and, unless satisfied that the detention is lawful, shall order him to be produced before the General Division of the High Court and release him. *[38/2019]*

(3) Where a person is arrested, **he shall be informed as soon as may be** of the grounds of his arrest and **shall be allowed to consult** and be defended by a legal practitioner of his choice.

(4) Where a person is arrested and not released, he shall, without unreasonable delay, and in any case within 48 hours (excluding the time of any necessary journey), be produced before a Magistrate, in person or by way of video-conferencing link (or other similar technology) in accordance with law, and shall not be further detained in custody without the Magistrate's authority. *[9/2010]*

(5) Clauses (3) and (4) shall **not apply to an enemy alien** or to any person arrested for contempt of Parliament pursuant to a warrant issued under the hand of the Speaker.

(6) Nothing in this Article shall invalidate any law —

(*a*) in force before the commencement of this Constitution which authorises the arrest and detention of any person in the interests of public safety, peace and good order; or

(*b*) relating to the misuse of drugs or intoxicating substances which authorises the arrest and detention of any person for the purpose of treatment and rehabilitation,

by reason of such law being inconsistent with clauses (3) and (4), and, in particular, nothing in this Article shall affect the validity or operation of any such law before 10 March 1978.

6.1 Interpretation of Art 9

6.1.1 "**Life** or personal liberty"

[**Malaysia**] CA in ***Tan Tek Seng*** [1996] 1 MLJ 261

- Considered the history of Article 9, tracing it through the Indian Constitution and US Constitution for the definition of "life"
  - US viewed "life" as something more than mere animal existence, with the inhibition against its deprivation extending to all limbs and faculties by which life is enjoyed
    - The MY courts held to keep in tandem with the national ethos ("*keep with modern and progressive change*") to **adopt a "broad and liberal" approach** to "life" that implements the true intention of the framers of the Constitution.

[**India**] Other jurisdictions have recognised a **more extensive** definition of "life"

- In India, the right to life includes to the right to live with human dignity free from exploitation (***Bandhua Mukti Morcha***)

[**Singapore**] In Singapore however, the courts take a **less liberal** position, with life and liberty confined to the freedom from unlawful physical detention or incarceration as held in ***Tan Eng Hong*** and affirmed in ***Tan Seng Kee***. It does not extend to a substantive right to a dignified quality of life (***Yong Vui Kong***). Arguably, this limitation can foreclose the constitutionalism of socio-economic interests, labour rights as well as the right to live with dignity expounded by India's Supreme Court in ***Maneka v Union of India***.

That said, the **justification offered by our courts is structural**. The Singapore constitution contains no equivalent to the Indian Directive Principles of State Policy, which provided the Indian courts with the surrounding constitutional architecture for a more expansive reading of "life". Hence, if our courts import such expansion without a supporting framework, it would be methodically unsound. By referring to the court's development below, clarity is sought on Singapore's interpretation of "law".

- In ***Lo Pui Sang***, HC held that personal liberty under Art 9 **did not incorporate** the personal liberty to contract, but only to the personal liberty of the person against unlawful incarceration or detention
  - **Facts**: Mr. Rajah argued ss 84A(1) and B(1) of ***Land Titles (Strata) Act*** (LTSA) had the effect of depriving the appellant of their personal liberty to contract.
  - Constitution expressly permits deprivation of personal liberty if in accordance with law passed by Parliament
  - CA did not deal with constitutional issues

- But court appears to endorse that "in accordance with law" is any law that is passed by Parliament (**very positivist**)

- In ***Tan Eng Hong v AG***, **rejected** defendant's argument that protection accorded by Art 9 must extend to all faculties which life is enjoyed, including privacy, human dignity, individual autonomy and human need for an intimate personal sphere.
  - **Facts**: Pf and another male person engaged in oral sex in toilet cubicle inside Citylink Mall and were charged under ***s 377A*** which criminalized acts of "gross indecency" between males.
  - HC observed that the jurisprudence here **avoided wide interpretations** as such, **reaffirmed *Lo Pui Sang*** (HC) on the constitutional issues: *ie* personal liberty only relates to unlawful incarceration or detention.
  - [**Right not to be detained under an unconstitutional law**] Under ***s 377A***, mere existence of provision does not violate art 9(1) rights. However, the court held that the existence of an allegedly unconstitutional ***s 377A*** may violate both ***Art 12(1)*** (equality before the law and equal protection of the law) and ***Art 9(1)*** (right to personal liberty); even if there is no subsisting prosecution.

- In ***Lim Meng Suang v AG***, the CA once again held that the right to privacy and personal autonomy ought **not be read** into the phrase "life or personal liberty" in article 9(1)
  - **Facts**: Appellant argued s 377A violated Art 9(1) when given purposive interpretation to allow a person to enjoy affection and love towards another human being.
  - *Art 9(1)* phrase "life" should be interpreted narrowly in for 3 reasons:
    - **Jurisprudence**: The appellant's interpretation would be contrary to Singapore's established jurisprudence, in affirming Lo Pui Sang and Tan Eng Hong that it only relates to unlawful incarceration or detention.
    - **Purposive Approach**: According to Art 9's "context and structure". Art 9(2) to Art 9(4) provides various procedural safeguards in relation to the arrest and detention of persons. Hence, the established narrow reading of Art 9 is grounded.
      - ***However***, this is arguably inconsistent with the sui generis approach propounded by Ong Ah Chuan that fundamental liberties should be given a generous interpretation to give individuals the full measure of rights guaranteed in our constitution. A counter to *Ong Ah Chuan*'s position is that **generosity should not be a licence to ignore text, structure, and history**.
    - **Legislative History – Originalist Approach**: Protection against unlawful detention is the "particular focus" of Art 21 of the Indian Constitution, from which our Art 9 is derived. The framers of India's Art 21 **consciously rejected the wider US formulation** "without due process of law" and enacted provisions similar to SG's Art 9(3) and Art 9(4) to protect India's citizenry against unlawful detention. India's Art 21 was the basis for "liberty of the person" provision in Art 5(1) of the Malaysian Constitution which was later adopted in Singapore.
      - ***In consideration*** of other jurisdiction's more expansive approach to "life and personal liberty", the SGCA held that the courts should

be cautious to adopt foreign cases without accessing their "**unique social, political and legal circumstances**". While these cases may illuminate possible interpretations, they may not align with Singapore's constitutional text, structure, and institutional context. If want change, ask if interpretation stems from:
  - Social need? (poverty, inequality, and weak state capacity)
  - Political history? (executive overreach)
  - Legal text? (broad clauses like "due process")

- In ***Yong Vui Kong v PP*** [2015] (Caning: Unlawful use of force) – While the SGCA adopted a slightly wider interpretation of Art 9 cf. earlier cases, it was interpreting "law" in the context of punishments (caning) of convicted persons.
  - **Facts**: YVK was sentenced under s 33B of *Misue of Drugs Act* (MDA), to the mandatory minimum of life imprisonment and 15 strokes of the cane.
  - **Contested**:
    - Canning constituted a **form of torture** and torture was **contrary to Art 9**;
    - Canning was **so irrational and arbitrary** that it could not be "law"
    - Canning **discriminated against men under 50** since punishment could only be inflicted for <50 and not women, and thereby foul of Art 12.
  - For Art 9(1) to be engaged, caning must involve a deprivation of "life or personal liberty"
  - **Object and purpose of Art 9(1)** is to ensure that Govt acts in accordance with valid laws when depriving a person of his life or personal liberty. In *dicta*, court traced history of Art 9 to the ***Magna Carta***, which encompassed more than just the right not to be unlawfully incarcerated, and also protected a person from unlawful seizure of his property and the unlawful use of force against him.
  - **The lineage of article 9(1) makes clear**:
    - (a) to the extent specific rights are dealt with elsewhere, for instance the prohibition of forced slavery and labour in ***Art 10***, or of banishment and curtailment of freedom of movement in ***Art 13***, these would not be included within the ambit of the protection conferred by Art 9;
    - (b) to the extent potential rights were considered and excluded, for instance the right to property, these also would not be included in Art 9;
    - (c) beyond this, Art 9 does not protect only against arbitrary execution or incarceration. It also **prohibits the unlawful use of force against a person**, including by way of amputations, mutilations, assaults, beatings, woundings, etc. Such acts would result in a deprivation of "life", according to Blackstone's definition.
  - Thus, punishments like caning must be impermissible **unless done "in accordance with law"** – Art 9(1) will be engaged by the execution (or proposed execution) of a sentence of caning on the Appellant, and in order to pass constitutional muster it has to be "in accordance with law"
  - **TLDR**: caning is not covered by the common law conception of torture. Even if caning does constitute torture under international law, **domestic statutes would take precedence** over any international law norms in the event of any inconsistency between the two. Since caning is **mandated by statute** and there is nothing to invalidate it, the challenge under Art 9(1) must fail.

- The latest judgment in ***Tan Seng Kee*** makes clear:
  - **Unenumerated substantive rights cannot be read into the Constitution** as it would entail judges acting as super-legislature
  - Thus, in context of ***s 377A***, the right to express one's sexual identity is evidently not an express constitutional right. Nor is it a right that can be found in the Constitution. Therefore, impermissible to construe the unenumerated right to express one's sexual identity as a right that attracts constitutional protection under Art 9(1)

6.1.2 "In accordance with law"

As a preliminary, an **inconsistent approach** has been adopted in Singapore regarding the interpretation of "in accordance with law" in Art 9(1). However, more recent decisions reflect a *shift towards a more expansive understanding* that beyond law validly passed by Parliament. It excludes laws that are unconstitutional, arbitrary, absurd or against RoL, so as to incorporate at the very least compliance with **procedural fundamental rules of natural justice** (FRNJ) which was built into Westminster-based constitutions. Below is the trajectory of Singapore jurisprudence — from the narrow positivism of ***Jabar*** and ***Lo Pui Sang***, through the structured expansionism of ***Ong Ah Chuan***, to the synthesized framework of ***Tan Seng Kee*** — which reflects a gradual but incomplete reckoning with what Art 4 demands

Narrow approach chosen by *Jabar* and *Lo Pui Sang*:

- The narrowest position was articulated by the SGCA in ***Jabar v PP***. Yong CJ held that "any law which provides for the deprivation of a person's life or personal liberty is valid and binding so long as it is validly passed by Parliament. The **court is not concerned with whether it is also fair, just and reasonable**." On this reading, the constitutional guarantee is essentially exhausted by a demand for formal legislative compliance. If Parliament has enacted a statute in accordance with the required procedure, that statute constitutes "law" for the purposes of Art 9(1) and cannot be impugned on grounds of substantive unfairness. A similar textualist logic animated ***Lo Pui Sang***, where the SGHC held that "law" means "law passed by Parliament," reasoning that to hold otherwise would permit the court to alter the clear wording of the provision.

- **The Problem with the Narrow Approach**

  - The narrow approach cannot survive scrutiny against Art 4, and its critics are right to press this point. If "law" in Art 9(1) means nothing more than a validly enacted statute, then the constitutional guarantee is rendered self-defeating. Art 4 provides that the Constitution is the supreme law of Singapore, and any legislation inconsistent with it is void. But if Parliament is free to enact any statute depriving persons of life and liberty provided the correct procedural steps are followed, then Art 9(1) adds nothing to the ordinary legislative process. The protection of fundamental liberties would be, as **Lord Diplock warned in Ong Ah Chuan, "little better than a mockery."**
  - Moreover, this narrow approach is incoherent in light of the court's own role under the constitution. As the SGCA noted in ***Tan Seet Eng***, the judiciary bears responsibility for "the adjudication of controversies which carries with it the power

to pronounce authoritatively and conclusively on the meaning of the Constitution." If the court refuses to assess the content of "law" against constitutional standards, it is not deferring to Parliament — **it is abdicating its constitutional function**. The proper role of separation of powers is not to render the court helpless before legislative action, but to define the appropriate mode and intensity of judicial review.

- The SGCA in ***Yong Vui Kong*** subsequently clarified that ***Jabar*** must not be read as a definitive statement about the meaning of "law" in Art 9(1) *otherwise* it may become a high watermark of a positivist approach in its reading (***Treatise***). The facts of Jabar concerned the constitutionality of an ***administrative delay*** in executing the mandatory death penalty — a challenge directed at executive action, **not at the legislation itself**. The question of whether the relevant MDP legislation was "fair, just and reasonable" was therefore irrelevant to the particular issue before the court. Read in this way, *Jabar* is entirely consistent with *Ong Ah Chuan*: it resolved a specific challenge to executive action without making any general claim about the meaning of "law." *Lo Pui Sang* similarly involved a narrow challenge to deprivation of contractual rights, not an attempt to impugn legislation for substantive unfairness. Neither case should bear the weight of a general positivist constitutional theory.

Expansive approach chosen by Ong Ah Chuan to recent Tan Seng Kee

- One pivotal turn started with the UKPC In Ong Ah Chuan, which lies the foundational authority for an expansive approach. The PC **rejected** the narrow contention that "law" in Art 9(1) means any legislative rule validly enacted by Parliament. Lord Diplock held that the Singapore Constitution — like others based on the Westminster model and drafted by lawyers steeped in its conventions — used "law" in certain contexts to refer to something more than a collection of rules. It denoted a system of law **incorporating "those fundamental rules of natural justice** that had formed part and parcel of the common law of England that was in operation in Singapore" at the commencement of the Constitution. This conclusion flowed from the sui generis interpretive approach: constitutional instruments call for "principles of interpretation of their own" suitable to their character, and fundamental liberties must receive a **generous interpretation** to grant individuals their "full measure" of rights.
- However, the PC was careful, not to convert Art 9(1) into an open-ended proportionality review of legislative policy (Appellant argued MDP arbitrary: removes judicial discretion to calibrate punishment to individual culpability). The PC expressly declining to determine that the mandatory death penalty was constitutionally prohibited; the question should be whether capital punishment were "questions of social policy solely for the Legislature," and they held MDP was "nothing unusual" in a mandatory capital sentence. This caveat is significant — even as the PC expanded the meaning of "law" to include fundamental rules of natural justice (FRNJ), it **preserved legislative autonomy over the content of penal policy** by confining FRNJ to procedural fairness in criminal process, not to substantive policy choices about punishment. This was later affirmed by the SGCA in ***Yong Vui Kong***, such that context that the constitutionality of carrying out the MDP **does not entail inquiries of "fair, just and reasonable".**
- At this point, it is suggested that the PC's relativist approach in ***Haw Tua Tau*** in considering transnational materials such as comparative and international laws would allow the courts to evolve beyond the limited frozen 1963 FRNJ. However, reading such contemporary laws before the government gazettes it would risk judges acting as unelected super-legislators.

- **The Synthesized Framework**: SGCA ***Tan Seng Kee.*** The most authoritative and comprehensive statement of the current law is found in Tan Seng Kee, which synthesized the preceding authorities into a four-requirement framework. "Law" in Art 9(1) goes beyond formal validity and requires that:
  (1) The statute must **comply with fundamental rules of natural justice**, understood as **procedural rights aimed at securing a fair trial**.
  (2) The statute **cannot be colourable legislation** — legislation in form but in substance a **legislative judgment directed at securing the conviction** of particular known individuals (citing *Liyanage v The Queen*).
  (3) The statute **cannot be absurd or arbitrary** — though this is also procedural in character; an "absurd" law is one that cannot be understood or complied with, **making it impossible to mount a defence**, rather than one that is merely policy-wise unreasonable.
  (4) The statute **cannot be contrary to the rule of law**.

- ***Notably*, (1), (2) and (3) are cast in procedural, not substantive character**:
  - A test of substantive reasonableness "could require the court to intrude into the legislative sphere and engage in policy making." This formulation responds to a separation of powers concern: if courts assess whether legislation is substantively fair or reasonable, they are effectively performing a function that belongs to Parliament — evaluating the wisdom and merits of legislative choices.
  - However, there is a risk in (3) where the courts are effectively exercising wide discretion with the vagueness of "absurdity" of statutes; which may be contrary against certainty in the rule of law. ***It is recommended*** that (3) be constitutionally grounded through the "searching scrutiny" approach in *Syed Suhail* already established in SG.
  - It is also noted that the SGCA left (2) underdefined to leave possibilities for expansive developments in future cases such as proportionality, substantial fairness seen in **Thio**'s *Lex Rex or Rex Lex*.
  - **Essentially**, the SGCA created a middle ground in its Art 9(1) approach; it is not asking whether the law is good policy but whether it respects the constitutional architecture within which legislative power is exercised.

6.1.3 Case History (**Skip 1**)

- In ***Ong Ah Chuan***, the PC made clear several fundamental principles to interpreting a Westminster Constitution
  - A *sui generis* approach to interpretation is necessary to interpreting a constitution, suitable to its character without necessary acceptance of all presumptions relevant to legislation of private law
  - PC advised a **generous interpretation** of the Constitution to accord individuals the full measure of the fundamental liberties referred to
  - PC did not accept the narrow view of the effects of art 9(1) and 12(1) – "in accordance with law" refer to a system of law which incorporates those fundamental rules of natural justice that had formed part and parcel of the common law of England that was in operation in Singapore at the commencement of the

Constitution … which ensures better protection for the individual in the enjoyment of his fundamental liberties
  - On MDP, judges did not view it to be unconstitutional, not unusual in a capital sentence being mandatory

- In ***Nguyen Tuong Van***, the court held that the MDP prescribed under the MDA is constitutional as sufficiently discriminating to obviate any inhumanity in its operation
  - The appellant made two arguments — (1) MDP amounted to arbitrary punishment for 2 reasons: (a) flouting equal protection guarantee in art 12(1); and (b) precluding proportional and individualized sentencing, which was protected by the prohibition against cruel and inhuman treatment or punishment; and (2) even if MDP not arbitrary, execution by hanging amounted to cruel and inhuman treatment or punishment
  - On arbitrary punishment, the court reaffirmed that "in accordance with law" is more than positive law, but the version as stated in *Ong Ah Chuan* above.
    - While there have been PC decisions that ruled on the unconstitutionality of MDP from other jurisdictions, those decisions were decided in light of the various international norms that had been accepted by their jurisdictions, in line with their Constitutions. Thus, it was due to the international obligations that the jurisdictions had accepted that led the PC to rule that MDP was part of the prohibition against cruel and inhuman treatment
    - **In Singapore, the common law has been developed by the Judiciary. Additionally, under the Constitution, Parliament as the duly elected Legislature enacts the laws in accordance and consistent with the Constitution of Singapore. If there is any repugnancy between any legislation and the Constitution, the legislation shall be declared by the Judiciary to be invalid to the extent of the repugnancy.** Any customary international law rule must be clearly and firmly established before its adoption by the courts – as Singapore has not ratified the convention against cruel and inhuman treatment, the law was thus constitutional
  - Elaborating on CIL point, the court held that the appellant must show two elements for CIL to apply:
    - The prohibition against cruel and inhuman treatment or punishment amounts to a customary international rule
    - That a specific prohibition against hanging as a mode of execution is part of the content of that rule in customary international law
  - In this case, court adopted a numerical analysis, looking at the number of countries that still practice death penalty, thus concluding that they were not a customary international rule
    - Additionally, the court also held that even if the CIL could be found, the domestic statute if present would prevail in the event of inconsistency
    - Thus for CIL to apply in our dualist system, the general rule is that it applies *ergo omnes* (to all generally). Once identified, it comes into Singapore at the same level as the Common Law. It can be rejected by explicit statute with opposing law

- In ***Yong Vui Kong*** [2010] (Mandatory Death Penalty), the court dealt with a number of developments since *Nguyen*

- On the apparent departure in ***Jabar v PP*** from *Nguyen* and *Ong Ah Chuan* when Yong CJ held "Any law which provides for the deprivation of a person's life or personal liberty ... is valid and binding so long as it is validly passed by Parliament. The court is not concerned with whether it is also fair, just and reasonable as well", the CA explained that it was in the context that the constitutionality of carrying out the MDP does not entail inquiries of "fair, just and reasonable", and not constitutionality of MDP per se.
- As for whether the MDP was inhuman punishment, appellants argued that as a matter of interpretation, art 9(1) should be read as incorporating some form of prohibition against inhuman punishment similar to the other jurisdictions
  - Court in response reiterated the arguments per *Nguyen*, and held that domestic law should be interpreted consistently with Singapore's international legal obligations. Development in human rights jurisprudence as manifested in PC cases relating to Art 9(1) is not relevant to the interpretation of Art 9(1) as those cases all concern the meaning of express constitutional prohibitions against inhuman punishment
  - As SG Constitution does not incorporate an express prohibition against the death penalty, and expressly rejected incorporating such a prohibition in the 1966 Wee Commission Report
  - This rejection thus makes it impossible to challenge the constitutionality of the MDP. It was not legitimate for the court to read into art 9(1) a constitutional right decisively rejected by the Government, especially given the historical context in which that right was rejected
- Does not mean, just because no prohibition against torture exists in Constitution, that laws can permit torture. Parliament recognises that torture is wrong. This explicit recognition stands in sharp contrast that MDP is inhuman punishment. Torture, in so far as it causes harm to the body with criminal intent, is already criminalised under Singapore Penal Code
- But accepted that "law" includes not just law passed by Parliament. Also accepted that absurd or arbitrary laws would not be "law" for the purposes of article 9

- In ***Tan Seng Kee***, reiterated that the restrictive reading of article 9(1) is supported by text, structure and history of the provision. Court recognised that "in accordance with law" has been interpreted to go beyond positivism, with following **requirements**:
  - (a) statute must comply with fundamental rules of natural justice, which are procedural rights aimed at securing a fair trial
  - (b) statute cannot be colourable legislation, such as those directed at securing the conviction of particular individuals
  - (c) statute cannot be absurd or arbitrary
  - (d) statute cannot be contrary to the rule of law
  - Court also considered the argument that laws are absurd, and thus unconstitutional – CA reiterated that the test is procedural in nature and intended to secure the right to a fair process in the context of a possible deprivation of life or personal liberty. As such, absurdity relates to the ability of the law to be enforced, and whether the procedural safeguards (or lack thereof) comply with FRNJ

6.2 Fundamental Rules of Natural Justice (FRNJ)

6.2.1 FRNJ for Art 9(1); **Not** Art 12(1)

FRNJ for Art 9(1):

- If the mere act of Parliament passing laws is sufficient to justify the deprivation of these fundamental liberties, the constitutional guarantee of life and personal liberty would offer very little assurance [***Tan Eng Hong*** at 30]. *However*, "save in accordance with law" in Art 9(1) would entail a connection to the fundamental rules of natural justice (FRNJ). As expounded by **Prof Thio** in *Treatise*, FRNJ "relates largely to the conduct of a fair trial".

No FRNJ for Art 12(1):

- Unlike Art 9(1), adherence to "law" in Art 12(1) is to the protection of equality for persons and does not depend on the validity of a law. *Hence*, "law" in Art 12(1) **does not** have normative content that is independent from the substantive right accorded under the phrases "equal before the law" and "equal protection of the law". Hence, it is incorrect to import "law" in Art 12(1) a requirement that "law" in question must be in accordance with FRNJ.

6.2.2 What are the principles of FRNJ?

Substantive Good or Bad Essay ref. academic Swati: Sherrick **Pg. 236**

Procedural: Recognized FRNJs:

In ***Yong Vui Kong v PP*** [2011], and recognizing *Ong Ah Chuan*, the SGCA held the requirement of **fair hearing** and **rule against bias** as (procedural) FRNJs. In particular, these rules required:

(1) Accused can only be convicted if the elements of the offence have been proven according to the applicable standard of proof;
(2) The accused was tried before an independent and impartial tribunal
(3) The accused was heard on his/her defence.

In ***Tan Seng Kee*** [2022], the SGCA held the **test of 'absurdity'** is procedural in nature and intended to secure the right to a fair process in the context of a possible deprivation of life or personal liberty. It does not permit the court to examine the substantive content of the law.

- Eg. An "absurd" statute is one that **cannot be understood or complied with**.
- It would be impossible to make a defence to any charge under such a statute, and it would thus be "absurd" to deprive a person of life or personal liberty on this basis.
    - Absurd law **does not refer to legislation** that is so abhorrent that no reasonable person can contemplate it as being morally justified

Presumption of innocence? **No**, per Jumaat v AG [2023] SGCA.

- In ***Haw Tua Taw***, the UKPC appeared to recognise the presumption of innocence in MDA as forming a FRNJ, as it quoted ***Art 6(2) of the Convention*** "Everyone charged with a criminal offence shall be presumed innocent until proven guilty according to law" as an

'undoubted fundamental rule of natural justice'. However, this position was likely developed from the "unsworn statement from the dock" (**a relic practice of jury trials before 1969**) meant courts could not subject accused to cross-examination or perjury. This procedure was changed.

Substantive Contents FRNJs:

Singaporean courts have **yet to recognise any substantive content** of FRNJ (except a very narrow prohibition of torture at common law).

- [**Open Position**] The substantive rights present in FRNJ continue to be left open as the courts are clear that it would be "imprudent … to attempt to make a comprehensive list of what constitute[s] fundamental rules of natural justice" (***Haw Tua Tau*** as cited with approval in ***Yong Vui Kong*** 2015) as there are fears of unduly limiting the principles of natural justice prematurely and so the courts have left these rules to the incremental development following common law developments (***Tan Eng Hong***).

1. Prohibition against MDP

- ***Ong Ah Chuan*** held MDP is not unconstitutional and does not contravene FRNJ
  - "Nothing unusual" in a mandatory capital sentence — historically, all capital sentences at common law were mandatory; removing discretion may strengthen deterrence
  - Whether Singapore should have capital punishment is a "question of social policy solely for the Legislature" — SOP as deference; courts do not review the wisdom of penological choices, only procedural fairness in the trial

- ***Nguyen*** held MDA weight threshold is a rational and intelligible differentia; it ensures only serious traffickers face MDP, which "obviates any inhumanity" by building a form of proportionality within the statutory scheme itself

Evaluation:

- The PC later departed from "nothing unusual" in Reyes v The Queen and Fox v The Queen, holding MDP for murder unconstitutional in Caribbean jurisdictions — the empirical premise was historically contingent, not constitutionally principled
- The SOP deference rationale is more durable but renders FRNJ effectively toothless against the legislature's most serious incursions on the right to life

2. Prohibition against cruel and inhumane punishment

- ***Nguyen*** SGHC, the court held that there was no customary international law rule that hanging was a cruel and inhuman punishment. **Even if** there was, domestic statute, insofar as it is unambiguous, would prevail over international law.

- ***Yong Vui Kong*** SGCA, where the court held that it was not possible to incorporate a prohibition against inhuman punishment through the interpretation of existing constitutional provisions.

- **Textualist**: No express prohibition against inhuman punishment in the Singapore Constitution - unlike Caribbean constitutions modelled on the ECHR
- **Originalist / Constitutional history**: Wee Commission proposed an express inhuman punishment clause; Parliament deliberately rejected it - courts have no legitimate basis to introduce through interpretation what Parliament consciously excluded
- **Four-walls doctrine**: Indian authorities (Mithu) **rejected** - India's text, social conditions, and judicial tradition diverge materially from Singapore's; a "fair, just and reasonable" test would require courts to engage in policy-making, violating SOP
- **Dualism**: Even if CIL prohibited hanging as inhuman, unambiguous domestic statute prevails under Singapore's dualist system

3. Prohibition against Torture (*Yong Vui Kong*)

- **FRNJ (narrow)**: FRNJ recognises a prohibition on torture **only when used to extract confessions or evidence** for use in judicial proceedings — it has nothing to say about "the punishment of criminals after they have been convicted pursuant to a fair trial"; since **caning is post-conviction**, it falls outside FRNJ entirely.
- **Dualism**: Even jus cogens norms cannot override unambiguous domestic statute under Singapore's dualist framework; in any event no CIL rule against caning was established
- **Unenumerated rights**: Courts cannot read in a freestanding prohibition on torture — doing so would require judges to "sit as a super-legislature and enact their personal views of what is just and desirable into law, which is undemocratic and antithetical to the rule of law"; unenumerated rights can only be implied if they are basic structural features of the Constitution (e.g. right to vote, SOP) — torture prohibition does not qualify
- On the facts — **caning ≠ torture**: Holistic analysis of purpose, manner and effect:
  - **Rattan cane**: ≤ 1.27cm diameter; maximum 24 strokes; single session only (no instalments - s 330(1) CPC); carried out in private; continuous medical supervision; exempt categories include women, men above 50, uncommuted death row prisoners
  - ***Distinguished from Caesar v Trinidad*** (cat-o'-nine-tails, 15 lashes, forced to witness others being flogged, 2 months in infirmary) - Singapore's safeguards ensure caning does not "breach the high threshold of severity and brutality" required for torture

Evaluation:

- The pre-/post-conviction FRNJ divide is **contestable** — **Swati Jhaveri** criticises it as a "strange restriction"; constitutional protection is strongest during investigation but extinguished at the punishment stage, precisely when the state's coercive power is greatest
- The better analysis would ask whether the punishment is so severe as to render the law "contrary to the rule of law" under Tan Seng Kee's fourth requirement — that pathway remains open in principle.

4. Access to Justice

In ***Tan Eng Hong*** [2013], the SGHC ultimately did not decide whether access to justice was part of FRNJ.

- The applicant argued that s377A undermined access to justice by criminalising victims of homosexual assaults and homosexual domestic abuse
- However, the court found that s377A did not deny access to justice
- A victim of domestic violence cannot complain of being "deprived" of access to justice because he fears that the authorities will realise that he has previously engaged in male homosexual acts that constitute an offence under 377A.
- Male victims of sexual assaults may be outside the reach of s377A, considering a purposive interpretation of s377A, and the choice of words used in s377A

6.2.3 Case History (**Skip 2**)

- In ***Ong Ah Chuan***, court did not give a definitive list of the fundamental rules of natural justice, merely the two established rules of the **right to a fair hearing**, and the **rule against bias**.

- [**Incremental Approach**] In ***Haw Tua Taw***, PC did not create a comprehensive list of what constitutes fundamental rules of natural justice applicable to procedure
  - The **substantive rights** present in FRNJ **continue to be left open** as the courts are clear that it would be "imprudent … to attempt to make a comprehensive list of what constitute[s] fundamental rules of natural justice" (*Haw Tua Tau* as cited with approval in *Yong Vui Kong* 2015) as there are fea**rs of unduly limiting the principles of natural justice prematurely** and so the courts have left these rules to the incremental development following common law developments (*Tan Eng Hong*).
  - *Dicta* that suggest the presumption of innocence is recognised as a FRNJ

- In ***Jabar v PP***, the court dealt with the question of whether a death sentence that is not carried out for a substantial period **amount then to cruel and inhuman punishment**?
  - Death row inmates should not be subjected to a prolonged period of imprisonment, anguish suffered while awaiting execution. This anguish is an inevitable consequence, which does not amount to a contravention of the constitutional rights of the prisoner
  - Court does not have jurisdiction over the question of whether a prolonged delay amounted to 'cruel and inhuman treatment' and whether such 'cruel and inhuman treatment' is in accordance with law under art 9(1) because of the differences between art 9 and art 21 of the Indian Constitution
    - Note the above comment in ***Yong Vui Kong*** about the apparent departure from *Nguyen* in this case

- In ***Tan Eng Hong*** (HC), based on *Yong Vui Kong* (MDP), there is merit in the proposition that in order for a law to pass muster under FRNJ, it must **not be arbitrary or absurd**
  - In *Yong Vui Kong*, Chan CJ suggested that FRNJ encompassed the notion that laws must not be absurd or arbitrary – the suggestion per *Ong Ah Chuan* could be that legislation so absurd or arbitrary could not possibly be contemplated as being 'law' by constitutional framers

        - But note *Tan Seng Kee* above that confirms absurd and arbitrariness is not the substantive content but procedural aspect of the law
    - Thus, in *Tan Eng Hong*, the judge had to deal with what is an arbitrary law
        - Court held that when one speaks of a law as arbitrary, it would only make sense if one is speaking of the law in the context of its purpose
        - Returning to *Yong Vui Kong*, the court there held that 15g threshold was not arbitrary, as it was for the legislature "to determine in the light of the information that is available to it about the structure of the illicit drug trade in Singapore, and the way in which it is carried on, where the appropriate quantitative boundary lies between these two classes of dealers"
    - Returning to s 377A, judge reiterated what was explained in *Lim Meng Suang* that s 377A is not arbitrary as there is a clear social purpose for which s 377A is its chosen and fitting mechanism
        - Thus, the targeted undesirable act and the appropriate measure of that undesirability (and associated punishment) is for the legislature to determine. The courts will not inquire into how they determined the threshold. Since the purpose is not illegitimate, it cannot be arbitrary for the purpose of art 9(1)
    - As for absurdity, court was simply not convinced on the balance of probabilities on the evidence that homosexuality was immutable and thus, it would be absurd to criminalise
    - Importantly, on the two rules of natural justice, the court rejected suggestions that the law would violate the two rules, holding that s 377A "neither undermines nor restricts access to justice"

- In ***Yong Vui Kong*** [2015] (Caning), court dealt with the **question that FRNJ contained substantive legal rights**, and reiterated that the basis of FRNJ is procedural protection.
    - They are procedural rights aimed at securing a fair trial. Thus, torture in its narrow sense (used to extract evidence to be used as proof in judicial proceedings) would violate the FRNJ. But **FRNJ have nothing** to say about punishment of criminals **after** they have been convicted pursuant to a fair trial. Thus, even assuming the common law prohibition of torture extends to caning in the context of a punishment to be imposed on a convicted person after trial, it would not have constitutional force because this would not come within the ambit of fundamental rules of natural justice in the sense in which it was referred to in *Ong Ah Chuan*
    - thus: torture used to extract confessions to secure conviction = violate FRNJ. Post-conviction, torture in the sense of causing physical / other hurt to the convicted felon is prescribed in the CPC / Penal Code. Even if common law prohibition of torture extends to caning, it does not have constitutional force like envisioned in Ong Ah Chuan

- In ***Jumaat v AG*** [2023] SGCA, the court held FRNJ does **not** encompass the "**Presumption of Innocence Rule**" or "Balance of Probabilities Rule". FRNJ is historically determined, NOT dynamically evolving.
    - **Facts**: Death row applicants challenged constitutionality of ss 18(1) and 18(2) of the MDA (presumptions of possession and knowledge of drugs), arguing these violated FRNJ under Art 9(1) by infringing the presumption of innocence.

- **Issue**: Whether the MDA presumptions violated FRNJ under Art 9(1) or the right to equality under Art 12.
- **Held**: No violation of FRNJ.

6.3 Article 9(3) Right to Counsel

Art 9(3) – Where a person is arrested, he **shall be informed as soon as may be** of the grounds of his arrest and **shall be allowed to consult and be defended** by a legal practitioner of his choice.

6.3.1 Nature of this constitutional protection?

(a) Right to be informed of grounds of arrest as soon as may be

- This is necessary in order to enable the preparation of a defence, which entails or to seek habeas corpus to challenge an allegedly unlawful detention.
  - This means that the offender should be **given sufficient details** to know what offence he allegedly committed. If he was not so informed, the arrested person should be entitled to be released (*Madhu Lima v State*).
  - The arrested person should be **given such information "as soon as may be"**, which means not immediately but when reasonably practicable and certainly before he is brought **before the Magistrate, that is, within 48 hours**, where a complaint may be made, if any, against with respect to the arrest.

(b) Right to legal counsel

- ***Treatise***: The importance of having access to a lawyer provides some degree of transparency in ensuring that a detained person is **accorded due process** and not kept in incommunicado detention and abused, whether by physical or mental maltreatment.
- The right may be breached where, for example, an accused is able to **show the police acted in bad faith** to prevent him from exercising his Art 9(3) right.
- Provides "checks and balances required in the adversarial process" – ensures the robustness of proceedings and evidence: (*PP v Jayasangar*)

6.3.2 Issue 1: Reasonable Time for Art 9(3)

- It is settled law per ***Lee Mau Seng*** that this right "must be granted to him **within a reasonable time** after his arrest", hence it's **not immediate**. This in my opinion is problematic.
- In ***Jasbir v PP***, two weeks was held as reasonable time on the facts that balanced the accused's right to counsel to the time needed for effective police investigation – which equates to a "factual inquiry of all relevant considerations" as affirmed in SGCA ***James Raj***.
- However, strong critics on this holding can be found from academic **Ho Hock Lai** 2014 and **Gabe Tan** 2008.
  - Ho expounded on how the restrictive reading of Art 9(3) in ***Jasbir Singh*** was not easy to reconcile when held against Lord Diplock's view in *Ong Ah Chuan* that Part IV liberties should be given "generous interpretation" for individuals. In that sense,

James Raj in adopting *Jasbir* essentially deprives Art 9(3)'s legal significance and is arguably "worse than ungenerous".

- If we follow a purposive approach, the constitution requires the arrested person to be produced **before a magistrate within 48 hours**, with a rationale to allow the arrestee to consult and be instructed by his lawyer **effectively** before the magistrate. On the facts of ***James Raj***, Mr Raj was denied the opportunity to speak to his counsel, **not even for five minutes**, during the hearing of the prosecution's application for him to be remanded at IMH. It is "perplexing" how the counsel can be expected to represent his client effectively at this hearing under such circumstances and **difficult to see how this is not a violation of his right** to legal representation.
- Per **Gabe Tan** [2008] "*Access to Counsel*", allowing an arrestee access to a lawyer is to allow his right to be advised qua arrestee and as a safeguard against improper pressure to confess or as a form of deterrence against possible mistreatment or inaccurate recording of statements.
- ***Ho*** expounds on how **police questioning is not audio or video recorded and that no law requires this**. In the absence of other safeguards, early access to counsel serves as a critical check against coercion, psychological manipulation, and inaccurate recording of statements (**Thio Shen Yi**, "*Vulnerable Suspects*").
- In a way, if safeguards only kick in *after* [access to counsel] has lost much of its relevance, the term 'arrest' will be deprived on any meaning role within Art 9(3) as argued by Ho.
- In the other camp, the SGCA in *James Raj* is satisfied that the access to counsel "strikes a balance" between the arrestee's undoubted right to legal representation and the public interest in enabling the police to discharge their duties and carry out investigations effectively and expeditiously. Albeit there are merits to this position, in that allowing a lawyer to advise his client on his right to silence (***CPC s22(2)***) may deprive the police of a confession which is vital evidence. That however should not deprive an arrestee of knowing that right exists since it would "run counter to upholding the rule of law" (Ho).
- ***As a suggestion***, Choo J alternative "balance" reading in SGHC is preferred. His Honour offers that the right **be available immediately** upon arrest a but reasonable time should be allowed for "necessary or unavoidable delay occasioned by practical or administrative concerns". This pushes the **onus on the police** to show that giving access to counsel would impede police investigation or the administration of justice. Effectively, this delineates the contents of the right to counsel rather limiting the right itself which is less invasive and more proportionate.

- As a **comparative analysis**, Singapore appears to be the outlier in that we emphasize efficacy over protection as opposed to other jurisdictions (**Thio Shen Yi**, 2016).
  - In **Malaysia**, the police must inform the suspect of his right to counsel *before* any questioning commences or before any statement is recorded.
    - Similarly in **Taiwan**, the police must wait 4 hours for a defence attorney to show up before investigations
  - In **Hong Kong**, the right to counsel is not absolute; limited delays are only permitted where a senior officer has reasonable grounds that the right would interfere with investigations. With a similar 48-hour charge after apprehension to SG, the arrestee's right will be triggered.

  - In **India**, the Supreme Court case of DK Vasu set out guidelines where the suspect is entitled to meet, communicate and consult with his lawyer during investigations, albeit not entirely through interrogations.
- It remains to be seen if any structural constrains will be implemented that aligns with Choo J's approach in SGHC James Raj which alike the jurisdictions surveyed, provides burdens on the state to justify the specific need to delay an arrestee's rights.

6.3.3 Issue 2: Right to be informed of one's right to legal counsel

The characterisation of ***Art 9(3)*** as a **negative right** in ***Rajeevan*** is contestable. The SGHC held "shall be allowed" meant no obligation imposed on the relevant authority to inform and advise the person under custody of his right to counsel. As such, for the courts to read in such a right would "be tantamount to judicial legislation"

- However, on a logical front, an arrested person who does not know of the right cannot meaningfully exercise it, making the right functionally hollow for those without legal training. Given the informational and resource asymmetry between an accused and the prosecution or policy (***James Raj,*** SGHC), the right to be informed one's counsel would augment the right to a fair trial.
- There is also a need to balance the need for effective investigations and protection of the accused. With such a negative right, the uninformed accused being subjected to stressful interrogations **can lead to disastrous consequences**. In the case of ***Benjamin Lim***, the police had arrested him at school on accusation, and with no teacher / parents / lawyers had interrogated him and hours later he had committed suicide.

6.4 Article 149

Legislation against subversion

149.— (1) If an Act recites that action has been taken or threatened by any substantial body of persons, whether inside or outside Singapore —

(*a*) to cause, or to cause a substantial number of citizens to fear, organised violence against persons or property;

(*b*) to excite disaffection against the President or the Government;

(*c*) to promote feelings of ill-will and hostility between different races or other classes of the population likely to cause violence;

(*d*) to procure the alteration, otherwise than by lawful means, of anything by law established; or

(*e*) which is prejudicial to the security of Singapore,

any provision of that law designed to stop or prevent that action or any amendment to that law or any provision in any law enacted under clause (3) is valid notwithstanding that it is inconsistent with Article 9, 11, 12, 13 or 14, or would, apart from this Article, be outside the legislative power of Parliament.

(2) A law containing such a recital as is mentioned in clause (1) shall, if not sooner repealed, cease to have effect if a resolution is passed by Parliament annulling such law, but without prejudice to anything previously done by virtue thereof or to the power of Parliament to make a new law under this Article.

(3) If, in respect of any proceedings whether instituted before or after 27 January 1989, any question arises in any court as to the validity of any decision made or act done in pursuance of any power conferred upon the President or the Minister by any law referred to in this Article, such question shall be determined in accordance with the provisions of any law as may be enacted by Parliament for this purpose; and nothing in Article 93 shall invalidate any law enacted pursuant to this clause.

Restrictions on preventive detention

151.— (1) Where any law or ordinance made or promulgated in pursuance of this Part provides for preventive detention —

(*a*) the authority on whose order any person is detained under that law or ordinance shall as soon as may be, inform him of the grounds for his detention and, subject to clause (3), the allegations of fact on which the order is based, and shall give him the opportunity of making representations against the order as soon as may be; and

(*b*) no citizen of Singapore shall be detained under that law or ordinance for a period exceeding 3 months unless an advisory board constituted as mentioned in clause (2) has considered any representations made by him under paragraph (*a*) and made recommendations thereon to the President.

(2) An advisory board constituted for the purposes of this Article shall consist of a chairman, who shall be appointed by the President and who shall be or have been, or be qualified to be, a Supreme Court Judge, and 2 other members, who shall be appointed by the President after consultation with the Chief Justice. *[38/2019]*

(3) This Article **does not** require any authority to disclose facts the disclosure of which would, in its opinion, be against the national interest.

(4) Where an advisory board constituted for the purposes of this Article recommends the release of any person under any law or ordinance made or promulgated in pursuance of this Part, the person shall not be detained or further detained without the concurrence of the President, acting in his discretion, if the recommendations of the advisory board are not accepted by the authority on whose advice or order the person is detained.

6.4.1 Context and History

Originally (Constitution of Malaya) Art 149 was drafted and included to **counter communist** threats, giving Parliament broad powers to enact legislation that may be inconsistent with other parts of the Constitution (eg fund. Liberties)

- BUT there are safeguards in Art 151
- To fall under Art 149, the Act in question must recite the elements in Art 149(1)

Two Primary Legislation

- ***Internal Security Act 1960*** – internal security threats; promulgated pursuant to Art 149
- ***Criminal Law (Temporary Provisions) Act 1955*** – criminal activity

6.4.2 Thoughts on Art 149/150:

- Under Art 149, legislation of a nature under one of the 5 recitals in art 149(1) would be given valid force **despite its inconsistency with either the Legislative Power** (Art 38), or any inconsistencies with Articles 9 (life and personal liberty), 11 (retrospective criminal laws and repeated trials), 12 (equal protection), 13 (freedom of movement), and 14 (freedom of speech, assembly and association)

- **To protect against potential abuse, Art 151 acts as a check to preventive detention** – an advisory board staffed by high office holders who are advisors to the President. Detention beyond 3 months by the authority must be effected with approval by the advisory body, and the advisory body can advise the President in disagreement with the authority and recommend release of said persons

- Per ***Tan Seet Eng*** at [70]: writ of *habeas corpus* or order for review of detention (ORD) necessitates some basis be shown for the order to be issued. Thus, in a sense, the **Probably Cause Test** is concerned with the burden that the applicant must discharge at the initial stage of ORD application whereas the Traditional Test (per *Chng Suan Tze*) is concerned with the scope of judicial review or the subject matter the court can inquire into in circumstances where the primary decision-making power has been vested in the Executive.

- Per ***Teo Soh Lung***, the court's ability to conduct judicial review subject to Art 149(3) and s 8B(2) ISA is restricted to compliance with procedural requirements for ISA cases. As to whether such laws are validly passed, the grounds upon which to impugn a law as unconstitutional are article 4 (Supremacy Clause). However, legislation that is of a character within article 149 will be given valid force per article 149. It goes that the Legislature remains the final arbiter on the validity of a statute. Afterall, per Parliamentary Debates (25 Aug 1994), the Prime Minister and Cabinet are ultimately responsible for Singapore's defence and security, and thus they are the ones who can declare an emergency
    - When Parliament **amended Art 149** in light of *Chng Suan Tze*, Minister **S Jayakumar**, Second Reading of the Constitution of the Republic of Singapore (Amendment) Bill, *Singapore Parliamentary Debates*, *Official Report* (25 January 1989) vol 52 made the following comments about why the Legislature made the amendments they did
        - If the subjective test was not restored, and if foreign case law and precedents allow the courts to be involved in an interventionist role, then the law on national security matters will be governed by cases decided abroad
        - It will also render Singapore judges responsible for and answerable to decisions affecting national security of Singapore, but this was never the intention of the legislature as expressed in the ISA – it had been the settled principles of the subjective test that had guided ISA (and predecessor legislation) through many decades of various security threats

        - Judges are also not equipped to investigate or decide whether preventive detention is warranted
    - This amendment also removed appeals to the Privy Council for security materials, for clear reasons that SG is now Independent and should not let the conditions of UK determine our security concerns
- Is ISA constitutional? Abrogates rule of law, Chan Sek Keong's "From Angst to Empathy"
    - But per S Jayakumar's arguments above, perhaps this is a matter of rights vs necessity
    - See Pg. 256-261 of **Sherrick's Mini Notes**.

6.4.3 Should courts have the power to review preventive decisions made by executive?

- ***Chng Suan Tze***: the notion of a subjective or unfettered discretion was contrary to the rule of law. **All power had legal limits and the rule of law demanded that courts examine the exercise of discretionary power**. If the Executive in exercising its discretion under an Act of Parliament exceeded the four corners within which Parliament decided it could exercise its discretion, such an exercise of discretion would be ultra vires the Act and a court of law must be able to hold it to be so
    - Clear that where decision is based on national security considerations, judicial review would be precluded. It must be shown to the court in such cases that considerations of national security were involved
    - Thus, the function of a court in the review of discretionary power depended on whether a jurisdictional or precedent fact was involved.
        - Where no jurisdictional issue arose, the scope of review was limited to *Wednesbury* principles;
        - Where a jurisdictional fact issue arose, the scope of review extended to deciding whether the evidence justified the decision.
    - Whether a particular discretionary power was subject to any jurisdictional or precedent fact **depended on the construction of the legislation** which created that power. In respect of ss 8 and 10 of the Internal Security Act (ISA), the scope of review of the exercise of discretion was limited to normal judicial review principles of "illegality, irrationality or procedural impropriety"
    - Thus, in **ISA cases**, judicial review is only limited to normal judicial review of *GCHQ* grounds of review, thus where any unlawfulness in conditions of detention was alleged, what should be challenged was the legality of the conditions, rather than the legality of the detention itself.

- ***Tan Seet Eng***: propositions from *Chng Suan Tze* were legislatively overruled in regard to the ISA but not regarding CLTPA (or perhaps broadly to all laws barring national security ones).
- Thus:
    - **CLTPA uses the objective standard** (*Tan Seet Eng v AG* [2015] (CA)). The standard is an objective review of the Minister's exercise of discretion
    - For CLTPA, note that judicial review is not excluded **even though the Minister's decision is final**. The court can still review the Minister's decisions under the CLTPA based on the traditional tests of illegality, irrationality and procedural impropriety.

- This creates an anomaly where ISA detentions are actually LESS reviewable than CLTPA detentions despite potentially graver national security concerns.

6.4.4 Debates on CLTPA (Criminal Law (Temporary Provisions) Act 1955)

- Is a form of preventive detention
- Per Minister Shanmugam's speech during the second reading, it is invoked against secret societies, gangsters, drug trafficking syndicates etc to allow people to testify against the accused. Ensure safety and security of Singapore.
  - In 2018, law was reenacted, creating a 4th Schedule that sets out a list of activities of criminal nature that permits detention or Police supervision
  - Finality clause 3 does not overrule grounds for judicial review in ***Tan Seet Eng*** *ie GCHQ* grounds for review
- In opposition, MP Pritam Singh argues that such preventive detentions goes against the rule of law
  - Worried that clause 3 acts as an ouster clause
- In response, Min Shan says clause 3 codifies ***Tan Seet Eng***

- ***Tan Seet Eng v. AG [2016]*** (Court of Appeal)

Facts: Appellant detained without trial under CLTPA pursuant to ministerial power under s. 30 of the CLTPA; detention was then **extended for another year**, because Tan was deemed a threat to public peace, safety, and order (he was involved in a match-fixing ring).

Argument at HC: Detention was illegal, irrational and procedurally improper.

Argued (on appeal): (1) Match-fixing did not fall under category of offences under CLTPA; (2) CLTPA is a measure of last resort; and (2) CLTPA was not intended to target organized crime per se and there had to be other conditions such as violence and intimidation of witnesses to invoke CLTPA.

- Standard of review? Court will conduct an **OBJECTIVE** assessment of Minister's exercise of discretion court had the power to assess whether the Minister DID IN FACT HAVE THE POWER TO ACT and whether there was **reasonable basis** for thinking that he was so acting Reiterated principle of legality – which according to the court – supports an objective standard of review
- **Scope of review**: GCHQ / traditional grounds of review of illegality, irrationality and procedural impropriety
- Closely scrutinise the grounds put forward by the Minister.
- Court to examine whether Minister acted 'lawfully' within the scope of the law
- **On the facts**, the offences disclosed in the grounds of detention did not fall within the scope of the CLTPA. Activities of recruiting runners and agents, financing and/or directing unspecified match-fixing activities – corrupt practices, but not of the level of gravity required under CLTPA.
- Grounds of detention showed very few connections with Singapore. Nothing to indicate these activities were detrimental to the public safety, peace, and good order of Singapore.

Structure: Always start with text → cases → principles → critique

7 Administrative Law (+ Hypo Framework)

Argument Building Rules	
Rule	**What It Means**
Best case first	Lead with your strongest ground. Put weaker arguments later.
≥2 cases per issue	"This case helps me, this part of this case also helps me, and this is my conclusion."
Spell out the details	For every case: key facts → reasoning → holding → how the hypo maps to it. Never just name-drop.
Counter-arguments	For every major argument, state what the authority will argue back (1–2 lines) and your response (1–2 lines).
Advisory formula	"I would advise X to argue that the decision was [illegal] on the basis that [ground]."
Use obiter	Obiter dicta = invitation to make new arguments for your client.
Modest assumptions	Work with facts first. Then: "Assuming X, then Y." Don't invent new facts.
Aim 12–13 issues	Comprehensive coverage of 12–13 issues > superficial coverage of 16. That's the A+ band.

Quick Issue Spotting Indicators	
If You See This in the Hypo…	**Think About This Ground…**
Statutory condition not met / wrong definition	**Ultra vires / Precedent fact**
Fine/penalty exceeds statutory maximum	**Ultra vires on quantum**
Decision made by officer, not Minister	**Delegation / Carltona**
Minister relied on advice of external body	**Abrogation (or consultation)**
Policy requirement unconnected to Act's purpose	**Improper purpose**
Consideration not mentioned in statute or policy	**Irrelevant consideration**
Expert evidence or key material ignored	**Relevant consideration omitted**
Appeal rejected instantly / "decision is final"	**Fettering**
Decision defeats the Act's own purpose	**Irrationality (futility — Mir Hassan)**
Blanket presumption / pre-judgment	**Irrationality (Ng Hock Guan)**
Punishment wildly disproportionate	**Proportionality via irrationality**
Website says "will approve if…" then departs	**SLE (Chiu Teng)**
Promise → applicant complies → authority reneges	**SLE + Fettering + Futility**
Constitutional right implicated (liberty, property)	**Lower irrationality threshold**
Political embarrassment cited as reason	**Irrelevant consideration (Padfield)**

7.1 Step 0: Read statute, facts and decision

- Read the **statute** first.
- Identify every defined term, condition, and power. Read the **facts**.
- Identify **each decision** separately — each one gets its own analysis.
- For each decision, note: **who made it, under what power, and what happened**.

TIP: List every decision the client wants to challenge. State remedies (Quashing order, prohibiting order)

7.2 Amenability to Judicial Review (Quick – Only if needed)

7.2.1 What is the nature and source of the power of the administrative body

Para: The court will adopt a source and nature test to determine amenability to judicial review. Under the **source test**, the court examines if the exercised power arises from statute or subsidiary legislation (***Linda Lai***). Under the **nature test**, it considers whether the decision involves the exercise of a public law function (***Yeap Wai Kong***). As a caution held in ***Manjit Singh v AG***, the mere fact that a power stems from statute should not necessarily mean that it is amenable to judicial review, though it will ordinarily be so without compelling reasons to the contrary.

- If **public body**, *ie* creature of statute, the source test used to be sufficient, but has since become extended to the nature test (***Yeap Wai Kong v SGX ST***). However, as held in ***PSC v Linda Lai***, even though a public body is a creature of statute, whose powers and functions are statutorily underpinned (in this case, the Constitution of Singapore), courts only intervene where there is an element of public law.
    - [**EMPLOYMENT: PSC**] In *Linda Lai*, the source test was not applied as the powers were held to be derived from the contract of employment, and not from the power conferred by the Constitution. The reasoning being that when statutory boards make certain decisions, it does not invariably follow that the statutory bodies are exercising a statutory power.

In ***Linda Lai***, Applicant held appointment in Land Office – Employment terminated, sought JR irrationality – Held: Not Amenable since relationship between PSC and the applicant 'was one of employer and employee" – issue not its performance of "public duties or the exercise of its powers as an authority

      ***Eval*: (1)** Employment contract is **merely implementation mechanism** to regulate public service appointment/dismissal, not source of power; **(2) Nature test clearly met**: PSC recruits, trains, regulates, dismisses public officers affecting governance integrity – quintessential public function despite contractual form; **(3) Formalistic absurdity**: All public employment uses contracts; *Linda Lai* creates accountability gap where PSC can claim "private HR discretion" to evade JR for whistleblower retaliation

Structure: Always start with text → cases → principles → critique

- [**LEASES: JTC**] A similar outcome on similar reasoning as to what powers were exercised by a statutory body was reached in ***UDL Marine v JTC***. Although JTC is a statutory body, it was acting in a commercial capacity akin to a private landlord and not exercising any public law function.

  In ***UDL Marine***, Applicant held lease under JTC – Application to renew was denied – Held: Not Amenable since leases were contracts – JTC could come up with 'own criteria' for leases 'like any private landlord' – ***Irrelevant* that JTC considered non-commercial factors** like jobs generated and value add to GDP.

  ***Eval*: (1) Source test ignores statutory monopoly**: JTC wields exclusive statutory control over Singapore's industrial land (JTC Act) - lease decisions implement public land allocation policy, not merely private commercial choices; **(2) Nature test downplays public impact**: JTC's "own criteria"

- If **private body**, source test is rendered ineffective. But if the body, despite lacking authority *de jure*, exercises power of a public function *de facto*, the decision may be subject to judicial review (***Ex Parte Datafin***).

  - [**PUBLIC DUTY: DATAFIN**] In ***Ex Parte Datafin***, the Panel, not a statutory body, acted as *de facto* regulatory authority over mergers because it functioned as the central authority for policing takeover behaviours in the UK market.

    In ***Ex Parte Datafin***, the Panel was an unincorporated private association, that promulgated Code on takeovers and mergers – was "*unspoken assumption*" that any breach of the rules ➔ penalty via sanction by UK Government – Held: Amenable since UK Government made decisions on the Panel's Code and advice, affecting legal rights – But-for the Panel, the Government would have to provide its own Code.

    [**PUBLIC DUTY: SGX-ST**] Similarly in ***Yeap Wai Kong***, although SGX-ST is a private company, its actions had public law character since (1) it was an exchange registered under SFA and was required to discharge its obligations, (2) its reprimand powers found in its Listing Rules, were enacted pursuant to under SFA, (3) its reprimand function had significant financial and reputational implication to persons subject to it.

  - [**LIVELIHOOD: ASSOCIATION**] In the Malaysian case of ***Woong Kwok Cheng v HR Hochstadt***, the court held that the Malayan Racing Association (MRA) possessed significant public powers and had the power to affect the livelihood of the claimant with its decisions.

    In ***Woong Kwok Cheng***, Association licenced jockey for horse-racing – Applicant had licence suspended, reapplied after suspension term ended, but rejected – sought JR breach of NJ – Held: Amenable since Association 'monopolised trade' of horse racing, 'taking on the character of an industry' – affected Applicant's 'livelihood' and 'right to work'.

  - [**PRIVATE HOSPITAL**] This statement of law has been affirmed and endorsed in Singapore (***Yip Man Hing Kevin v Gleneagles Hospital***).

> In ***Yip Man Hing Kevin***, the private hospital's suspension of the doctor's privileges was based entirely on their employment contract. Therefore, the SGHC held that the decision was not amenable to judicial review as the hospital **was not** discharging any public function and the applicant's rights were grounded in private law. Accordingly, the decision failed both the Source and Nature tests.

- For an incorporated association like a club, the basis of membership is contractual. ***Nevertheless***, the rules of natural justice continue to apply, and are implicit in such contracts even if silent. This requires the club to act fairly against its members, especially in disciplinary proceedings that may result in sanctions (***Khong Kin Hoong Lawrence v Singapore Polo Club***)

7.2.2 Jurisdictional Review Limits

- **Supervisory Jurisdiction**
  - Application to superior court is not for review of the merits, but the validity of the decision made by the authority (***Marplan Pte Ltd v AG***)
  - The applicant must have an interest to protect and not merely an interested person. **Only the violation of a right personal to the applicant will suffice** (***Tan Eng Hong v AG***).
  - Such violations can be alteration of rights or obligations of that person which are enforceable by or against him in private law, or depriving him of some benefit or advantage that was a legitimate expectation they had (***Council of Civil Service Unions v Minister for Civil Service***)

- **Lack of Precedent Facts? (aka Jurisdictional Facts)**

  Where the executive's power is CONDITIONAL on the existence of a specific fact, that fact must be established by the executive on the merits before the discretion is triggered.

  - Whether a particular discretionary power is subject to any jurisdictional or precedent fact **depends on the construction of the legislation** which creates that power (***Chng Suan Tze v MHA***)

    > In ***Chng Suan Tze***, Applicants detained under ISA *s8(1)* – factual judgement of "national security" not intended for judicial review – was **outside precedent fact category** as the detention must have been necessary to the satisfaction of the President / Minister – Order quashed.

  - For precedent fact categories, the test is **whether the decision was one that could be reasonably reached based on the evidence before him**, with a factual basis for making the evaluation (***Re Fong Thin Choo***)

    > In ***Re Fong Thin Choo***, Importer's exported goods were challenged as non-export and subject to duty fees pursuant to Customs Regulations *r 126* – Held (1) whether goods had been exported proofed objectively, and (2) "Director-General satisfaction" requirement in r 126 not met by signature (breach) = irrational.

  - **Burden of proof lies on the Executive** to establish that the precedent fact exists.

- **Ouster + Immunity clauses?**
  - Clause XX of the (Statute/Subsidiary legislation/XXX) appears to be an ouster clause as it purports to limit the court's ability of judicial review. In Singapore, **ouster clauses usually do not bar judicial review** in light of constitutional safeguards and the supervisory role of the judiciary under Article 93 of the Constitution and the principle of separation of power (***Nagaenthran*** CA).

  - [**IMMUNITY CLAUSES**] ***However***, XX may argue that the clause is not an ouster clause but instead an immunity clause. In ***Nagaenthran*** SGCA, the court distinguished between ouster clauses, which aim to remove judicial authority entirely, and immunity clauses, which shield decision-makers from liability **but do not affect judicial competence** (at [51]-[59]). In general, the court will uphold immunity clauses where the subject matter lies outside judicial competence.

    In ***Nagaenthran***, the court held that *s.33B(4) of the MDA* was not an ouster clause but an immunity clause instead – **only immunises PP from civil suit** for failing to issue Certificate of Substantial Assistance, "unless done in bad faith or malice".

    Therefore, judicial review for illegality, irrationality and procedural impropriety remains available, though the court refrained itself from adjudicating the merits of the decisions that involve operational or intelligence based judgements.

    [**PRIVATE CONTEXT (Limited application)**] In ***Hull University***, the university Visitor had exclusive authority to resolve internal disputes under the domestic statutes of the university, which were not subject to the general public law framework. Judicial review was unavailable because the Visitor's role arose from common law and applied a self-contained legal regime.

- **Ultra vires actions**
  - Acts in excess authority by doing something **not empowered to do**:
    - In ***Wong Yip Pui v HDB***, the legislation prevented authorised occupiers from leasing the flat. As the plaintiff's son was not an authorised occupier, because there was no application from Wong to the HDB to buy the flat – instead HDB offered to sell him the flat. Compulsory acquisition was *ultra vires* because HDB had no power to do such act

7.3 Substantive Review Grounds

Following Lord Diplock's three "I"s of judicial review held in ***GCHQ***, affirmed in SGCA ***Chng Suan Tze***, this current case would likely fall under the ambit of [illegality/irrationality/procedural impropriety].

7.3.1 Type 1: Illegality

Illegality arises where a public authority exercises its powers of an **improper purpose**, takes into account **irrelevant considerations**, fails to consider relevant considerations, or otherwise **exceeds the limits** of its legal authority (***Padfield***).

Improper Purpose(s):

Improper purpose is where the authority exercised its statutory power for a purpose that **falls outside the scope of the statute**. Even where multiple motives exist the true and dominant purpose must align with the statutory objective (***Shanmugam Manohar***), otherwise, the decision is unlawful (***Padfield***).

- [**IMPROPER PURPOSE: PROJECTS**]
  In ***World Development Movement***, the court held that the UK Secretary of State's decision to fund the Pergau Dam project in Malaysia was unlawful. By the time the decision was made, economic appraisals had overwhelmingly shown the project was **uneconomic and no developmental promotion purpose existed**:. Funding it to **preserve political goodwill, without a genuine developmental purpose**, was hence an unlawful use of statutory power.

- [**PROSECUTORIAL POWERS**]
  In ***Ramalingam***, prosecutorial power under Art 35(8) exists to serve the public interest in law and order. Using it arbitrarily, for improper purposes, or in bad faith falls outside the proper scope.

- [**SUBSEQUENT CHANGE OF PUPROSE: LAND**]
  In ***Teng Fuh Holdings***, the SGHC considered whether a gazetted notification of compulsory land acquisition was made illegally, and held that even if the intended use of the land changed over time, from industrial to residential and recreational, this does not evidence improper purpose, as long as the original acquisition was made genuinely for a public purpose. ***Unless***, applicant proves change was in bad faith.
  - There must be a *prima facie* case of reasonable suspicion of bad faith for review to proceed

- [**MULITPLE PURPOSES**]:

  True and Dominant Purpose test

  In ***Shanmugam Manohar***, the applicant alleged that the police had recorded his statements for a collateral improper purpose outside of criminal investigation. The SGHC held that the dominant purpose remained investigative, which was the lawful purpose under the Act, and bad faith was not proved to show that the improper purpose was the actual "dominant" purpose in carrying out the investigation.

  Similarly in ***MM Pillay***, the SGHC upheld the Minister's traffic regulations under *s 90(1) RTA* because the true and dominant purpose of imposing the rule was to control congestion through a restricted zone scheme, which was within statutory authority. Charging fees were incidental or secondary motives did not taint an otherwise lawful exercise of power if the dominant purpose remained valid.

Irrelevant Consideration(s):

The foundational principle is that a decision-maker exercising statutory discretion must act in accordance with the **policy and objects of the enabling Act**, which is a matter of law for the court to determine (***Tan Seet Eng endorsing Padfield***). *On the facts, the authority appears to have disregarded the relevant consideration of...*

- ***Padfield***:
  - UKHL held the Minister's refused to refer a complaint by milk producers to a committee of investigation, fearing that an upheld complaint would embarrass the government and force a politically inconvenient price review. Political fear of parliamentary reprisal is not a relevant consideration.
- ***Nagaenthran*** [2019]: the PP's discretion under s 33B(4) is at his "sole discretion" — but this applies to the manner and extent of inquiry, **not** to the substance of whether substantive assistance was rendered.
- ***Ramalingam***: Mere difference in charges do not raise prima facie inference of bias; PP's discretion-based considerations like on evidence, willingness to testify and public interest factors.
  - Prosecutorial power is also subject to legal limits, and cannot be exercised arbitrarily. It can only be used for purpose for which it was granted, and must give unbiased consideration to every offender, as well as avoid taking into account irrelevant considerations.
- ***City Developments*** – neither irrational nor unreasonable for government agencies to adopt an integrated and holistic approach towards the formulation as well as the implementation of government policies. Thus, it was a relevant consideration for Chief Assessor to give consideration to planning considerations, which were normally under ambit of URA.

Fetters their own discretion / Abrogation / Failure to exercise own discretion

A public authority may formulate general policies to guide its discretion, but must retain the ultimate responsibility and the statutory function must be still exercised consistently with the purpose and framework of the statute (***Asia Development***; ***Komoko Motors***). This means there must be application of the mind to the matter and not slavishly follow a position.

THINK: (1) Time: i.e., Send an appeal and but immediately dismissed / (2) Using someone else's decision as a unauthorised proxy.

- In ***British Oxygen***, Lord Reid held that the Act had intended to grant discretion to the Board on whether to provide a grant or not. The question was whether reasonable for the Board to devise a policy or rules to structure its discretion.
  - Nothing wrong in the Board adopting a policy to guide its discretion, also reasonable to publicise the policy to avoid fruitless applications
  - But **what the board could not do was to shut its ears to an application or refuse to listen at all** – no need to be an oral hearing, but the tribunal / authority must have carefully considered what an applicant has to say.

- In ***Komoco Motors***, the CA, overturning the HC judgment, held that there was no fettering of discretion.

- Distinguishing this case from ***Lines***, ROV adopting the Customs OMV was a decision made in the exercise of her power under LTA rules and **for practical reasons**
  - **Customs had more data and resources** to determine the OMV of vehicles, thereby making its determination of OMV more reliable, and
  - In any case, an aggrieved importer has the right to object to and be heard on Customs' determination of a vehicle's OMV and to appeal to the court
- General principle that was established in ***Lines*** is that an administrative agency must not fetter its own power or abrogate it to another administrative agency
  - Did not apply in this case because ROV did not take instructions from another statutory agency
  - Additionally, Registrar was found to have **given genuine consideration to Komoco's representations**

7.3.2 Type 2: Irrationality

To test irrationality, the decision made must be "*so outrageous in its defiance of logic or accepted moral standards that no sensible authority could have arrived at it*" (***Lines Int'l, citing GCHQ***). However, in deciding if the decision was reached irrationally, the court will avoid substituting their own views on the merits (***Chee Siok Chin***).

Tan Seet Eng CA viewed illegality and irrationality **as separate though overlapping heads of review**, as each serves a different purpose at their core:

- Illegality examines the source and extent of the power + whether it has been informed by relevant considerations *only*. Irrationality looks at the decision made and asks if it was unreasonable considering the correct factors.

Irrationality not found

- [**GAMBLING**] In ***Lines International***, the SGHC upheld the guidelines restricting berthing rights, finding that the authorities' concern over undesirable activities on Cruise to Nowhere (CNWs) was a rational objective. The guidelines were not outrageous or illogical, and thus not irrational **even if another approach might have been more effective**.

- [**PUBLIC SAFETY**] In ***Kang Ngah Wei***, the SGHC found that the Traffic Police's decision to revoke a driver's licence after an asthma attack-related accident was rational, **considering public safety**, and not outrageous defiant of logic.

- [**PAST HISTORY**] In ***Vijaya Kumar***, the Thaipusam permit case, the **history of racial tensions** in Singapore gave ample justification to the police to pay special attention to events involving a religious element. Thus, held that imposition of conditions subject to legitimate public order considerations was not irrational.

- [**ARBITRARY POWERS**] In ***Chee Siok Chin***, police arrested small group of CPF protestors with a large squadron of officers.
  - The arrest was held to be justified under Misc. Offences Act, as **officers had discretion to arrest** if there are reasonable grounds for suspicion that law had been

offended, and it was reasonable for the officers to conclude that the words and actions were "insulting" and / or "abusive" and intended to harass CPF board.

- **Test**: But court also recognised that **there must be limitations and safeguards to ensure power not arbitrarily exercised**. Courts must ensure all:

(1) latitude in assessing reasonableness on factual substratum;

a. from the officer's perspective **at the time of arrest**, not with hindsight.
b. whether a **reasonable officer, on the facts available** would applicant's actions had grounds of arrest

(2) relief must be possible when legitimate grievances are shown to exist;

a. even if arrest was technically justified, **judicial relief must remain available** if arrest was beyond statute/scope of power.
b. ***As an eval***, (2) is theoretically important but practically elusive. The **burden lies on the applicant** to establish bad faith or improper purpose — a **high threshold** that is rarely met in practice because the state's internal reasoning is not always disclosed and courts are reluctant to infer bad faith from ambiguous facts. The safeguard is real in principle but weak in application.

(3) **balance** between the liberty of a person and the need to uphold law and order must be struck

a. ***As an eval***, court recognised that arrest power cannot be unfettered, but seem to stop short of articulating a positive content for the proportionality of police response. ***However***, if proportionality of the officer's action was considered by courts, the courts may no longer be supervising the legality of the decision, but substituting its own views on the merits.

- [**LAND TAX**] In ***City Developments Ltd***, court held that the higher tax on land hoarding policy was neither irrational nor unknown to property developments especially given Singapore's land-scarce situation.
  - **Not unreasonable** for the policy to target commercial land hoarding since developers are likely to be profit driven and thus hold land

- [**CALCULATING PREMIUMS**] In ***Chiu Teng***, there was a policy of calculating premiums paid on lifting restrictions on planning permissions, and the argument was that it was unreasonable for SLA to not adhere to public information in calculating.
  - As for whether the mode of calculating was irrational, the court held that it would be **slow to review such polycentric matters**, and balancing of competing interests was not within the institutional competency of judiciary
  - As for whether it was irrational that the SLA did not publicise the alternative policy, held that at common law **no legal duty** on the part of the Government **to publicize** the policies which it seeks to implement...no general rule that reasons must be given.

- [**ASSISTING OPERATIONS**] In ***Pannir Selvam***, although the applicant alleged that the Public Prosecutor acted irrationally in refusing a Certificate of Substantive Assistance, the Court found that the decision was rational. The information Pannir provided had been **materially incorrect**, leading to no useful disruption of drug trafficking, and the decision not to issue a certificate was rationally based on operational judgment.

Irrationality found

- [**EN BLOC SALE**] In ***Mir Hasan***, the STB approval for the *en bloc* sale of Tampines Court. **STB had a calendar of their own making** which fixed the hearing for application for approval of sale long after date of completion designated in S&P agreement, **which would have sabotaged the sale**. Issue was whether action of STB moving the date so far into the future was rational
    - **Held**: STB under LTSA supposed to facilitate *en bloc* sales expeditiously, not stymie them. Based on the decision, any order made at the hearing would be futile as it would be after contractual deadline, and was held to be **unreasonable** in the *Wednesbury* sense.

- [**IRRELAVANT CONSIDERATIONS?**] While taking into account irrelevant considerations or failing to consider relevant ones ordinarily grounds a claim for judicial review under the head of illegality (***Padfield; Nagaenthran; Tan Seet Eng***), it is arguable that a such a distortion in the decision-making process may also lead the court to find irrationality.
    - In ***CBB v Law Society***, the SGHC held that the Council's decision irrational because it **relied on an irrelevant factor** (the complaint's personal capacity, although disciplinary proceedings exist to uphold the profession's standards, not personal rights) and failed to consider relevant factors like the seriousness and merits of the complaint, which, following the SGCA decision in ***Chan Chun Hwee***, are crucial especially where serious or prolonged misconduct may justify curing procedural irregularities.

7.3.3 Analysis: Proportionality

Although the doctrine of proportionality is **currently not an accepted ground** for judicial review in Singapore (subsumed under irrationality in ***Chung Suan Tze*** dicta, ***Vijaya Kumar***), in the unlikely event that the court departs from the current stance, the decision may be invalidated for being excessive in relation to its legitimate purpose in making decisions.

However, it is argued that proportionality is **structurally different from irrationality** — it requires decsino to have (1) a legitimate aim; (2) rationally suitability; (3) no more than necessary; (4) balance between the measure and the aim. In this sense, this is a more searching, structured review that examines the substantive merits — precisely what Wednesbury irrationality defers to the decision-maker on.

7.3.4 Substantial Legal Expectations

The applicant may argue that the **public authority had made clear and unambiguous representations** giving rise to a substantive legitimate expectation ("**SLE**") that [X].

Although the doctrine of SLE was first recognised in ***Chiu Teng*** as a "separate and standalone" ground of judicial review, its status in Singapore law remains uncertain following the SGCA decision in ***Tan Seng Kee*** which stated that there is only a "limited recognition of the doctrine" in exceptional case like ***s.377A***.

Applying Tan Seng Kee's limited framework, it must be considered whether the present case similarly involves (a) a **grave risk of deprivation of fundamental rights** if the representation is not honoured, and/or (b) an **overriding public interest** in preserving a deliberate legislative or governmental compromise. If such exceptional circumstances exist, the court may be more prepared to recognise a substantive legitimate expectation in this case. On the facts, the court is [likely/unlikely] extend the doctrine of SLE to the current case.

The requirements to be proved for SLE in ***Chiu Teng***:

(a) The applicant must prove that the statement or representation made by the public authority was **unequivocal and unqualified;**
  (i) If the statement or representation is open to more than one natural interpretation, the interpretation applied by the public authority will be adopted; and
  (ii) The **presence of a disclaimer or non-reliance clause** would cause the statement or representation to be qualified
(b) The applicant must prove the statement or representation was **made by someone with *actual or ostensible authority*** to do so on behalf of the public authority.
(c) The applicant must prove that the statement or **representation was made to him or to a class of persons** to which he clearly belongs.
(d) The applicant must prove that it was **reasonable for him to rely on the statement** or representation in the circumstances of his case:
  (i) If the applicant knew that the statement or representation was made in error and **chose to capitalise on the error**, he will not be entitled to any relief;
  (ii) Similarly, if he suspected that the statement or representation was made in error and **chose to not seek clarification** when he could have done so, he will not be entitled to any relief;
  (iii) If there is a **reason and opportunity to make enquiries** and the applicant did not, he will not be entitled to any relief
(e) The applicant must prove that he did rely on the statement or representation, and that he **suffered a detriment as a result**
(f) Even if all the above requirements aare met, the court should nevertheless not grant relief if:
  (i) Giving effect to the statement or representation will result in a breach of the law or or the state's international obligations;
  (ii) Giving effect to the statement or representation will infringe the accused rights of some member of the public;
  (iii) The public authority can show an overriding national or public interest which justifies the frustration of the applicant's expectation.

- As applied in ***SGB Starkstrom***, the issue was whether SGB had a SLE against Commissioner that a compensation claim (which was previously approved by the Commissioner under WICA) was valid and that it discharged SGB's liabilities to the injured employee?
  - Court held that **SLE not applicable on the facts** of the case:
    - The doctrine was **not meant** to regulate disputes **between private individuals**
    - Additionally, no such representations were made by the Commissioner
    - No SLE from void / *ultra vires* decisions

- Court did not affirm nor overrule *Chiu Teng* on SLE point, and accepting the doctrine was a significant departure on the scope and limits of judicial review.

7.4 Procedural Review Grounds

To **ensure a fair trial**, the current case may be subject to judicial supervision through procedural review.

- If a statute prescribes a procedure, the authority must follow it or act ultra vires; if not, courts may imply procedural fairness through natural justice, which is the rule against bias and the right to a fair hearing (**Tan & Thio**).

7.4.1 Fair Hearing Rule / Duty to Act Fairly

The Fair Hearing Rule requires that an individual who may be adversely affected by a decision must be given notice of the case against them and a fair opportunity to be heard (***Kay Swee Pin***).

However, before the court intervene for breach of the Fair Hearing Rule, it must be first considered what type of decision is in question. There generally three types of decisions: (1) forfeiture cases and (2) application cases; and (3) expectation cases (***McInnes***). On the facts, the decision falls within a [forfeiture/application/expectation] case because…

Forfeiture cases **Highest** procedural protections: an unbiased tribunal, notice of charges, and a right to be heard in answer to charges	A decision that takes away an existing right or position (e.g., expulsion of a member or revocation of a licence).
Expectation cases **Intermediate** procedural protection.	Where the applicant has a legitimate expectation (basic; not to level of SLE) that their application will be granted due to prior representations or practice by authority
Application cases **Minimal** protections apply; no right to oral hearing or reasons.	A decision that merely refuses to grant something the applicant seeks (e.g., first-time membership or a new licence).

TIP: Look at fact patterns to determine what happened in the hypothetical to draw parallels to find where there were breaches of rule

Significance of "livelihood" and Socio-Economic Value

- In ***Kay Swee Pin v SICC***, whilst the private club was not a public authority, court held that where the club expelled, suspended or punished a club member, where its membership held significant social and economic value, a more rigorous application of the rules of natural justice is required.
  - Clauses to oust court jurisdiction is contrary to public policy and **void**.

- In ***Woon Kwok Cheng***, jockey disqualified for 5 years applied to MRA for reinstatement, but was **rejected application without reasons** and in his appeal, was told to justify before an MRA special committee. But he refused to do so, and was thus dismissed.

- Court held: MRA affects lives of **sizeable portion of the population**, and **monopolises the trade** which is significant to the public. Considering the plaintiff is a trained jockey where his **livelihood** is towards this nature of work, judicial review application was permitted.
- By rejecting the plaintiff without reasons attached would tantamount to a breach of procedural fairness and natural justice

Right to Know the Case Against Applicant

This requires that a party liable to be directly affected by a decision must know the allegations against him and be given a fair opportunity to meet them (***Kay Swee Pin***).

- In ***Chiam See Tong v SDP***, Chaim was invited merely to "explain"/ justify his statements at SDP's disciplinary hearing. However, the **hearing turned confrontational** about his breach of party confidentiality obligations (not to talk to the press) and the hearing **comprised some of his opponents.** He sued for wrongful expulsion.
  - The court found that such adversarial proceedings **deprived Chiam of a true opportunity to defend himself**, amounting to a breach of the right to fair hearing.

- In ***Per Ah Seng v HDB***, CA recognised that there was a general duty to disclose an adverse report to an affected party to enable a response in the context of an investigator determining if people were breaching regulations.
  - ***But the rule is not absolute***, must be weighed against potential prejudice to public interest, which in this case militated against the disclosure of the PI report – could result in investigative methods used by HDB's PIs being made known to the public
  - However, **non-disclosure of PI's report did not breach** natural justice because, beyond policy consideration, determinative evidence, an inspection by the HDB officers, had been disclosed.

Right to Fair Hearing

- In ***Tan Boon Chee David v Medical Council of SG***, the court found that the hearing was in breach of the fair hearing rule
  - **Not all members of medical council present during the hearing, without the hearing being adjourned** – some present 1st day, others 2nd day, and council members were walking in and out of the inquiry when witnesses gave evidence
  - This was serious breach of the rule because "A person who has not seen and heard a witness is as a rule quite incapable of estimating the value of his evidence".

Right to Counsel

While there is no general right to legal representation in administrative or disciplinary proceedings, the courts recognise that fairness **may require allowing legal representation** where the seriousness of the charge, the potential consequences, or the complexity of the issues so warrant (***Kok Seng Chong***) – **not trivial cases**.

- In ***Kok Seng Chong***, Racehorse trainer sought injunction to restrain a disciplinary inquiry into a positive post-race urine test, and sought right to legal representation at inquiry hearing, against rules of natural justice and / or public policy.
    - Hence, plaintiff had a right to proper consideration of his request for legal representation on its merits
    - ***But* there were public policy reasons for NOT allowing legal counsel**
        - Costs, protracting the issue
        - ***But*** note where having legal counsel would affect one's right to a fair hearing in ***Haron Mundir*** whose **limited education and grasp of English** resulted in need for legal counsel.

7.4.2 Rule against Bias

As a subset of natural justice, decision-makers must not only act impartially but must also appear to act impartially so that public confidence in the integrity of decision-making is maintained (***BOI v BOJ***). This is the rule against **Actual** and **Apparent** bias.

Actual Bias (V. High Threshold)

Actual bias arises where the decision-maker is **subjectively prejudiced** against a party, or, in another word, has **pre-judged the case**. The threshold for proving actual bias is extremely high because it requires evidence of a decision-maker's subjective state of mind. Nonetheless, where such direct evidence is available, the decision must be set aside without the need for further inquiry into appearance or perception.

- In ***Sim Yong Teng***, the SGCA found direct evidence of actual bias where members of the new management committee had **expressed in writing their support for a prior decision** to suspend the applicant, **before even hearing the matter afresh**. The court held that such pre-judgement of the issues, made prior to hearing evidence or arguments, constituted actual bias.

Apparent Bias

Absence actual bias, a decision may still be set aside for apparent bias if **a reasonable and fair-minded observer, knowing all the relevant facts**, would have a reasonable suspicion that the decision-maker might not have acted impartially (***Jeyaretnam; BOI v BOJ***). – Reasonable Suspicion test.

- In ***Pek Lian Guan*** [2026] SGHC, CJ Menon held **extensive judicial copying** is not automatically unlawful, but it raises concerns about natural justice because it may suggest the judge failed to apply an independent mind to the materials or that the losing party was denied a fair hearing – which can undermine public confidence on the judiciary.
    - Fundamental biases per ***Swire Shipping*** includes the judicial officer copying one party's submissions **without dealing with the other party's key arguments**, evidence of prejudgment, *rather than* mere mistakes in reasoning that can be corrected on appeal.

- In ***BOI v BOJ***, applicant alleged that the judge's interventions during cross-examination showed apparent bias.
  - **Court held**: adversarial and not inquisitorial, thus judge should not descend into the arena. Whether or not judge truly 'descends into the arena' **depends on the quantity (no. of times) and qualitative impact of the Qs** – case by case assessment
  - Reasonable observer:
    - **Informed**: Apprised of all relevant publicly known facts;
    - **Fair-minded**: Neither complacent nor unduly suspicious; would not jump to conclusions of bias based on isolated remarks taken out of context.
  - Excessive judicial interference (not apparent bias):
    - Judge slipped into the perils of self-persuasion … depends on whether the reviewing court deemed how the decision-maker acted was such as to impair its ability to evaluate and weigh the case presented by each side

- In ***JBJ v LKY***, applicant alleged apparent bias because the trial judge had previously worked at the same law firm as the plaintiff (LKY) and had delivered judgments against the applicant in earlier cases
  - **Held**: SGCA rejected the claim, holding that **mere past professional association or adverse findings were insufficient to establish apparent bias** and a reasonable observer must not jump to conclusions based on background alone, but must consider whether there are objective facts raiing in a real concern about impartiality

- In ***Ex Parte Pinochet***, the UKHL held that the involvement of Lord Hoffmann, who was associated with an intervening party **(as unpaid director of charity arm)**, gave rise to apparent bias even though there was no financial interest.
  - Charity arm had **sufficiently close connection** to the legal proceeding because it directly concerns their core mission of advancing human rights accountability.

7.4.3 Rule of Necessity (Defence for decision-maker)

The decision-maker, however, may invoke the rule of necessity to proceed despite the risk of bias, because no alternative competent tribunal or forum exists (***Sim Yong Teng; Lawrence Khong***). Necessity rule is **limited**: it does not apply to cases of actual bias, and it **does not apply to non-statutory bodies**.

The principle operates in two scenarios:

(a) where no other person or tribunal is available to decide the matter; or
(b) where a quorum cannot be formed without the participation of members who would otherwise be disqualified for bias.

However, even where the necessity *prima facie* applies, the decision-maker must take all reasonable steps to minimise doubts about impartiality (***Lawrence Khong***).

- In ***Lawrence Khong***, the SGHC held that where alternative options existed, such as rescheduling the disciplinary meeting, co-opting neutral members or delegating disciplinary powers to sub-committee, the principle of necessity **did not apply**.
  - The tribunal's failure to exhaust these alternatives meant the decision was tainted by apparent bias and breached natural justice.

- In ***Sim Yong Teng***, the SGCA held that the principle of necessity **does not generally apply to private associations such as social clubs**.
    - However in this case, members of the new management committee who had signed letters prejudging the matter proceeded to rehear the complaint. The Court found that they could have resigned and allowed untainted members to be elected, and thus necessity was not genuinely engaged.

7.5 Executive Rule Making

The current case may be subject to judicial review **if the executive body acted unlawfully in exercising its rule-making functions**.

7.5.1 Formal Rulemaking (through subsidiary legislation)

- For subsidiary legislation to be validly made, they must:
    - Under ***s23 of the Interpretation Act***, subsidiary legislation must be **published in the Gazette** to have legal effect unless otherwise expressly provided.
    - Not contain differentiating measures that have the practical effect of disadvantaging persons or groups of people along racial or religious lines
    - Presented to the Clerk of Parliament

- Thus, in ***Cheong Seok Leng***, appellant charged with AWOL under Vigilante Corps Act argued that he was **not AWOL as he did not know the law**, since it was **not published.**
    - SGHC held that the assignment of additional duties to the Vigilante Corps constituted subsidiary legislation because it determined the content of the Act as a rule of conduct.
    - Although the assignment was within the Minister's power, it was **invalid** because it had not been published in the Gazette, in breach of s23 of the Interpretation Act.
        - The Court emphasised that **publication is a condition precedent to the validity of subsidiary legislation**, reflecting the need to ensure transparency and public access to the law.

7.5.2 Informal rulemaking (through administrative policies)

Administrative bodies exercising statutory discretion are entitled to adopt informal policies or guidelines to structure their decision-making, but **such policies must comply with established legal principles** to avoid unlawful fettering discretion or acting ultra vires.

Not Wednesbury unreasonable

The policy **must not be irrational or so absurd** that no reasonable authority could have adopted it. Courts will not interfere merely because they would have preferred a different policy.

- In ***Lines International Holding*** the SGHC upheld the PSA's policy limiting berthing rights for cruise-to-nowhere ships to 30%, finding that it served legitimate port development objectives under the PSA Act and was not irrational. The court emphasised that even policies

that restrict commercial activities are lawful if **connected rationally to the statutory purpose**.

- Similarly, in ***City Developments***, the SGCA upheld a policy discouraging land hoarding as a rational and legitimate consideration when assessing property tax values, even though it significantly increased the applicant's tax liability.

Policy was made known to affected persons

Fairness requires that policies which materially affect rights or opportunities **must be communicated** to those affected.

- In ***Lines International***, the PSA and other bodies met with cruise operators and orally conveyed the 30% policy guidelines. The Court held that a written formulation is unnecessary if the policy is adequately conveyed and understood, giving those affected an opportunity to clarify or comment.

The authority must not fetter its discretion

Authorities must retain the **ability to consider exceptions and exercise discretion** on a case-by-case basis.

- In ***Lines International***, PSA's **independent exercise of discretion in refusing berthing rights** to the applicant was upheld on the facts
    - *Nevertheless*, one of PSA's guidelines — automatically denying berthing rights if certain agencies objected — was struck down for fettering discretion. The Court found that PSA had improperly bound itself to external bodies' decisions without exercising independent judgment.

- In ***Komoco Motors***, the SGCA held that although the Registrar routinely adopted Customs' open market values (OMVs) to calculate registration fees, she did not fetter discretion because she **remained willing to consider objections** on a case-by-case basis.

7.6 Remedies

While the default remedy in judicial review is a quashing order (***Justices of Kingston***), meaning that the decision made by the decision-maker would be nullified and the decision-maker would have to reconsider his decision, the court may in **exceptional circumstances grant a mandatory order** in specific terms, effectively compelling a public authority to act in a particular way.

- In ***CBB v Law Society***, the SGCA issued a mandatory order requiring the Law Society to apply for leave under the ***Legal Profession Act***, holding that this was one of the rare cases where **only one lawful outcome** was available.
- **Facts**:
    - Complaint against lawyer Mr L (trust arrangements, Re BKR) >6 years old, requiring Council's court leave under ***LPA s 85A(4C)***

- High Court quashed Council's initial refusal to seek leave as irrational (non-client status irrelevant; public interest ignored)
- Council took 11 months inaction after quashing order despite direction to reconsider

Guiding factors to determine whether such a specific mandatory order is justified (*CBB*):

- **Availability of objective evidence**: Is there public domain evidence bearing on the merits? (Here: Mr L's conduct was detailed in *Re BKR* and other judgments.)
- **Institutional competence of the court**: Does the decision involve polycentric policy matters outside judicial expertise? (Here: lawyer discipline is *within* the court's aegis and supervision.)
- **Decision-maker's conduct**: Has the decision-maker shown an intention not to reconsider, or been unduly dilatory? (Here: 11 months of inaction, counsel frankly stated they did not want to be seen "caving in.")
- **Absence of other reasons militating against**: No need for constant supervision, no impossibility, no public inconvenience, etc.
- **Absence of alternative ways of performing the duty**: By statutory construction, was there only one way the discretion could lawfully be exercised? (Here: proper construction of LPA s 85A(4C) and relevant factors — length of delay, prejudice, reasons, prospects — all pointed one way.)

Why the test is stricter for Mandatory Orders: Because Quashing Orders and Declarations leave the decision-making authority with the designated executive body. A Mandatory Order in *specific terms* effectively usurps that authority and renders the court the primary decision-maker. This is only acceptable in the *rarest* of cases where every relevant consideration has been assessed and there is only one legally reasonable outcome.

7.6.1 Locus standi

To invoke the court's powers to review a case, the applicant must have locus standi or the right of appearance before the court (***TT4***).

As laid down in ***Kenneth Jeyaretnam v AG***, the law on *locus standi* is:

(i) public duty breached; and → *prima facie* made out if there is a violation of constitutional rights (***Tan Eng Hong SGCA*** [at 84])

(ii) which generates correlative private rights (***Tan Eng Hong***) or public rights (***Vellama*** – narrow avenue in rate and exceptional situations requiring "special damage").

[Membership = Violation] In ***Eng Foong Ho,*** held that applicants were granted standing because of their membership of the Buddhist association which was affected by the compulsory acquisition of temple property.

In cases where non-correlative rights generating public duty is breached, and the breach is of sufficient gravity such that it **would be in the public interest** for the courts to hear the case, an applicant *sans* rights may be accorded *locus standi* as well, at the discretion of the courts

8 Year by Year Paper Analysis

[PAST PAPER ISSUES — 2021 (Wildlife Protection Act, Uncle Wozzer)]: (1) Whether the MWP Policy on the website created an informal rule or legitimate expectation that Wozzer relied on (Chiu Teng conditions); (2) Whether the rejection of Wozzer's application was ultra vires for failing to satisfy precedent facts — vaccination requirement applied to 'persons handling wildlife' but his front-desk clerk was NOT involved in handling animals (error of precedent fact/patent error); (3) Whether the decision was biased — Minister detests all reptiles after Komodo dragon bit him (apparent bias; BOI v BOJ reasonable suspicion test); (4) Whether the inquiry before Noi was procedurally fair — Noi was belligerent, continually demanded more evidence, did not allow committee members to question Wozzer, and refused to give reasons for aggravating factors (fair hearing rule; Re Shankar on descending into the arena); (5) Whether Noi was apparently biased — Wozzer had made multiple police reports against Noi (reasonable suspicion test; prior personal conflicts); (6) Whether the S$50,000 fine was within the Ministry's power — the Act does not grant the Minister a power to fine when making an Art 3 declaration (patent error of law); (7) Whether the direction to cease clinic operations was within the Minister's power (ultra vires); (8) Whether the Minister had failed to apply his mind to the matter when immediately replying to Wozzer's email within the hour (fetter of discretion/failure to consider new evidence).

[PAST PAPER ISSUES — 2022 (COVID-19 Pandemic Management Act, Norberto)]: Good scripts identified at least 9-10 factual patterns. Key issues: (1) Patent error in the decision to fine Norberto S$20,000 — the MOH website policy said 'fine not exceeding S$10,000' for first offence (patent error); (2) Ms Federdal's assurance that Norberto could travel to Singapore for on-arrival exemption — raised substantive legitimate expectation under Chiu Teng conditions; (3) Fetter of discretion — Ms Federdal refused to hear out Norberto and refused to read his supporting documents despite him having new information and evidence; (4) Apparent bias — Ms Federdal had announced at launch of national vaccination drive that those who reject vaccinations are 'irresponsible' and posts against vaccine-sceptics under 'Vaccine Vigilante' avatar (BOI v BOJ reasonable suspicion test); (5) Irrationality — banning Norberto for 5 years when the Act only permits 3-year ban; (6) Whether the Minister's decision that Norberto's 'public opposition to vaccination threatens national security' as advised by MHA was based on an irrelevant consideration (Padfield).

[PAST PAPER ISSUES — 2023 (Singapore Broadcasting Act, Gerry Lee)]: Good scripts identified at least 14 potential issues. Key issues: (1) AMENABILITY — whether SBA's decision was amenable under the Nature Test (SBA influential self-regulatory body that liaises with government; Datafin; Lawrence Khong); (2) Whether the Health Minister calling the SBA Chairman and saying Gerry 'should be disciplined' was an improper direction under the Singapore Broadcasting Act amounting to unlawful interference with the SBA's independent disciplinary function (cf Komoco — decision-maker cannot take instructions from another body); (3) Fair hearing rule breaches at the SBA meeting — quizzed for four hours about irrelevant topics (his talkshow content, global tennis events) rather than the disciplinary matter; four other SBA Board Members looked bored and tapped on phones; three left at noon and told the Chairman to decide for them (audi alteram partem; Chiam See Tong — person must be told of his case clearly); (4) Apparent bias — Board Members

had 'a tennis club buddy ready to replace him' — pre-decided outcome (Sim Tong Yeng — actual prejudgment); (5) MDBC rejection: Requirement (3) of having a diploma in audio equipment repair — was this a relevant consideration for someone who has been a radio presenter for 10 years? (Padfield — irrelevant consideration); (6) Whether the Minister's rejection based on the 'Minister of Health's advice' that Gerry's views 'are contrary to Singapore's national interest' was an improper purpose under the Broadcasting Act (WDM v Secretary of State approach); (7) Irrationality of the diploma in audio equipment repair requirement as applied to experienced radio presenters.

[PAST PAPER ISSUES — 2024 (Global Corporations Practices Act, Oz Warren/Grabbu/SPCC)]: Two decisions requiring separate analysis: (1) SPCC DECISION — amenability (nature test/Datafin — SPCC works closely with MTI, effectively the only way for Prekka companies to clinch business deals in Singapore; acquiescence of MTI); procedural impropriety: Panel included two of Grabbu's KEY COMPETITORS — apparent bias (Lawrence Khong; BOI v BOJ); Oz Warren's explanation was continuously interrupted by the Panel — excessive interference; Oz Warren grilled on political affiliations (Chiam See Tong — must be told of case clearly); factual/legal errors: Oz Warren was WRONGLY assumed to still be a Prekka legislator (he was a FORMER member); the offer of free Sailor Smith tickets was WRONGLY alleged to constitute 'Corruption' under s 3 (SPCC members are not 'Singaporean public officers' per the Act's definition — patent error of law). (2) MINISTER'S DECISION — jurisdictional error of precedent fact: power to suspend was conditional on a 'foreign public officer' being a shareholder — Oz Warren was no longer a current member so did not fall within that definition; Minister had power to SUSPEND for one year, not ORDER TERMINATION (excess of authority); Minister abrogated his discretion by deferring entirely and unquestioningly to the SPCC's report (cf Komoco); finality clause s 6 (Nagaenthran approach).

[PAST PAPER ISSUES — 2025 (Corporate Finances Control Act, Gamestonk)]: THREE decisions requiring separate analysis: (1) MINISTER'S DECLARATION of Gamestonk as restricted entity + fine: Was Minister's departure from MTI Circular a breach of legitimate expectation (Chiu Teng cf Tan Seng Kee — probably NOT, since promise was only by MTI, not Parliament, and life/liberty not at stake); improper purpose — declaring board game industry a 'restricted entity' to prevent 'political instability' (WDM — no proper purpose under the CFCA); Minister FINED Gamestonk S$50,000 — simply NO POWER to do this under the CFCA 2015 (patent error of law); Tan Seng Kee-type extraordinary circumstances for binding the Minister to the MTI Circular probably NOT met (promise only by MTI, not Parliament; life and liberty not at stake). (2) ACRA'S REJECTION of Gamestonk's appeal: amenability (probably a forfeiture case — Minister's declaration limits Gamestonk's legal rights to make payments); Bob Ong's 'persistent questioning' arguably amounts to excessive intervention (cf Chiam See Tong; BOI v BOJ); ACRA apparently biased — Bob Ong probably being the politician embarrassed by Gamestonk's North Coast Plan game (BOI v BOJ reasonable suspicion test; Lawrence Khong); principle of NECESSITY — could not apply because it was not necessary for Bob Ong to be on the panel (Sim Yong Teng). (3) MTI PERM SEC'S REFUSAL of two payments: First payment (S$150,000 to Singapore seller) — ONLY ONE CORRECT DECISION: authorise, since s 5 says Minister 'may only refuse' authorisation to counterparties outside Singapore and the seller was INSIDE Singapore (precedent fact review; Re Fong Thin Choo; mandatory order under CBB v Law Society); Second payment (S$99,000 to Ruritanian firm) — whether this

had any legal effect at all, since it was BELOW S$100,000 (cf s 4 — only requires authorisation for payments EXCEEDING S$100,000); whether MTI Perm Sec had FETTERED DISCRETION in consulting Bob Ong — his decisions were 'based on the advice' of Ong (cf Komoco CA — must apply mind independently; abrogation of discretion); finality clause in s 7 (Nagaenthran approach).